CHAPTER 10 | SCHOLARLY ARTICLE

A10.1 - How Choice Fueled Panic: Philadelphians, Consumption, and the Panic of 1837

Sean Patrick Adams

ARTICLE	How Choice Fueled Panic: Philadelphians, Consumption, and the Panic of 1837
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How Choice Fueled Panic: Philadelphians, Consumption, and the Panic of 1837

SEAN PATRICK ADAMS

This essay examines the role of working-class consumers in public debates over the public regulation of food and fuel markets in Philadelphia in the years leading up to the Panic of 1837. As price spikes in these necessities inflamed the cries for state authorities to insure fair prices for these goods and to put an end to the growing scale and scope of free market capitalism, these pleas went unfulfilled. Instead, urban residents saw many of the longstanding measures designed to protect less affluent Americans from devastating price swings—regulated marketplaces for meat, traditional fuel markets, and the bread assize, for example—had eroded as policymakers offered a vision of a free market economy that pushed aside longstanding assumptions about the role of public officials in the marketplace itself. As the debate moved from the idealistic realm of political economists to the more tangible theater of Philadelphia's working-class dinner tables and hearths, the futility of evoking a "moral economy" approach to the idea of consumption became clear. By the time of severe economic crisis in the winter of 1836–1837, the policymaker's preference for consumer choice helped fuel panic.

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When prices for basic necessities like bread, coal, and meat in American cities soared in the winter of 1836–1837, urban residents across the Northeast demanded action. Philadelphia's Democratic General Ward Committee reported on the source of inflation in January 1837 at a raucous public meeting. "With regard to provisions in the market," the committee argued, "the supply has not diminished, but extravagant prices are demanded for them. This is not on account of scarcity, but speculations, and some improvident policy we are here constrained to speak of." After the city's market stalls were pulled down from High (now Market) Street to make way for a railroad and the rent on the stalls increased, the report recounted, many farmers abandoned the area, leaving vital functions such as the city's poultry supply up to free market hucksters who sold chickens out of the backs of wagons with neither license nor conscience. The result, the committee argued, was that "every citizen is now compelled to purchase the greater part of his provisions second handed, at an advance from 33 to 75 per cent above the farmer's usual prices, or abstain from the use of the article." The solution? The Committee demanded that state legislators work for the passage of a law "for the erection of one or more public granaries and coal yards, to be owned by and kept up by the State, with such regulations as shall at all times afford the farmer and the miner a fair cash price for wood, coal, and grain; and provide each citizen who may demand it, a sufficient quantity for his own consumption at cost." In doing this, the committee invoked the traditional notion of a "moral economy," in which policymakers insured that consumers were insured access to necessary goods through a framework of local and state ordinances regulating urban markets.[1]

A month later, New York's radical Loco Focos announced a public meeting in City Hall Park to address this same issue with broadsides screaming: "BREAD, MEAT, RENT, AND FUEL! Their prices must come down!" On the late afternoon of February 13, a crowd of thousands greeted the speakers. Charged by the slogan, "As the currency expands, the loaf contracts," the crowd turned their animosity from the Loco Foco's intended foil, the "monstrous banking system," to a more immediate target, Eli Hart and Company's store on Washington Street. About a thousand angry New Yorkers broke into the store, destroying an estimated five hundred barrels of flour and one thousand bushels of wheat. Shocked editorialists denounced the actions of these "Jackson-jacobins," as the story of the duly named "Flour Riots" spread across

1. *The Pennsylvanian* (Philadelphia), January 17, 1837. The idea of a "moral economy" is usually credited to work of the English social historian E.P. Thompson, although recent historians such as William Novak, Helen Tangires, and Seth Rockman have all incorporated the term in their work on the Early American Republic.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.2 - The Jacksonian as Leveller

John Ashworth

ARTICLE	The Jacksonian as Leveller
JOURNAL	Journal of American Studies 14, no. 3 (1980)
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The Jacksonian as Leveller

JOHN ASHWORTH

Over the past two decades Jacksonian historiography has been enriched by the publication of a large number of scholarly articles and monographs. Legislative voting in the states and in Congress has been analysed, the social composition of the two major parties has been studied, the mechanics of the political system have been scrutinized and political ideas have been re-examined.[1] The present article will be concerned with ideology, the belief system of the Jacksonian Democratic party. It will deal specifically with the Jacksonian conception of equality. Surprisingly, this is a facet of Democratic ideology to which relatively little attention has been paid.[2]

In *The American Political Tradition*, published in 1948, Richard Hofstadter presented what is perhaps the standard view of Jacksonian equality. He cited Andrew Jackson's Bank Veto Message of 1832. Jackson here affirmed that

> Distinctions in society will always exist under every just government. Equality of talents, of education, or of wealth cannot be produced by human institutions. In the full enjoyment of the gifts of Heaven and the fruits of superior industry, economy, and virtue, every man is equally entitled to protection by law.

Hofstadter concluded that this was "certainly . . . not the philosophy of a radical leveling movement that proposes to uproot property or to reconstruct

John Ashworth lectures in American History at the York campus of St. John's College of Ripon and York. An earlier version of this paper was presented to the BAAS Jubilee Conference held at the University of Lancaster in April 1980.

[1] On recent Jacksonian historiography see Don F. Flatt, "Historians View Jacksonian Democracy: A Historiographical Study," unpublished doctoral dissertation, Univ. of Kentucky, 1974; Ronald P. Formisano, "Toward a Reorientation of Jacksonian Politics: A Review of the Literature, 1959–1975," *Journal of American History*, **64** (1976), 42–65; Edward Pessen, *Jacksonian America: Society, Personality, and Politics*, 2nd edn. rev (Homewood, Ill., 1978), pp. 351–67.

[2] Important surveys of Democratic ideology include Marvin Meyers, *The Jacksonian Persuasion: Politics and Belief* (Stanford, Calif., 1966); Rush Welter, *The Mind of America, 1820–1860* (New York, 1975); Major L. Wilson, *Space, Time and Freedom: The Quest for Nationality and the Irrepressible Conflict* (Westport, 1974).

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society along drastically different lines." Thus he argued that Jacksonian Democracy sought equality of opportunity and equality before the law. It consequently opposed and denounced the far more radical demand for equality of outcome; indeed the necessary and desired result of equal opportunity was an inequality of outcome. This outlook was indeed, as Hofstadter argued, that of a rising middle class. It was the philosophy of the liberated capitalist, of the dynamic entrepreneur, of the self-made man.[3]

But was it the philosophy of the Jacksonians? While it is true that this view of Jacksonian Democracy as a movement of middle class entrepreneurs has been severely criticized in recent years it is surely noteworthy that the view of Jacksonian egalitarianism which Hofstadter expressed has not been revised. The Jacksonian as embattled agrarian has now replaced, in many analyses, the Jacksonian as entrepreneur.[4] But historians still note that by espousing only the limited ideal of equal opportunity and equality before the law, the Democrat was powerless to prevent the emergence of an economy dominated by ever larger units of industrial and financial capital. As an ideology Jacksonian Democracy was shallow and incoherent; as a radical force it was impotent.

It can be suggested, however, that the radicalism of the Democrats was undermined not by an inadequate commitment to egalitarianism but by the zeal with which they clung to their faith in equality. For at the core of Democratic ideology was a notion that men were, as social and political units, essentially the same. The Jacksonian was a leveller.[5]

It would of course be unwise to press this idea too far. No Democrat in the Jacksonian era envisaged an absolute equality of wealth; no Democrat believed that men were precisely the same. Moreover, the Jacksonian was the first to insist that blacks and Indians could not be considered the equals of whites. Nor were women or children the equals of adult males. Thus some Americans remained more equal than others.

It must also be admitted that not all Jacksonians subscribed to the view of equality which I have chosen to term "levelling." The Democratic party in the 1820s, 30s and 40s was always internally divided. In the years following the Panic of 1837 the struggles within the party came to be predominantly between radical and conservative elements. It is, needless to say, the ideology

[3] Richard Hofstadter, *The American Political Tradition* (New York, 1948), p. 60.

[4] An important work in this vein is James Roger Sharp, *The Jacksonians versus the Banks: Politics in the States after the Panic of 1837* (New York, 1970).

[5] Some of the themes treated in this article are dealt with at greater length in John Ashworth, "'Agrarians' and 'Aristocrats': Party Political Ideology in the United States, 1837–1846," unpublished doctoral dissertation, Univ. of Oxford, 1978. This work is soon to be published by the Royal Historical Society.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.3 - The Domestication of Politics: Women and American Political Society, 1780-1920

Paula Baker

ARTICLE	The Domestication of Politics: Women and American Political Society, 1780-1920
JOURNAL	The American Historical Review 89, no. 3 (1984)
EXCERPT	Original journal pages 620-621
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The Domestication of Politics: Women and American Political Society, 1780–1920

PAULA BAKER

On one subject all of the nineteenth-century antisuffragists and many suffragists agreed: a woman belonged in the home. From this domain, as wife, as daughter, and especially as mother, she exercised moral influence and insured national virtue and social order. Woman was selfless and sentimental, nurturing and pious. She was the perfect counterpoint to materialistic and competitive man, whose strength and rationality suited him for the rough and violent public world. Despite concurrence on the ideal of womanhood, antisuffragists and suffragists disagreed about how women could best use their power of moral superiority. Suffragists believed that the conduct and content of electoral politics—voting and office holding—would benefit from women's special talents. But for others, woman suffrage was not only inappropriate but dangerous. It represented a radical departure from the familiar world of separate spheres, a departure that would bring, they feared, social disorder, political disaster, and, most important, women's loss of position as society's moral arbiter and enforcer.[1]

The debates over female suffrage occurred while the very functions of government were changing. In the late nineteenth and early twentieth centuries, federal, state, and municipal governments increased their roles in social welfare and economic life. With a commitment to activism not seen since the first decades of the nineteenth century, Progressive-era policy makers sought ways to regulate and rationalize business and industry. They labored to improve schools, hospitals, and

A number of individuals commented on earlier versions of this essay, including Dee Garrison, Kathleen W. Jones, Suzanne Lebsock, Richard L. McCormick, Wilson Carey McWilliams, John F. Reynolds, Thomas Slaughter, and Warren I. Susman. I am grateful for their criticism, advice, and encouragement.

[1] Accounts of the suffrage campaign include William H. Chafe, *Women and Equality* (New York, 1977); Carl N. Degler, *At Odds: Women and the Family in America from the Revolution to the Present* (New York, 1980), chap. 14; Ellen Carol DuBois, *Feminism and Suffrage: The Emergence of an Independent Women's Movement in America, 1848–1869* (Ithaca, N.Y., 1978); Eleanor Flexner, *Century of Struggle: The Woman's Rights Movement in the United States* (Cambridge, Mass., 1958); Alan P. Grimes, *The Puritan Ethic and Woman Suffrage* (New York, 1967); Aileen S. Kraditor, *The Ideas of the Woman Suffrage Movement, 1890–1920* (New York, 1965); David Morgan, *Suffragists and Democrats in America* (East Lansing, Mich., 1970); William L. O'Neill, *Everyone Was Brave: A History of American Feminism* (Chicago, 1969); Ross Evan Paulson, *Woman's Suffrage and Prohibition* (Glenview, Ill., 1973); and Anne F. Scott and Andrew M. Scott, *One-Half of the People: The Fight for Woman's Suffrage* (Philadelphia, 1975). Important treatments of the ideology of domesticity include Nancy F. Cott, *The Bonds of Womanhood: Woman's Sphere in New England, 1790–1835* (New Haven, 1975); Daniel Scott Smith, "Family Limitation, Sexual Control, and Domestic Feminism in Victorian America," in Mary Hartman and Lois W. Banner, eds., *Clio's Consciousness Raised* (New York, 1974), 119–33; Kathryn Kish Sklar, *Catherine Beecher: A Study in American Domesticity* (New Haven, 1973); and Barbara Welter, "The Cult of True Womanhood, 1820–1860," *American Quarterly*, 18 (1966): 151–74.

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other public services. These efforts, halting and incomplete as they were, brought a tradition of women's involvement in government to public attention.[2] Indeed, from the time of the Revolution, women used, and sometimes pioneered, methods for influencing government from outside electoral channels. They participated in crowd actions in colonial America and filled quasi-governmental positions in the nineteenth century; they circulated and presented petitions, founded reform organizations, and lobbied legislatures. Aiming their efforts at matters connected with the well-being of women, children, the home, and the community, women fashioned significant public roles by working from the private sphere.[3]

The themes of the debates—the ideology of domesticity, the suffrage fight, the re-emergence of governmental activism, and the public involvement of nineteenth-century women—are familiar. But what are the connections among them? Historians have told us much about the lives of nineteenth-century women. They have explained how women gained political skills, a sense of consciousness as women, and feelings of competence and self-worth through their involvement in women's organizations. But as important as these activities were, women were also shaped by—and in turn affected—American government and politics. Attention to the interaction between women's political activities and the political system itself can tell us much about the position of women in the nineteenth century. In addition, it can provide a new understanding of the political society in which women worked—and which they helped change.[4]

[2] Syntheses of the vast number of works on Progressive reform include John W. Chambers II, *The Tyranny of Change: America in the Progressive Era, 1900–1917* (New York, 1980); Otis L. Graham, *The Great Campaign: Reform and War in America, 1900–1928* (Englewood Cliffs, N.J., 1971); Arthur S. Link and Richard L. McCormick, *Progressivism* (Arlington Heights, Ill., 1983); Samuel P. Hays, *The Response to Industrialism, 1885–1914* (Chicago, 1957); William L. O'Neill, *The Progressive Years: America Comes of Age* (New York, 1975); and Robert Wiebe, *The Search for Order, 1877–1920* (New York, 1967). For a good recent review essay, see Daniel T. Rodgers, "In Search of Progressivism," *Reviews in American History*, 10 (1982): 113–32.

[3] Numerous works have appeared over the past decade that deal with the public activities of middle-class women. These works most often examine particular groups and attempt to trace the development of a feminist consciousness in the nineteenth century. See, for example, Barbara Berg, *The Remembered Gate—Origins of American Feminism: Women and the City, 1800–1860* (New York, 1978); Karen Blair, *The Clubwoman as Feminist: True Womanhood Redefined, 1868–1914* (New York, 1980); Ruth Bordin, *Woman and Temperance: The Quest for Power and Liberty, 1873–1900* (Philadelphia, 1981); Mari Jo Buhle, *Women and American Socialism, 1870–1920* (Urbana, Ill., 1981); Cott, *The Bonds of Womanhood*; Barbara Leslie Epstein, *The Politics of Domesticity: Women, Evangelism, and Temperance in Nineteenth-Century America* (Middletown, Conn., 1981); Estelle B. Freedman, "Separatism as Strategy: Female Institution-Building and American Feminism, 1870–1930," *Feminist Studies*, 5 (1979): 512–29; Linda K. Kerber, *Women of the Republic: Intellect and Ideology in Revolutionary America* (Chapel Hill, N.C., 1980); William Leach, *True Love and Perfect Union: The Feminist Reform of Sex and Society* (New York, 1980); Gerda Lerner, "The Lady and the Mill Girl: Changes in the Status of Women in the Age of Jackson," 15–30, "Community Work of Black Club Women," 83–93, "Political Activities of Anti-Slavery Women," 94–111, and "Black and White Women in Confrontation and Interaction," 112–28, in her *The Majority Finds Its Past: Placing Women in History* (New York, 1979); J. Stanley Lemons, *The Woman Citizen: Social Feminism in the 1920s* (Urbana, Ill., 1973); Keith E. Melder, *Beginnings of Sisterhood: The American Woman's Rights Movement, 1800–1850* (New York, 1977); Mary Beth Norton, *Liberty's Daughters: The Revolutionary Experience of American Women, 1750–1800* (Boston, 1980); Mary P. Ryan, *Cradle of the Middle Class: The Family in Oneida County, New York, 1790–1865* (Cambridge, Mass., 1981); and Anne Firor Scott, *The Southern Lady: From Pedestal to Politics, 1830–1930* (Chicago, 1970). A number of contemporary accounts are especially useful. See Mary R. Beard, *Women's Work in Municipalities* (New York, 1915); Jane Cunningham Croly, *The History of the Women's Club Movement in America* (New York, 1898); Mary A. Livermore, *My Story of the War* (Hartford, Conn., 1896), and "Women and the State," in William Meyers, ed., *Women's Work in America* (Hartford, Conn., 1889); and Frances E. Willard, *Woman and Temperance: Or, the Work and Workers of the Women's Christian Temperance Union* (Hartford, Conn., 1883).

[4] A number of studies examine the treatment of women in American political thought. These include Zillah Eisenstein, *The Radical Future of Liberal Feminism* (New York, 1981); Jean Bethke Elshtain, *Public Man, Private*

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.4 - Tennessee's Response to the Nullification Crisis

Paul H. Bergeron

ARTICLE	Tennessee's Response to the Nullification Crisis
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Tennessee's Response to the Nullification Crisis

By Paul H. Bergeron

Many students of southern history and of the Jackson period have been impressed with Professor William W. Freehling's stimulating study of the nullification controversy in South Carolina. His contention that the citizens of the Palmetto State in 1832 were disturbed by slavery agitation as well as the protective tariff has provoked much thought about the character of the nullification conflict, most of which has centered around the abolitionist threat which Freehling maintains was felt in South Carolina.[1]

It is well known that Tennessee and other sister states of the South did not support South Carolina's nullification cause. Yet very little has been done toward making intensive studies of the reactions of these states. Perhaps Professor Freehling's observation that Tennessee in 1832 was "a mildly antitariff and passionately pro-Jackson border state" reflects a commonly held interpretation of that state's position,[2] but such an explanation of Tennessee's failure to rally to South Carolina's side is at best a gross oversimplification.

The slavery question simply was not an issue in Tennessee in 1832 and 1833. There seems to be no evidence of concern about slavery in relationship to the nullification controversy.[3] The 1830 census reveals that the state had a sizable slave population, though only about half that of South Carolina. The number of slaves in Tennessee jumped significantly from 80,107

[1] Freehling, *Prelude to Civil War: The Nullification Controversy in South Carolina, 1816–1836* (New York, 1966), 255, 257, 259.

[2] *Ibid.*, 239.

[3] After the immediate nullification crisis had ended, one newspaper editor warned that the nullifiers had not ceased their efforts to keep their cause alive. He noted that the topic of slavery had been introduced to excite the prejudices and fears of the South in order to foster the creation of a southern league or confederacy. This use of the slavery question was dismissed by the editor as mere opportunism. See Allen A. Hall's editorials in the Nashville *Republican and State Gazette*, May 1, 8, 1833 (hereinafter cited as Nashville *Republican*).

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in 1820 to 141,603 in 1830. In the latter year the slave population accounted for slightly over 20 percent of the state's total population, while slaves constituted approximately 54 percent of South Carolina's population.[4] These figures suggest that Tennessee was very much involved with the peculiar institution, though clearly not to the same extent as South Carolina.

If Professor Freehling's estimate that fear for the possible fate of slavery helped lead South Carolina to nullification is correct, the smaller concentration of blacks in Tennessee might explain why a majority of its citizens were not as sensitive on this score as were the nullifiers of the Palmetto State and therefore did not perceive a threat to slavery in 1832. But, again, if Freehling's analysis is right, it is more difficult to explain why at least some Tennesseans did not share the nullifiers' apprehensions and attempt to unite public support behind South Carolina to combat the abolitionist threat.

Professor Freehling seems equally mistaken with regard to Tennessee politics. Far from being "passionately pro-Jackson," it was a state of warring and complicated factions. On the eve of the nullification crisis there were three recognizable political groups. The old faction headed by John Overton of Nashville was still furnishing leadership for the Jackson cause in Tennessee. Two of its principal lieutenants, John H. Eaton and William B. Lewis, had been a part of the national administration. In opposition to the Overton-Lewis-Eaton clique was its traditional rival, the Andrew Erwin group. This anti-Jackson alliance had been competing for power in Tennessee for slightly more than a decade. It had enjoyed at one time or another the support of such men as Senator John Williams, Newton Cannon, William Carroll, and others.[5]

But by 1830 a new pro-Jackson faction, composed of men resentful of the Overton-Lewis-Eaton domination, had developed. Included within its ranks were Hugh Lawson White, who had defected from the Overton group, Felix Grundy, James K. Polk, Cave Johnson, and Andrew J. Donelson. This group was vigorously opposed to the Bank of the United States, thereby

[4] The population data are drawn from U. S. Bureau of the Census, *Negro Population, 1790–1915* (Washington, 1918), 51, 57. Tennessee's slave population rose to 183,059 in 1840 or about 22 percent of the total population.

[5] Charles G. Sellers, Jr., *James K. Polk: Jacksonian, 1795–1843* (Princeton, 1957), 68, 69, 136; Thomas P. Abernethy, *From Frontier to Plantation in Tennessee: A Study in Frontier Democracy* (Chapel Hill, 1932), 241–42, 292–93; Richard P. McCormick, *The Second American Party System: Party Formation in the Jacksonian Era* (Chapel Hill, 1966), 226.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.5 - Vagabond Voters and Racial Suffrage in Jacksonian-Era Pennsylvania

William A. Blair

ARTICLE	Vagabond Voters and Racial Suffrage in Jacksonian-Era Pennsylvania
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WILLIAM A. BLAIR

Vagabond Voters and Racial Suffrage in Jacksonian-Era Pennsylvania

Pennsylvania eliminated black suffrage during its constitutional convention of 1837-1838. Although racism was a motivating force, white supremacists also reacted against the flood of so-called vagabond voters: migrants and transients unleashed by the economic changes of the Jacksonian era. Transient voters who had to move to find work became more typical in this period of expanding white suffrage. Bias against immigrants—including native-born men from other states—thus merged with hatred of African Americans as concerns for Democrats, as racial exclusion became one of the means by which to handle a constellation of elements that were viewed as having the potential to create disorder in power arrangements.

In 1837, delegates in Harrisburg argued over African American suffrage as they amended the Pennsylvania constitution. Democrats wanted to change the provision that allowed for black voting. The arguments for such an act involved more than racism, overlapping with class-based worries of the harm that could come if a coalition formed of black and white indigent and transient voters. Some hoped to overturn a constitutional provision requiring taxes to be paid in order to vote, but a delegate from Lancaster County warned against this move. He declared that the loss of an economic restriction would attract what one scholar has termed indigent transients and who he called "the *vicious vagrant, the wandering Arabs, the Tartar hordes*." Eliminating the tax qualification for voting, it was argued, opened the state to a potential flood of vagabond voters. As long as black people could vote—people who were often stereotyped as indigents themselves—it was feared that they would join with the transient newcomers to contest the interests of propertied white men. Bias against immigrants from other countries, as well as from other states, merged with stereotypes of black people to support exclusionary measures in an era otherwise characterized as expanding male suffrage. Increasing suffrage for non-propertied white

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men involved racial *and* class means to prevent undesirable people from exercising the ballot in Jacksonian America.[1]

The 1830s featured transitions in American life that created an emerging class of wanderers who had to move to find work. This included a wide range of people, from hucksters to ragpickers, sailors to canal-builders, railroad workers to day laborers. One scholar has described this phenomenon as a human column that moved through the antebellum regions of North or South, rural or urban, which typically lost from one-half to three-quarters of adult residents from one census to the next. In the case of Springfield, Illinois, the result meant that in every single election over the last decade before the Civil War, one-time voters outnumbered more permanent residents by seven to one. By 1850, 30 percent of Americans everywhere were either native-born migrants traveling between states or foreign-born immigrants.[2] The influx of these migrants to Pennsylvania became more of a concern during the Panic of 1837, which contracted employment opportunities, and as fugitive slaves and free blacks fled the slave states, which increased the African American population. Migrants who were considered poor, a drain on local charity, and potentially violent were met, as Kate Masur shows in her article in this issue, by expanding police powers at the municipal level.[3]

In the case of Pennsylvania, these concerns over indigent transients were also handled by using racial and economic measures to exclude people from voting. Racial proscription would take care of one set of individuals. The tax provision would work against transients. Requiring payment of taxes had the additional benefit of solving the problem of voter fraud. In an era without forms of voter identification, paying one's taxes provided proof of residency and of a person's intent to establish permanent roots in a community. In other words, permanent residents could be considered worthy electors with an interest in local issues and who bore the consequences of the result.

An increasingly restless population corresponded with what more than one scholar has described as a high-water mark for state constitution-making in the United States. The last thirty years before the Civil War saw the codifying and constitutionalizing of racial suffrage even as voting rights for white men generally expanded. It was an era in which American democracy was redefined, based on the exclusion of black people, women, and Native Americans. This was not taking place at the national level but within states, whose actions would inform the ruling made by Roger B. Taney in 1857 that black people were not citizens.

The 1830s in particular saw Tennessee, North Carolina, and Pennsylvania retreat from state constitutions that had allowed for the possibility

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Blair, "Vagabond Voters and Racial," 569–570.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.6 - Defending the Union: Andrew Jackson's Nullification Proclamation and American Federalism

Matthew S. Brogdon

ARTICLE	Defending the Union: Andrew Jackson's Nullification Proclamation and American Federalism
JOURNAL	The Review of Politics 73, no. 2 (2011)
EXCERPT	Original journal pages 245-246
JSTOR	https://www.jstor.org/stable/23016381

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The Review of Politics 73 (2011), 245–273.
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Defending the Union: Andrew Jackson's Nullification Proclamation and American Federalism

Matthew S. Brogdon

Abstract: This essay contends that we can better understand Andrew Jackson's distinctive account of federalism by looking outside the Jeffersonian and Jacksonian political traditions. More appropriate peers for Jackson, as a constitutional statesman, are John Marshall and Abraham Lincoln. Existing treatments of Jackson miss these connections because they focus primarily on his roles as party leader and reformer, to the neglect of his constitutional statesmanship. A major cause of this neglect is the apparent inconsistency between Jackson's "nationalist" account of the Union in the Nullification Proclamation and his advocacy of "states' rights" elsewhere, a tension that can be resolved by a closer reading of Jackson's rhetoric. Among other things, this redefinition of Jackson's legacy demonstrates that there is no necessary tension between a strong union and meaningful limits on federal power; nor is there a necessary affinity between narrow construction of federal power and state-compact theory.

While Andrew Jackson's roles as party leader and president receive extensive treatment in the existing literature, his contributions as a constitutional statesman—as an expositor and custodian of the constitutional order—receive little sustained attention.[1] But Jackson's constructive role in the development of the most fundamental features of the constitutional order, especially the federal system, deserves the same extensive treatment as his role in the development of Jacksonian democracy and the modern party system.[2] This essay therefore seeks to redefine Jackson's place in American

This article would not be in print without a great deal of encouragement and helpful criticism from David and Mary Nichols. Thanks are also due to Marty Medhurst, in whose graduate seminar the ideas contained herein were first conceived, and to the anonymous reviewers from the *Review of Politics* for their incisive criticism and fruitful suggestions.

[1]"Statesman," as used in this article, should be understood as a gender-neutral term.

[2]By focusing on the question of federalism, this discussion is the first step in a reassessment of Jackson's place in American constitutional development. His construction of separation of powers was also prescient and, like his account of the union, has

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constitutional development and contends that we can better understand his distinctive arguments by looking outside the Jeffersonian and Jacksonian political traditions; more appropriate peers for Jackson as a constitutional statesman are John Marshall and Abraham Lincoln. These three hold in common a coherent account of the Union—its democratic foundation, its supremacy, and its perpetuity—that forms the cornerstone of American constitutionalism and finds its fullest articulation in Jackson's Nullification Proclamation. Among other things, this redefinition of Jackson's legacy demonstrates that there is no necessary tension between a strong union and meaningful limits on federal legislative power; a powerful government is not necessarily an extensive one.

We will proceed by first examining the existing literature on the nullification controversy, which has undersold Jackson as a constitutional statesman because it relies too heavily on the preconceived categories of antebellum federalism. These categories find their fullest explication in the Webster-Hayne debate of 1830 and the ensuing controversy that culminated two years later in South Carolina's attempt to nullify the federal tariff law. This debate provides the context necessary to appreciate the distinctive account of the Union that Jackson provides in his proclamation. We will see that Jackson defies the familiar categories and demands comparison with other great constitutional statesmen of the early republic. In particular, we will demonstrate the remarkable similarities between Jackson's construction of federal power in his veto messages and Marshall's treatment of federalism in *McCulloch v. Maryland*, as well as the pervasive influence of Jackson's proclamation on Lincoln's response to secession. Conventional wisdom would see little affinity among these three statesmen, but Jackson's construction of the Constitution has far more in common with Marshall's and with Lincoln's than conventional wisdom would have us believe. The existing literature overlooks similarities of this sort because it fails to draw a clear distinction between Jacksonian democracy and Jackson's democratic constitutionalism, conflating Jackson's own construction of the Constitution with that of the political movement he spawned.

The Misconstruction of Andrew Jackson

Taking their cue from Henry Clay, scholars find pervasive inconsistency in Jackson's exposition of the federal principle, citing especially the supposed

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continuing relevance for the American political order. Surprisingly, though, competent treatments of Jackson's contribution to separation of powers have been limited primarily to tangential discussions in broader analyses of the presidency. See, e.g., David K. Nichols, *The Myth of the Modern Presidency* (University Park, PA: Penn State University Press, 1994), chaps. 1 and 4.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.7 - A Vagabond's Tale: Poor Whites, Herrenvolk Democracy, and the Value of Whiteness in the Late Antebellum South

David Brown

ARTICLE	A Vagabond's Tale: Poor Whites, Herrenvolk Democracy, and the Value of Whiteness in the Late Antebellum South
JOURNAL	The Journal of Southern History 79, no. 4 (2013)
EXCERPT	Original journal pages 799-800
JSTOR	https://www.jstor.org/stable/23799245

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A Vagabond's Tale: Poor Whites, Herrenvolk Democracy, and the Value of Whiteness in the Late Antebellum South

By David Brown

William Byrd famously recorded a scathing description of poor whites in 1728 while surveying the border between his native Virginia and neighboring North Carolina: "Surely there is no place in the world where the inhabitants live with less labour than in North Carolina. It approaches nearer to the description of Lubberland than any other, by the great felicity of the climate, the easiness of raising provisions, and the slothfulness of the people." Byrd compared these men to their Native American counterparts, as both groups supposedly "impose all the work upon the poor women." Indeed, while "wives rise out of their beds early in the morning" to work, their husbands "lie and snore, till the sun has run one third of his course." Once awake, "after stretching and yawning for half an hour, they light their pipes"; but if it is too cold when they finally "venture out into the open air . . . . they quickly return shivering into the chimney corner." Even in more temperate climes, "they stand leaning with both their arms upon the corn-field fence, and gravely consider whether they had best go and take a small heat at the hoe: but generally find reasons to put it off till another time." Byrd concluded, "Thus they loiter away their lives, like Solomon's sluggard, with their arms across, and at the winding up of the year scarcely have bread to eat." It was "a thorough aversion to labor that makes people file off to North Carolina, where plenty and a warm sun confirm them in their disposition to laziness for their whole lives."[1]

[1] William Byrd, *The Westover Manuscripts: Containing the History of the Dividing Line Betwixt Virginia and North Carolina; A Journey to the Land of Eden, A.D. 1733; and A Progress to the Mines* (Petersburg, Va., 1841), 27–28 (first through seventh quotations on 27; eighth quotation on 27–28; ninth quotation on 28). This article was long in the making and improved immeasurably from comments and questions when the author presented various drafts

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Alabamian Daniel R. Hundley published a remarkably similar character assassination of poor whites 132 years later. "[W]ives and daughters spin and weave the wool or cotton," he wrote, while men pursue "idle habits—hunting, beef-shooting, gander-pulling, marble-playing, card-playing, and getting drunk." Laziness was "[t]he chief characteristic of Rag Tag and Bobtail," who wish "to live from hand to mouth; to get drunk, provided they can do so without having to trudge too far after their liquor; to shoot for beef; to hunt; to attend gander pullings; to vote at elections; to eat and to sleep; to lounge in the sunshine of a bright summer's day, and to bask in the warmth of a roaring wood fire, when summer days are over." These observations were made in very different contexts—colonial Carolina was barely more than a frontier settlement, while Alabama in 1860 was a flourishing, dynamic slave state—but the disdain with which both authors viewed their subjects was abundantly clear. From the lethargic and lackadaisical lifestyle, sustained by exploiting women, to the love of the warm sun and home fire, Hundley's poor white men were the descendants of those Byrd described. This group seemingly transcended time, ignoring the rules of historical evolution. "The instructive lessons of history convey no intelligence to such minds; the experience of the past serves not to guide their footsteps," Hundley declared.[2]

The "poor white trash" stereotype is one of the most enduring in the history of the American South, and the sentiments of Byrd and Hundley have been echoed by many others from a wide variety of perspectives. An array of authors and polemicists in the nineteenth century, from abolitionists to travel writers, were followed by playwrights, novelists, and film directors in the twentieth, producing works that collectively reaffirmed the basic traits of laziness, illiteracy, and debauchery. Surprisingly, perhaps, southern historians have also encouraged this stereotype. In the first three-quarters of the twentieth century, they did not make the poor white lifestyle seem quite as carefree as did Byrd and Hundley, but scholars wrote with equal disdain. Ulrich B. Phillips's

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at the Universities of Cambridge, Liverpool, London, and Sussex, at Queen's University Belfast, and at the University of North Carolina at Chapel Hill (in the James A. Hutchins Lectures). A version was also given at the inaugural meeting of MASH (Manchester-Sheffield Seminar in American History). I must also thank Vikki Bynum, Chuck Bolton, David Gleeson, J. William Harris, James Roark, and especially Brian Kelly, who provided terrific encouragement as well as a superb critique. Research for this article was supported by the British Academy and the Arts and Humanities Research Council.

[2] "Poor White Trash," chap. 7 of Daniel R. Hundley, *Social Relations in Our Southern States*, edited by William J. Cooper Jr. (Baton Rouge, 1979), 250–83 (first, second, and third quotations on 262; fourth quotation on 262–63; fifth quotation on 252).

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.8 - Jeffersonian Ideology and the Second Party System

David Brown

ARTICLE	Jeffersonian Ideology and the Second Party System
JOURNAL	The Historian 62, no. 1 (1999)
EXCERPT	Original journal pages 17-18
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Jeffersonian Ideology and the Second Party System

David Brown

From the demise in 1815 of Federalism, the political faction favoring a strong central government, to the rise of the slavery question in the 1850s, American political history was characterized by bitter partisan warfare on the part of the Democratic Party of Andrew Jackson and the Whigs. In a remarkable departure from past and future party development, however, both of these parties understood their respective coalitions to have originated from a common ideological source, namely, Thomas Jefferson. No other American president or political party has engendered the kind of ideological flexibility promoted by Thomas Jefferson and the Democratic-Republican Party.

While George Washington and John Adams also were national icons, their brand of deferential Roman republicanism did not survive the eighteenth century. Washington, the "Patriot King," believed his role as president elevated him above party machinations and ideological debates, and he left very little for his partisan supporters to use but his name. To a large degree, Washington's influence in shaping the political culture of the new nation did not extend beyond his death. His Federalist successor, John Adams, suffered the ignominy of electoral defeat by Jefferson in 1800, and the nation's first party government rarely competed effectively for national office afterwards. Jefferson, on the other hand, bequeathed to partisan heirs James Madison and James Monroe the blueprint for a republican political economy of westward expansion promoted by the activist agrarian state. The "Virginia dynasty" of Jefferson, Madison, and Monroe won six consecutive presidential elections from 1800-24 and enjoyed the benefit of a Democratic-Republican-dominated Congress throughout.

While it is true that Federalists maintained a viable opposition to the Jeffersonians in the early nineteenth century, Democratic-Republicans never lost control of the executive or legislative branches of government. Even for the next three decades, most Americans, whether Jacksonian or Whig, considered themselves Jeffersonians. This paper will consider the ideological and partisan roles played by Jefferson, his followers, and the shapers of historical memory in the second party system. Statesmen from all sides found something in a selectively reconstructed

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Jeffersonianism upon which to build platforms, such that Jefferson and his coalition created or contributed to all the political ideologies in mid-nineteenth-century America. The Jefferson legacy, in other words, served both the proponents of radical egalitarianism and the champions of Southern slavery.

In 1826, America witnessed the passing of one political generation and the rise of another. On July Fourth, Thomas Jefferson, the spiritual leader of the Democratic-Republican party that had dominated American politics for nearly three decades, died at the age of 83 in his home at Monticello. Later that year, the realignment of congressional alliances that led to the second party system began in earnest. Considering Jefferson's role as the dominant statesman of his day, it was fitting that aspirants to public office invoke his name, from the states' rights oriented Virginia aristocrats to the New England Brahman John Quincy Adams.

Simply put, Jefferson was many things to many people. To some, he was the "Apostle of Liberty," author of the Declaration of Independence and the architect of a democratic vision of American society predicated on the westward expansion of autonomous farmers beyond the reach of intruding institutional restraints. In sum, this was the Jacksonian interpretation of the Jeffersonian movement. Men like Andrew Jackson (1829-37), James Polk (1845-49), and Martin Van Buren (1837-41) located the crystallization of the Democratic-Republican party as far back as the 1790s, when Jefferson and his followers opposed Federalist Alexander Hamilton's push toward economic centralization. Van Buren recorded his *Autobiography* that "my earliest political recollections were those of the day when I exulted at the election of Mr. Jefferson, as the triumph of a good cause over an Administration and Party, who were as I thought subverting the principles upon which the Revolution of founded."[1] Jackson revealed the depths of such partisan division when he wrote in 1817 that the "kind of men . . . [presently] called Federalists; are really monarchists, & traitors to the constituted government."[2]

To the heirs of Federalism, however, Jeffersonian principles meant the administration of government by the kind of statesman aristocrats who chartered the Second National Bank in 1816 and promoted federally financed improvements in education and transportation in the years immediately following the War of 1812. In the opinion of one such heir, National Democratic-Republican party (1824-34) and Whig party (1834-54) leader Henry Clay, Jefferson was a farsighted proponent of internal improvements who overcame constitutional doubts to implement a national transportation system. In a congressional speech on domestic manufacturing in 1818,

[1]John C. Fitzpatrick, ed., *Autobiography of Martin Van Buren* (Washington, 1920), 139-49, 142.

[2]Jackson to James Monroe, 6 January 1817, in *The Papers of Andrew Jackson*, ed. Harold D. Moser, David R. Hoth, and George H. Hoemann, vol. 4 (Knoxville, 1961), 81.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.9 - A Reconsideration of John C. Calhoun's Transition from Nationalism to Nullification

Gerald M. Capers

ARTICLE	A Reconsideration of John C. Calhoun's Transition from Nationalism to Nullification
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EXCERPT	Original journal pages 34-35
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A Reconsideration of John C. Calhoun's Transition from Nationalism to Nullification

By Gerald M. Capers

Like Washington and Lincoln, in the American legend John C. Calhoun is a symbol—a symbol of the Old South which was to be destroyed in the Great Rebellion that began a decade after his death. Unlike Washington and Lincoln, who recently at last have been portrayed as individuals, in the national tradition Calhoun remains a symbol, not a personality, largely because of the treatment he has persistently received from his biographers.

When the Carolinian announced his candidacy for the presidency in the last days of 1821, his intimate cabinet colleague, John Quincy Adams, regarded the move as deliberate and dishonest treachery. The New Englander had recently received, through a third party, what he considered positive assurance that the Secretary of War had no intention of entering the race. During the bitter months of the presidential contest which followed, he secretly poured out his venom on the unsuspecting Calhoun in his diary, and in its pages every action of his southern rival was recorded as that of a self-seeking, hypocritical, and scheming politician. This famous diary, published in the 1870's, was used by Hermann E. von Holst as the basis for his hostile biography of the southerner.[1] Thus in the Reconstruction era Calhoun, seen through Adams' biased eyes, became the personification of the unprincipled and wicked South that plotted rebellion years before she finally attempted it.

Most of his biographers, being southerners, have in retaliation por-

[1] Hermann E. von Holst, *John C. Calhoun* (Boston, 1882).

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trayed him as the symbol of the purity of southern motives. In their eyes both Calhoun and the South are above reproach, never motivated but by the loftiest incentives. Calhoun the man has remained in the clouds, symbolic of the Lost Cause. As a natural consequence the fiction persists that his great contemporaries, Jackson, Clay, and Webster, were ambitious men who used every means within their power to attain the presidency. But the Carolinian, willing in his high patriotism to accept that office because he so conspicuously had the interests of the whole nation rather than his own at heart, never stooped to low personal ambition or to the sordid methods of his rivals.

It must be admitted that the letters and papers of Calhoun lend a superficial support to this thesis, but there is a stronger case for a contrary interpretation. Deistic in religion but, like Adams, puritanical in mental habit and temperament, it was a psychological necessity to Calhoun never to admit personal ambition and to rationalize his every political act exclusively in terms of national interest. Such rationalization was not only temperamentally necessary, but his shift in the middle of his career from extreme nationalism to an extreme state rights position made it all the more essential. Calhoun apparently was sincere in changing his opinion, and he conveniently used the arguments of his own rationalization in an effort to convince the nation of his intellectual integrity. Confident of his own logic, he regarded those who disagreed as totally in error and frequently considered them positively vicious. Webster made an identical shift in the opposite direction about the same time, yet he was not subject in any such degree to an urge for self-justification. Jackson and Clay, since their appeal was more to men's hearts, never bothered themselves about the matter of consistency. While much of Calhoun's rationalizing was unconscious, it satisfied his peculiar complex, and it has generally been accepted by his biographers at face value.[2]

[2] Besides von Holst's work, the following are full-length biographies of Calhoun: John S. Jenkins, *Life of John C. Calhoun* (Auburn, 1850); Gustavus M. Pinckney, *Life of John C. Calhoun* (Charleston, 1903); Gaillard Hunt, *John C. Calhoun* (Philadelphia, 1908); William M. Meigs, *Life of John C. Calhoun* (2 vols., New York, 1917); Arthur Styron, *The Cast-Iron Man: John C. Calhoun and American Democracy* (New York, 1935); Charles M. Wiltse, *John C. Calhoun, Nationalist, 1782-1828* (Indianapolis, 1944).

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.10 - Abuse of Power: Andrew Jackson and the Indian Removal Act of 1830

Alfred A. Cave

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Abuse of Power: Andrew Jackson and the Indian Removal Act of 1830

Alfred A. Cave

While virtually all historical accounts of the Jackson era, both scholarly and popular, devote some space to the relocation of Indian inhabitants of the eastern United States to an Indian territory west of the Mississippi, very few acknowledge that the process as it was carried out by the Jackson administration violated guarantees contained in the congressional legislation which authorized removal. Indeed, historians frequently misunderstand and often misrepresent the provisions of this law. One recent writer, for example, claims erroneously "in 1830 the United States Congress passed . . . a statute authorizing use of military force to compel the relocation of all indigenous peoples east of the Mississippi River to points west."[1] A widely read survey of American history maintains that the law empowered "the President to send any eastern tribe beyond the Mississippi if he wished, using force if needed." Other textbooks contain the same claim.[2] While specialists familiar with the primary sources are certainly aware of the limits of the legislation passed in 1830, they have generally focused on the removal process itself and, for the most part, have devoted little if any attention to the discrepancy between the law's provisions and the administration's

Alfred A. Cave is a professor of history at the University of Toledo.

1. Ward Churchill, *A Little Matter of Genocide* (San Francisco, 1997), 144.

2. Quotation from Irvin Unger, *The United States: The Questions of Our Past* (Upper Saddle River, N.J., 1999), 235. For other examples of textbook accounts that imply, or state explicitly, that the act authorized forced removal, see George Brown Tindall and David E. Shi, *America: A Narrative History* (New York, 1992), 1: 411; Joseph R. Conlin, *The American Past* (Fort Worth, 1993), 242–43; John Mack Farragher, Mari Jo Buhle, Daniel Czitrom, and Susan H. Armitage, *Out of Many: A History of the American People* (Upper Saddle River, N.J., 1999), 178; Gary B. Nash, et al., *The American People: Creating a Nation and a Society* (New York, 2000), 310; Carol Berkin, Christopher L. Miller, Robert W. Cherny, and James L. Gormly, *Making America: A History of the United States* (Boston, Mass., 1995), 322–23.

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actions.[3] Neither of the two major studies of Jacksonian Indian removal devote any space to that issue.[4] Others note in passing that the law did not authorize the measures Jackson used, but provide few details.[5] As a result, the impression that Jackson had received congressional authorization to remove Indians from their homelands at the point of a bayonet remains widespread.

The Indian Removal Act passed by Congress in 1830 neither authorized the unilateral abrogation of treaties guaranteeing Native American land rights within the states, nor the forced relocation of the eastern Indians. Yet both occurred, on a massive scale, during Andrew Jackson's administration and were the result, not

3. Jackson's misuse of the Indian Removal Act is recognized in Anthony F. C. Wallace, *The Long Bitter Trail: Andrew Jackson and the Indians* (New York, 1993). Wallace's very perceptive book, a popular supplemental text, is brief and lacks footnotes. But other accounts of the Indian Removal Act in the specialized literature are less satisfactory. Quite often, Jacksonian scholars have simply ignored the connection between legislation and removal. To cite two recent examples, Charles Sellers in *The Market Revolution* (New York, 1991) condemns Jacksonian Indian policy (308–12), but does not discuss the Indian Removal Act. Andrew Burstein, in *The Passions of Andrew Jackson* (New York, 2003), writes of the "devastating effect that Andrew Jackson's Indian policy had on his country" (236), but makes no mention of the law.

4. Michael Paul Rogin, *Fathers and Children: Andrew Jackson and the Subjugation of the American Indian* (New York, 1975), offers a detailed, highly critical account of Jackson's tactics in dealing with Indians, but ignores the opposition to Indian removal and does not deal specifically with the Indian Removal Act. Rogin consequently fails to place the removal program within its political context. Ronald N. Satz, *American Indian Policy in the Jacksonian Era* (Lincoln, Neb., 1975), provides a fairly good account of the coercive measures employed by the Jackson administration in carrying out its removal policy (97–115), but fails to note the discrepancy between those measures, Jackson's earlier promises, and the terms of the law. Satz states simply that "the Removal Act of 1983 provided the Jackson administration with congressional sanction and the necessary funds to begin relocating eastern tribes in the trans-Mississippi west" (64).

5. Francis Paul Prucha, in *Indian Policy in the Formative Years: The Indian Trade and Intercourse Acts, 1780–1834* (Cambridge, 1962), declared that the while law "made no mention of coercion to remove the Indians, and on the surface it seemed harmless and humane enough . . . those who knew the policy and practice of Jackson and the Georgians understood that force would be inevitable" (238–39). In a similar vein, Robert Remini in *Andrew Jackson and His Indian Wars* (New York, 2001) observes that under the Removal Act, "Indians had to sign treaties by which they formally gave their consent to migrate. And that could prove exceedingly difficult" (233). However, neither writer fully explored the conflict between the law and the actions of the administration. Prucha and Remini are both apologists for Jackson, stressing not only the political constraints he faced, but his presumed benevolent desire to protect and preserve Indians through removal. Both, in this writer's estimation, downplay and in some instances ignore the illegality of much of Jackson's Indian policy. There is also a tendency among some writers to interpret the law in the light of the outcome of the removal controversy. Thus Jill Norgren, in *The Cherokee Cases: The Confrontation of Law and Politics* (1996), recognizes that the law ostensibly continued the voluntary, treaty-based removal program in place prior to Jackson's election. Norgren claims, however, that "the tenor of the pro-removal debate and the very nature of the bill questioned tribal sovereignty and aboriginal land titles" (85–86). The result is a discounting of the very real opposition to coerced removal and an oversimplification of this tragic episode in American history.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.11 - John Ross and the Cherokee Resistance Campaign, 1833-1838

Walter H. Conser Jr.

ARTICLE	John Ross and the Cherokee Resistance Campaign, 1833-1838
JOURNAL	The Journal of Southern History 44, no. 2 (1978)
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John Ross and the Cherokee Resistance Campaign, 1833–1838

By Walter H. Conser, Jr.

One of the better-known episodes in the relations between American Indians and the federal government is the forced removal of the majority of the eastern tribes to the western side of the Mississippi during the late 1830s and early 1840s. Included among the "Five Civilized Tribes" of the southeastern United States (Cherokees, Creeks, Choctaws, Chickasaws, and Seminoles), the Cherokee Indians had a well-developed culture with a written language, a newspaper, numerous missionary schools, ample farms, and even black slaves. Such a level of material development earned them praise and recognition during and subsequent to the removal crisis. Despite such widespread attention, few have noticed that, unlike the opposition of the Creeks and Seminoles, the resistance to removal by the Cherokees was nonviolent. Similar to traditional religious nonviolence, yet amenable to questions of efficacy as well, the Cherokee resistance campaign belongs to that unique type of struggle called nonviolent action.[1]

As wielded by the Cherokees, this vigorous nonviolent resistance combined a formidable constitutionalist rebuttal with various methods and techniques of opposition. These techniques ranged from moral appeals to political and social noncooperation, for the Cherokee counterattack was not to be in a pitched battle between armies but through a dogged noncooperation in the name of their enemies' own ideals. Through their attempt to obstruct, resist, and defeat the designs of the federal government, the Cherokees developed a sophisticated and widely supported countermeasure to Indian removal. Thus, an investigation of the Cherokee strategy

[1] For the meaning of this term and the discussion of the techniques of nonviolent action I have drawn heavily on the work of Gene Sharp. In Sharp's analysis military resistance sees power as the capacity to destroy people and property, and traditional religious pacifism focuses on changing situations through moral witness, but nonviolent action works through the sustained withdrawal of obedience and cooperation on a massive scale. Thus, as opposed to traditional religious pacifism, nonviolent action combines practical strategic considerations with a relative moral preference for nonviolence, although violence is not rejected in principle. See Sharp, *The Politics of Nonviolent Action* (Boston, 1973), especially 3–445. I wish to thank William G. McLoughlin and E. Bruce Tucker for their criticisms of earlier drafts of this paper.

Mr. Conser is a graduate student in history at Brown University.

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provides both a little-known example of nonviolent resistance and an index to several tensions, conflicts, and choices confronting Jacksonian America.

Since 1785 the Cherokees had negotiated regularly with the federal government over land cessions and possible removal west of the Mississippi. In 1830 the Indian Removal Act was passed. This legislative sanction increased substantially the pressure on the tribes to emigrate and, with the signing of a removal treaty (the Treaty of New Echota), culminated in the Trail of Tears and settlement in present-day Oklahoma. The resistance campaign then was a failure. In retrospect it might appear that by 1828 and Jackson's election the total removal of the Indians by the government was essentially accepted by federal policy makers. Yet even if the Cherokees had little hope of success, the history of such resistance campaigns is much more than simply the story of who won the struggles. Examination of these campaigns illustrates the moral choices and subsequent policy options (considered or not) within which the struggle was pursued. Investigation of such controversies also highlights the perceptions of each side and their mutual expectations of one another. Lastly, there are the social and political dynamics whereby previously neutral third parties were sought after, manipulated, or otherwise affected.

These questions are significant. Indeed, for John Ross, principal chief of the Cherokee Nation, and the vast majority of Cherokees the issue of resistance to removal assumed a critical importance in the early 1830s. The Indian question was also important for northern and southern whites. Thus, as critics and supporters of President Andrew Jackson joined in dispute, it became evident that the issue of removal included a conflict over the motives and purposes of America's expansion. In order, therefore, to assess the Cherokees' alternative form of struggle, it is important to examine the whole of the Cherokee resistance campaign: the context and content of Ross's arguments, the techniques of popular resistance, the sources for the adoption of such a mode of resistance, and finally, the results of the campaign and its reasons for failure.

By 1833 the political configuration both within the Cherokee Nation and between the Nation and the federal government had been fully developed. Originally organized politically as a very loose confederacy of clans and towns, the Cherokees by the middle of the eighteenth century had elected a principal chief and a National Council in order to deal more efficiently with federal negotiators. By 1810 the tribe had set up its own national courts and police force and by 1827 had its own written constitution. While

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.12 - Jackson, Polk, and Johnson: Defenders of the Moral Economy

Wayne Cutler

ARTICLE	Jackson, Polk, and Johnson: Defenders of the Moral Economy
JOURNAL	Tennessee Historical Quarterly 54, no. 3 (1995)
EXCERPT	Original journal pages 180-181
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Deeply devoted to the preservation of the Union and convinced of its underlying fragility, Tennessee's three presidents of the United States opposed the use of the general government in changing the young republic's economic orientation from producer to market capitalism. Their vision of a moral economy looked to an ever wider distribution of wealth predicated upon the labor of independent farmers and artisans; and their insistence upon a general government of limited powers assumed that the consolidation of political power could only lead to an unwanted, unjust, and undemocratic redistribution of wealth from the many to the few.[1]

Claiming the mantle of Thomas Jefferson and the more radical traditions of the American Revolution, the Jacksonians favored the diffusion of political and economic power as the moral economy's first line of defense. Although the term "moral economy" did not have currency in Jacksonian America, the notion of a communitarian lifestyle did dominate farm and village life from colonial days forward, both as plantation and common green. Farmers and craftsmen controlled the means of production as well as the distribution of their products; they fitted their labors and prices to what they called a "competency" or "living"; they took incidental surpluses to local markets for sale or barter. The work ethic of their producer capitalism sanctioned the independent status of their labor and the virtue of their plain living. Speculating on commodity futures and sweated labor contracts did not comport with those moral sensitivities derived from their faith in republican simplicity.[2]

From a political point of view, the union of republican states would provide mutual protection against foreign domination and intrastate trade wars. Strong and weak states would form what Thomas Jefferson called an "empire of liberty" as opposed to the colonial empires of commercial privilege. On the other hand, leaders of the nineteenth-century market revolution, variously called National Republicans, Whigs, and Republicans, saw little purpose in having a union that did not create greater national wealth and power. Although Andrew Jackson, James K. Polk, and Andrew Johnson focused their political wars against market consolidation and did so with varying degrees of success, they have appeared in many accounts as agrarian conservatives devoted to the expansion of slavery, the obstruction of progressive reforms, and the preservation of states' rights.[3]

Yet this recurring Whig version of history has masked one of the most radical premises of Jacksonian Democracy—that the voluntary union of the states rested upon the ascendancy of producer capitalism. Stated negatively, the market interests of the North, South, and West stood in opposition one to another and could not be bridged more closely than the compromises struck in the Constitution itself. Whig efforts to bind the nation together commercially assumed a natural comity of sectional interests that had never existed; and when put to the test, national economic integration could not be effected apart from military coercion. Jacksonians expressed their opposition to the market revolution in many venues, but perhaps nowhere more clearly or more ably than in the veto messages of their presidents. In those arguments, the three Tennessee presidents took common ground in defense of the Old Democracy.[4]

On July 10, 1832, Andrew Jackson vetoed the bill rechartering the Bank of the United States. He did so for several reasons, not the least of which was the Bank's attempt to defeat his bid for reelection. Nicholas Biddle, president of the Bank, fully expected Jackson to veto its recharter no matter when Congress might take action; the question could not be put off, for the Bank's twenty-year charter would expire before the end of a second Jackson term. Thus to assure the Bank's continuance, he must defeat Jackson or any other Democrat likely to be nominated in his place. President Biddle calculated that his Bank's influence in Congress also extended down through the ranks of the American electorate and that the voters would retire Jackson to the Hermitage if he killed the Bank. With the help of Senators Henry Clay and Daniel Webster, President Biddle sent Jackson the recharter bill on July 3, just four months before the presidential election; and an ailing chief executive remarked upon receipt of the bill that the Bank was trying to kill him but that he would do the killing. And so with the help of Amos Kendall and Roger Taney, he wrote the most famous veto message in American history.[5]

Jackson took his case to the American people over the heads of both Congress and Court, not because he wanted to assert an imperial legislative power or diminish the sphere of judicial advice, but because he understood that the *de facto* basis for the union of states resided in the harmony of interests and political cohesion of an acquiescent majority. The foundations of all democratic rule rested on the consent of the gov-

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erned, and on that score Jackson submitted the Bank question to the rulers for their judgment. In so doing, he risked both place and reputation, and the magnitude of his trust flattered his countrymen more than any prior compliment in their republican tradition. The Hero of New Orleans knew the American people and their wishes better than their legislators and judges.

The producing class of independent yeomen and journeymen filled the ranks of the acquiescent majority, and to that class prejudice Jackson addressed his veto message. He rejected the utopian notion that human institutions could produce an "equality of talents, of education, or of wealth." Problems of inequality in a just society did not arise in and of distinctions themselves but from their "artificial" sources:

> In the full enjoyment of the gifts of Heaven and the fruits of superior industry, economy, and virtue, every man is equally entitled to protection by law; but when the laws undertake to add to these natural and just advantages artificial distinctions, to grant titles, gratuities, and exclusive privileges, to make the rich richer and the potent more powerful, the humble members of society—the farmers, mechanics, and laborers—who have neither the time nor the means of securing like favors to themselves, have a right to complain of the injustice of their Government. There are no necessary evils in government. Its evils exist only in its abuses.[6]

The "humble members of society" category did not include those who were in various states of dependency such as children, women, Indians, and slaves. In the South, where dependents formed the numerical majority of residents, the "humble members" wrapped themselves in a libertarian creed with a knowing regard for their double standards. Yet, the most revolutionary aspect of the republican experiment lay precisely in the fact that the second generation of white males had lifted themselves from the dreaded state of dependency and earned their own competency on their own land and in their own trades. Moral sensibility, neither then nor now, can excuse their failure to widen the scope of civil and economic independency; nor with any greater ease can it ignore their very real struggles to retain their own independence. As the market revolution came to dominate the American economy, millions of native white males lost their economic independence and joined their immigrant counterparts in the dependency of waged labor. The myth of American social progress has justly celebrated the ending of the legal dependency of slaves and women, but those advances have come without viable economic independence. Indeed, the vast majority of American adults and youth now work for wages and possess neither land nor craft with which to sustain economic independence.

Jackson allowed that the general government could create a national bank for the necessary and proper purposes of collecting, keeping, and disbursing Treasury funds. He reminded Congress that in his second annual message he had so stated, but that he had also warned that the Bank charter of 1816 granted powers and privileges quite beyond the test of what was necessary and proper. Legislative precedent cut both ways, for various congresses of the past had approved and disapproved of national banking charters. Jackson noticed that the Supreme Court had given its favorable opinion of Congress' power to charter a bank and define what might be necessary and proper; he disagreed with the Court's conclusion that the states could not tax the profits on private, nonpublic funds apportioned to the Bank's branch offices. Jackson argued heatedly that Congress had no power to restrict the taxing power of the states, much less to create tax-free monopolies designed to transfer the wealth of one state to another. In any case, the Congress and president, acting in their legislative capacities of writing and approving laws, had no obligation to accept the Supreme Court's view of the Constitution beyond "such influence as the force of their reasoning may deserve."[7]

Equally odious to a free citizenry, foreign shareholders would be exempted altogether from paying state taxes on their stock holdings. A truly national bank would exclude foreign ownership of stock for a number of reasons: profits would remain at home, foreign influence on Bank policy would diminish, and in case of war, government loans might be facilitated and protected. Although the latter point might appear to be no more than flag waving, Jackson no doubt knew how the first Bank of the United States influenced the government's credit prior to the War of 1812. The first Bank had never indicated any interest in financing a war with Great Britain. Indeed, the peace faction in James Madison's cabinet, led by Albert Gallatin, had

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.13 - An Administrative Trail of Tears: Indian Removal

Ethan Davis

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An Administrative Trail of Tears: Indian Removal

by ETHAN DAVIS*

ABSTRACT

In the early nineteenth century, the federal government uprooted the so-called five "Civilized Tribes" of the South and sent them westward to modern day Oklahoma. This article rediscovers the long-forgotten administrative system that guided the removal of one of those tribes: the Choctaws. Because judicial review was non-existent, control of the removal was concentrated in the so-called external law—the statutes passed by Congress and the treaties between the United States and the Indian tribes—and in the so-called internal law—the regulations promulgated by the War Department and the operational system developed by the administrators themselves. Drawing almost exclusively on primary sources, this article shows how the interrelationships between these layers of administrative law produced a tragic result.

INTRODUCTION

The decade of the 1830s was one of immense upheaval for the American Indians. Responding to the clamoring of whites in Mississippi, Georgia, and Florida, the federal government uprooted the so-called five "Civilized Tribes" of the South—the Choctaws, Creeks, Chickasaws, Seminoles, and Cherokees—and sent them westward to modern day Oklahoma. Under the Department of War's supervision, tens of thousands of these Indians trekked hundreds of miles. Trapped in impassable swamps in the middle of brutal winters and facing epidemics of cholera and dysentery, many perished on this "trail of tears." The tale of their suffering has been told.[1]

Modern scholars have not, however, adequately studied the administrative system that brought about the removal. This may be because conventional wisdom nowadays pegs the beginning of the administrative state in 1887, with the creation of the Interstate Commerce Commission. But the removal of the southern Indians in the 1830s required the assembling of a corps of federal removal agents, the purchase of hundreds of thousands of pounds of supplies and provisions, and the construction of supply depots along the road to the west. It might be said that the men who removed the Indians composed their own nineteenth century version of a self-contained administrative agency.

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* J.D., 2008, Yale Law School. Thanks to Professor Jerry Mashaw for advice and guidance.

1. *See generally* GRANT FOREMAN, INDIAN REMOVAL (2d ed. 6th prntg. 1972).

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In the 1830s, no less than today, the existence of administration raised the ever-present problems of limits, controls, consistency, and accountability. Modern day administrative lawyers tend to think of the courts as the final overseers of administrators, but the courts were nowhere to be found during the removal of the Indians. Though the removal proceeded according to an Act passed by Congress and treaties negotiated with each Indian tribe, no court had the opportunity to interpret either legal text during the removal. Judicial review was nonexistent. The control of the removal was left, therefore, in the hands of the administrators themselves, and to a lesser extent, the political branches. As Jerry Mashaw has argued, the "internal law of administration" is consistently understudied, yet it is arguably of equal or greater significance than judicial or political controls.[2] Some important questions of administrative law in the 1830s, then, were as follows: To what extent would Congress assert itself over the removal? How much power would the president enjoy to direct day to day operations? Who would prevail in conflicts between Congress and the president? How would the administrators standardize the removal process? How would administrators limit their own discretion?

This article pieces together the *ad hoc* layers of political and administrative controls that arose in the 1830s to impart direction and accountability to the removal. I demonstrate how four legal texts guided the operation. Part I evaluates the first legal layer: the Removal Act of 1830. That federal statute, which survived intense debate in the Senate and the House, authorized President Jackson to negotiate removal treaties with the Indian tribes. It did not, however, limit the president's powers in any meaningful way. Jackson would be free to offer tribal leaders financial inducements and to negotiate with minority factions. Moreover, the Removal Act did not address, let alone resolve, any of the significant administrative details of the removal. Instead, most of the debate centered around whether the Indians could constitutionally exercise self-government within the borders of U.S. states. The Removal Act was part of the external law of the removal.

Part II examines the second layer of legal guidance: treaties with the five southern Indian tribes. As dissenting congressmen had predicted, Jackson's treaty negotiators resorted to a series of false choices and tough tactics to induce the Indians to surrender their lands. Moreover, while the completed treaties spent pages addressing the distribution of the lands the Indians would leave behind, no thought was given to the technical details of removing the Indians to their new homeland. When Jackson submitted the treaties to Congress, the Senate exercised its ratification role lightly at best. The treaties formed the second half of the external law.

Part III covers the internal law of the Choctaw removal. I first recount the troubled departure of a group of Choctaws in the winter of 1831 to 1832. Due to lack of planning, oversight, and supervision, this first group of emigrating Indians faced many unnecessary hardships. In the late

2. See Jerry Mashaw, Recovering American Administrative Law: Federalist Foundations, 1787-1801, 115 Yale L.J. 1256 (2005).

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.14 - Outgrowing the Compact of the Fathers: Equal Rights, Woman Suffrage, and the United States Constitution, 1820-1878

Ellen Carol DuBois

ARTICLE	Outgrowing the Compact of the Fathers: Equal Rights, Woman Suffrage, and the United States Constitution, 1820-1878
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Outgrowing the Compact of the Fathers: Equal Rights, Woman Suffrage, and the United States Constitution, 1820–1878

Ellen Carol DuBois

One aim of this special symposium on the United States Constitution is to depict the Constitution as a historically contested arena. In particular, the history of constitutional demands by popular movements counters the Reagan administration's exclusive focus on the words and intents of the Framers. In the midst of the Constitution's bicentennial celebration, it is especially important for historians to recall the radical tradition of equal rights that flourished as a part of nineteenth-century republican thought. Women's rights demands were an important aspect of that popular nineteenth-century republicanism. From its inception to the present, the women's rights movement has pursued rights not explicitly mentioned in the Constitution and has sought to incorporate them into an expanded understanding of its meaning.

From one perspective, the conviction at the heart of radical republicanism, that an expansion of "rights" would help create a more egalitarian society, reached its peak with the enactment—and its nadir with the judicial disposition—of the Reconstruction amendments. However, from a women's rights perspective, the radical republican heritage extends much further. Not only did the struggle for political equality for women reach into the twentieth century, but the drive for the Equal Rights Amendment, as well as intense debate about a whole other realm of rights—sexual and reproductive—keeps the constitutional issue of women's rights alive today.

In this paper on the nineteenth-century movement for women's rights, I have two concerns. One is to integrate women's rights and the other equal rights politics of the nineteenth century—the abolition and black suffrage movements and labor reform—into a comprehensive history of radical republicanism. My other concern is to specify the place, and the possibilities, of the politics of equal rights in women's history. Concepts of rights, individualism, and equality have had a distinct impact

Ellen Carol DuBois is professor of history and American studies at the State University of New York, Buffalo. The author wishes to thank the Feminist Studies Graduate Group at SUNY-Buffalo, Eli S. Zaretsky, and the staff of the *Journal of American History* for help in the revision and completion of this article.

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on the way that women have understood themselves and have expressed their sense of their proper position in society.

The following overview of the nineteenth-century women's rights movement has three parts. The first part, which covers the antebellum period, establishes that women's rights ideas were linked to other radical equal rights traditions and were widely understood as alternatives to "separate spheres" notions of the subordinate place of women in the social order. With the passage of the Thirteenth Amendment, equal rights politics in general, and the women's rights movement in particular, entered a bolder phase that focused on constitutional change. That is the subject of the second part. During Reconstruction the demand for woman suffrage flourished because it was the most forceful way of expressing—and the most powerful tool for achieving—women's equality with men. At first, women's rights advocates demanded political rights for all without regard to sex or race. Once the Fourteenth and Fifteenth amendments were ratified without woman suffrage, however, they began to argue for the equality not of individuals but of sexes. Thus began a long process by which ideas about the fundamental differences between women and men began to be subsumed within a women's rights framework.

The termination of the constitutional amendment process in 1870 did not immediately signal the end of hopes for women's equal political rights but, instead, heightened struggle over the meaning of the Constitution as amended. That struggle is the subject of the third part. Determined to enforce their egalitarian vision of constitutional rights, women's rights women undertook direct political action. They also began to extend principles of equal rights into the whole realm of "personal rights," of rights over and to one's own body. Women's rights arguments figured significantly in important Supreme Court decisions about the meaning of the Reconstruction amendments. By the mid-1870s equal rights interpretations of the Constitution had been defeated, and the women's rights movement itself began to move in less democratic, more conservative directions. But the possibility of equal rights politics for transforming women's place had not been exhausted, only temporarily stalled.

The Demand for Women's Political Equality, 1820–1860

The term "women's rights"—meaning the equality of women with men—predates the call for woman suffrage by several decades. Women's rights demands, especially those directed against men's economic power over their wives, were nurtured in the British Owenite movement and brought to the United States by Frances Wright. Wright, a leader in the Jacksonian workingmen's movement, was the first public figure in United States history to advocate women's rights. Her lead was followed in this country by Ernestine Rose, a Jewish immigrant from Poland, and by Robert Dale Owen, son of the Owenite movement's leader, Robert Owen. During the 1830s and early 1840s, Rose and Owen advocated a program of women's economic and marital—though not political—rights. They and their comrades lobbied, often suc-

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.15 - The Nullification Crisis, American Republicanism, and the Force Bill Debate

David F. Ericson

ARTICLE	The Nullification Crisis, American Republicanism, and the Force Bill Debate
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EXCERPT	Original journal pages 249-250
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The Nullification Crisis, American Republicanism, and the Force Bill Debate

By David F. Ericson

> It seems to me that the subjects embraced by the proceedings of South Carolina afford ample field for the exercise of intellect with intellect . . . .
>
> —Senator George M. Bibb (D-Ky.)[1]

The nullification crisis of 1832–1833 is usually treated as one of the major sectional conflicts leading up to the Civil War, along with the Missouri crisis of 1819–1820, the crisis of 1850, and, of course, the secession crisis of 1860–1861. This view of the nullification crisis immediately places the crisis within a larger pattern and provides it with a cause and a telos. However, any view that projects a pattern back onto historical events is problematic, especially when the sequence of events is shrouded in the mantle of inevitability as an irrepressible conflict. Obviously, the nullification crisis was not understood by its participants as a "prelude to civil war."[2] Furthermore,

[1] *Register of Debates in Congress,* 22 Cong., 2 Sess., 265 (Bibb, January 30, 1833; hereinafter cited as *Cong. Debates,* with appropriate references to pages, speakers, and dates; subsequent references to this source will be to the records of the Twenty-second Congress, Second Session, unless otherwise noted). In the text I will identify by party and state the senators who participated in the Force Bill debate: *D* stands for Democrat and *NR* for National Republican. Given that the speeches John C. Calhoun and Daniel Webster delivered during the debate are more readily available in their collected works, I will refer to the versions of their speeches found in *The Works of John C. Calhoun* (6 vols.; New York, 1888; hereinafter cited as Calhoun, *Works*) and in *The Writings and Speeches of Daniel Webster* (18 vols.; Boston, 1903; hereinafter cited as Webster, *Writings and Speeches*). The nullification crisis erupted in November 1832 when a South Carolina constitutional convention adopted a set of ordinances nullifying the tariffs of 1828 and 1832. President Andrew Jackson's response was the Force Bill, which authorized him to use military and naval force, if necessary, to collect the tariff duties in South Carolina. Neither the ordinances nor the bill went into effect because the passage of the Compromise Tariff of 1833, which gradually lowered the tariff rates and enlarged the duty-free list, defused the crisis.

[2] See William W. Freehling, *Prelude to Civil War: The Nullification Controversy in South Carolina, 1816–1836* (New York, 1966). Despite its anachronistic tendencies, Freehling's study remains the best introduction to the crisis.

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none of the other southern states defended South Carolina's nullification ordinances—which must temper any sectional interpretation of the crisis.[3] This counterevidence is not conclusive; sectional divisions might have been repressed at the time by such factors as intersectional party coalitions and have been all the more powerful for being so.[4] There clearly is something right about a sectional interpretation of the nullification crisis, just as there clearly is something wrong about it.

The same judgment could be passed on other existing interpretations of the crisis that, alternately, emphasize clashing economic interests, opposing constitutional philosophies, competing presidential ambitions, or just plain party politics.[5] An exhaustive interpretation must juggle all those factors in order to discover how the participants themselves interpreted the crisis.

Senator George M. Bibb of Kentucky and the other participants in the nullification crisis interpreted the crisis primarily in terms of a larger pattern of intellectual conflict over the meaning of republicanism that had engaged American statesmen ever since the founding of the republic.[6] This pattern of conflict gave broader meaning to the crisis, helped the participants sort out their areas of disagreement and

[3] *Ibid.*, 265.

[4] See Michael F. Holt, *The Political Crisis of the 1850s* (New York and other cities, 1978), Chap. 2.

[5] *Cf.* Richard E. Ellis, *The Union at Risk: Jacksonian Democracy, States' Rights, and the Nullification Crisis* (New York and Oxford, 1987); Harry V. Jaffa, "Partly Federal, Partly National: On the Political Theory of the American Civil War," in Jaffa, *The Conditions of Freedom: Essays in Political Philosophy* (Baltimore and London, 1975), 161–83; Richard B. Latner, "The Nullification Crisis and Republican Subversion," *Journal of Southern History,* XLIII (February 1977), 19–38; Merrill D. Peterson, *Olive Branch and Sword—The Compromise of 1833* (Baton Rouge and London, 1982); and Major L. Wilson, "'Liberty and Union': An Analysis of Three Concepts Involved in the Nullification Controversy," *Journal of Southern History,* XXXIII (August 1967), 331–55.

[6] Latner presents a republican interpretation of the crisis focusing on Jackson's conspiratorial view of the nullifiers. See Latner, "Nullification Crisis and Republican Subversion," 26–30. As we will see, this interpretation overlooks the more pronounced ways that republican concerns shaped the crisis. It is beyond my present purposes to canvass the ever–expanding historiographical debate over republican revisionism, but a consensus of sorts has been reached that republicanism was at least one of the political languages available to American statesmen in the period from 1776 through 1833. This is clear even in the recent work of the strongest critics of republican revisionism. See Joyce Appleby, "Liberalism and Republicanism in the Historical Imagination," in Appleby, *Liberalism and Republicanism in the Historical Imagination* (Cambridge, Mass., and London, 1992), 1–33; and Isaac Kramnick, "The 'Great National Discussion': The Discourse of Politics in 1787," *William and Mary Quarterly*, 3d Ser., XLV (January 1988), 3–22. Also, see the cautionary contributions by Lance Banning ("The Republican Interpretation: Retrospect and Prospect," 91–117), Drew McCoy ("Introduction," 11–17), and Gordon S. Wood ("Afterword," 143–51) to Milton M. Klein, Richard D. Brown, and John B. Hench, eds., *The Republican Synthesis Revisited: Essays in Honor of George Athan Billias* (Worcester, Mass., 1992). For my own contribution to this historigraphical debate, see *The Shaping of American Liberalism: The Debates over Ratification, Nullification, and Slavery* (Chicago and London, 1993).

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.16 - Making the 'White Man's Country' White: Race, Slavery, and State-Building in the Jacksonian South

Lacy K. Ford Jr.

ARTICLE	Making the 'White Man's Country' White: Race, Slavery, and State-Building in the Jacksonian South
JOURNAL	Journal of the Early Republic 19, no. 4 (1999)
EXCERPT	Original journal pages 713-714
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MAKING THE 'WHITE MAN'S COUNTRY' WHITE: RACE, SLAVERY, AND STATE-BUILDING IN THE JACKSONIAN SOUTH

Lacy K. Ford, Jr.

Any examination of race as a formative influence on the American South must first acknowledge the interpretation advanced decades ago by the putative founder of southern history as a field of study: Ulrich Bonnell Phillips. A Georgia-born Progressive and author of the first scholarly account of slavery to gain widespread acceptance in the national academy, Phillips surveyed the otherwise wrenching journey from Old South to New and found continuity in the timeless commitment of white southerners to the common cause of white supremacy. Phillips insisted that the "central theme" of southern history was "a single resolve indomitably maintained" that the South "was and shall remain a white man's country."[1] Long before the recent interpretive bent of cultural history refocused scholarly attention upon culturally and historically constructed definitions of race as critical factors shaping American society, Phillips posited a shared allegiance to white supremacy as the central theme of southern history and established an interpretation that would remain both influential and controversial for the remainder of the twentieth century.[2]

During the 1990s, practitioners of the new cultural history, influenced by anthropological research and the techniques of literary postmodernism, have maintained that most American historiography fails to account

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Lacy K. Ford, Jr., is professor of history at the University of South Carolina. He is currently working on *Making Southern Conservatism: Political Thought in the Jacksonian South* for Oxford University Press.

[1] Ulrich B. Phillips, "The Central Theme of Southern History," *American Historical Review*, 34 (Oct. 1928), 30-43.

[2] Daniel Joseph Singal, *The War Within: From Victorian To Modernist Thought in the South, 1919-1945* (Chapel Hill, 1982), 37-57.

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adequately for the social and cultural construction of race. Race, as postmodernists remind other scholars, emerges not as biologically determined from the genome, but as the product of distinct and identifiable social, cultural, and historical forces. Because it is culturally constructed rather than genetically determined, understandings of race and racism necessarily change over time, historically constructed and reconstructed by complex social negotiations within societies that also change.[3] From this valuable new understanding of race as a social and cultural construction emerged the current genre popularly known as "whiteness" studies. Roaming widely across chronological and disciplinary boundaries, "whiteness" scholarship has effectively returned race to the center of American historiography without diminishing related considerations of class and gender.[4]

In reminding American historians that race is a mutable historical construct, that ideas about race and racism change over time, "whiteness" scholars have also tied the Jacksonian reconsideration of race and racial ideology to other major trends of the era that have garnered recent historiographical attention. Certainly the Jacksonian reconsideration of race occurred within the context of a market revolution that touched almost every facet of American life. Driven by dramatic improvements in transportation and communication, the market revolution quickened the pace and broadened the scope of commerce in the new nation, both extending the boundaries of the market economy and intensifying the

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[3] Barbara J. Fields, "Ideology and Race in American History," in J. Morgan Kousser and James McPherson, eds., *Region, Race and Reconstruction: Essays in Honor of C. Vann Woodward* (New York, 1982), 143-78.

[4] Among other things, these studies have found that racial ideology has not only served as a mechanism for elites to manipulate atavistic masses but also as leverage for white workers and immigrants to wedge their way into the American mainstream on the basis of skin color. For an introduction to "whiteness" historiography, see David R. Roediger, *The Wages of Whiteness: Race and the Making of the American Working Class* (London, UK, 1991); Alexander Saxton, *The Rise and Fall of the White Republic: Class Politics and Mass Culture in Nineteenth Century America* (New York, 1990); Noel Ignatiev, *How the Irish Became White* (New York, 1995); Michael Goldfield, *The Color of Politics: Race and the Mainsprings of American Politics* (New York, 1997); Cheryl Harris, "Whiteness as Property," *Harvard Law Review*, 106 (June 1993), 1709-91; David Stowe, "Uncolored People: The Rise of Whiteness Studies," *Lingua Franca*, 4 (Sept.-Oct. 1996), 68-77; and also the essay by David Roediger in this issue. For recent applications of the "whiteness" approach to the study of the South, see Grace Elizabeth Hale, *Making Whiteness: The Culture of Segregation in the South, 1890-1940* (New York, 1998); and Bryant Simon, *A Fabric of Defeat: The Politics of South Carolina Millhands, 1910-1948* (Chapel Hill, 1998).

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.17 - Recovering the Republic: Calhoun, South Carolina, and the Concurrent Majority

Lacy K. Ford

ARTICLE	Recovering the Republic: Calhoun, South Carolina, and the Concurrent Majority
JOURNAL	The South Carolina Historical Magazine 89, no. 3 (1988)
EXCERPT	Original journal pages 148-149
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time that his white manhood suffrage amendment was officially ratified in December 1810, Calhoun had already parlayed his family name, his reputation as a champion of "white men's democracy," and his skill on the stump into an easy victory over Laurens planter John Elmore in a race for a seat in the United States Congress.[2]

Once white manhood suffrage was established in South Carolina, a grassroots political culture, which was as doggedly and aggressively democratic as that in any other part of the young republic, emerged in most areas of the state. Between 1810 and 1850, voter turnouts exceeding seventy percent of all eligible voters were commonplace, and in hotly contested elections, such as the one held at the peak of the nullification crisis in 1832, voter participation approached the ninety percent level in many portions of the state. Moreover, the rate of turnover among elected officials was quite high. Seldom did as many as forty percent of the state legislators from any given General Assembly return to serve in the next General Assembly, and on at least one occasion, 1818, nearly eighty percent of all incumbent legislators either refused to stand for re-election or were defeated at the polls. In many areas, candidates for the legislature had literally spoken to every eligible voter in their districts and in all probability had visited with most voters either in their homes or at their churches.[3]

It was a furiously political age. Candidates wooed voters, praising liberty and denouncing aristocracy and privilege. Voters reponded with extraordinarily high turnouts. Incumbents held few advantages and every new General Assembly was lavishly sprinkled with new faces. The politician's power, no matter how wisely used, and his ambition, no matter how noble or civic-minded, were always constrained by the reckoning of election day.[4]

Nurtured in this political milieu, one open and competitive and democratic by the standards of the age, John C. Calhoun matured into the most sophisticated political thinker of the Jacksonian era and arguably the most original political theorist in all of American history. Yet for all of Calhoun's importance as a political actor as well as a thinker, the political and intellectual context of his contributions to American constitutional thought has often been misunderstood. In particular, Calhoun's understanding of the transatlantic republican tradition which did so much to shape and animate political debate in the early years of the republic and the influence of existing political arrangements within the state of South Carolina on

[2]Lacy K. Ford, *Origins of Southern Radicalism: The South Carolina Upcountry, 1800-1860* (New York: Oxford University Press, 1988).

[3]Ibid.

[4]Ibid.

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Calhoun's political thought have been either ignored or sadly underestimated.[5]

Indeed, the currently fashionable understanding of Calhoun dates back to the provocative interpretations of Louis Hartz and Richard Hofstadter, both of which appeared nearly thirty years ago. In *The Liberal Tradition in America*, Hartz depicted Calhoun as a wayward Lockean liberal trying to fashion a systematic defense of slavery in a society which lacked the materials needed to erect a genuine conservative tradition. Hartz pictured Calhoun as the chief architect of a so-called "Reactionary Enlightenment," during which the slave-holding South self-consciously repudiated its Jeffersonian origins and retreated behind a hard but brittle protective facade of constitutional literalism. This strategic intellectual retreat, designed to facilitate a more effective defense of slavery, ended in failure, Hartz maintained, because neither Calhoun nor other southern leaders could deny their own Revolutionary heritage.[6] As a quasi-feudal conservative, Calhoun cut a sorry figure. If Hartz judged Calhoun a failed Tory, Hofstadter saw him as a prophet of reaction. In his influential "Marx of the Master Class" essay, Hofstadter portrayed Calhoun as Marx standing on his head, a visionary who saw impending class conflict but who identified with capital rather than labor. To Hofstadter, Calhoun was not a nostalgic Burkean trying to resurrect a mythical feudal past but an aggressive, perceptive conservative trying to construct an alliance between southern planters and northern capitalists that would serve to protect the prerogatives of men of property from radical assault.[7] Yet both Hartz and Hofstadter passed lightly over Calhoun's constitutional thought, focusing instead on Calhoun as an apologist for what they perceived as the hierarchical social order of the Old South.

[5]On the transatlantic republican tradition, see especially J. G. A. Pocock, *The Machiavellian Moment: Florentine Political Thought and the Atlantic Republican Tradition* (Princeton, NJ: Princeton University Press, 1975). See also Robert E. Shalhope, "Toward a Republican Synthesis," *William and Mary Quarterly* 29 (January 1972): 49-80, and Robert E. Shalhope, "Republicanism and Early American Historiography," *William and Mary Quarterly* 39 (1982): 334-356.

[6]Louis Hartz, *The Liberal Tradition in America: An Interpretation of American Political Thought Since the Revolution* (New York: Harcourt Brace Jovanovich, 1955), 143-209; for a critical assessment of Hartz's view, see James D. Clarke, "Calhoun and the Concept of 'Reactionary Enlightenment': An Examination of the Disquisition on Government" (Ph.D. dissertation, University of Keele, 1982).

[7]Richard Hofstadter, *The American Political Tradition: And the Men Who Made It* (New York: A. A. Knopf, Inc., 1948), 86-117; Hofstadter refined an earlier version of this argument made in Richard N. Current, "John C. Calhoun, Philosopher of Reaction," *Antioch Review* 3 (June 1943): 223-234.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.18 - Beyond Worcester: The Alabama Supreme Court and the Sovereignty of the Creek Nation

Tim Alan Garrison

ARTICLE	Beyond Worcester: The Alabama Supreme Court and the Sovereignty of the Creek Nation
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BEYOND *WORCESTER*: THE ALABAMA SUPREME COURT AND THEB SOVEREIGNTY OF THE CREEK NATION

Tim Alan Garrison

The tragic Indian Removal of the 1830s was the culmination of a relentless campaign by southern expansionists to seize control of the lands of the Cherokees, Creeks, Chickasaws, and Choctaws. The idea of exiling Native Americans beyond the reach of white settlement had been broached first by Thomas Jefferson in 1776. Yet, the genesis of the actual movement that resulted in the removal of the southern tribes can be traced directly to the state of Georgia's surrender of its western territory to the national government during Jefferson's first administration. In the Compact of 1802, Georgia ceded its lands west of the Chattahoochee River to the United States in exchange for a federal promise to extinguish the Indian title in the state as soon as it could be "peaceably obtained, and on reasonable terms."

This agreement, however, contradicted existing United States Indian policy. Since the administration of George Washington, the United States by treaty and statute had recognized the lands of the tribes as "Indian country" beyond the jurisdiction of the states. At the same time, federal Indian policy, grounded on the recognition of a Native American military threat and the need to avoid antagonizing the tribes that held that power, mandated that Indian lands could be obtained only by treaty for a fair price and with the consent of the tribal government. After the United States destroyed Indian resistance east of the Mississippi in the War of 1812, General Andrew Jackson and Secretary of War John C. Calhoun urged

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Tim Alan Garrison is assistant professor of history at Portland State University. In 2000, the University of Georgia Press will add his book, *The Ideology of the Indian Removal: The Southern State Judiciary and the Sovereignty of Native American Nations*, to its *Studies in the Legal History of the South* series.

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President James Monroe to disavow the premise that the tribes were sovereign governments, unilaterally extinguish Indian claims, and adopt a policy of removal.

The sentiments of Jackson and Calhoun added national weight to Georgia's renewed interests in the 1802 compact and encouraged state officials to revive the issue of extinguishing the Indian title. When the federal government offered citizenship to individual Cherokees and a guaranteed title to their lands in the Treaty of 1819, infuriated Georgia leaders like George Troup and George Gilmer launched a determined lobbying effort to bully the national government into fulfilling the provisions of the original compact. In 1827, the Cherokee Nation adopted a constitutional government and declared itself an independent republic. Removal proponents in Georgia regarded the Cherokee declaration as a direct attack against the sovereignty of their state. And when John Quincy Adams refused to depart from Monroe's policy that removal should be voluntary, Georgia leaders took matters into their own hands and began a systematic legislative effort to force Native Americans out of the region. By the late 1820s, the new states of Alabama and Mississippi, carved out of Georgia's cession, had joined the drumbeat for extinguishment and removal.[1]

Between 1827 and 1833 the legislatures of Georgia, Tennessee, Alabama, and Mississippi all repudiated the concept of tribal sovereignty and enacted laws that extended the jurisdiction of their states over the Indian nations within their borders. Individual Indians were not, they insisted, citizens of distinct and sovereign native nations, but second-class subjects of the American state in which they lived. The Georgia and Alabama acts were the most comprehensive attacks against Native-American individual and tribal rights. Georgia annexed the lands of the Cherokee Nation, abolished the Cherokee government and courts, and declared all of the nation's laws null and void. The Alabama extension law contained similar annexation provisions, allowed the state to build roads, bridges, and ferries through the Indian territory, and criminalized Indian "laws, usages, and customs." In short, southern removal proponents

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[1] Thomas Jefferson to Edmund Pendleton, Aug. 13, 1776, in *The Papers of Thomas Jefferson*, ed. Julian B. Boyd (25 vols., Princeton, 1950-92), I, 494; Jill Norgren, *The Cherokee Cases: The Confrontation of Law and Politics* (New York, 1996), 35-48; Tim Alan Garrison, "The Legal Ideology of Removal: The Southern State Judiciary and the Sovereignty of Native American Nations, 1776-1838" (Ph.D. diss., University of Kentucky, 1997), 141-53; Francis Paul Prucha, *American Indian Policy in the Formative Years: The Indian Trade and Intercourse Acts, 1790-1834* (Cambridge, MA, 1962).

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.19 - A Tale of Three Cities: The Struggle for Banking Stability in Boston, New York, and Philadelphia, 1839-1841

Frances W. Gregory

ARTICLE	A Tale of Three Cities: The Struggle for Banking Stability in Boston, New York, and Philadelphia, 1839-1841
JOURNAL	The New England Quarterly 56, no. 1 (1983)
EXCERPT	Original journal pages 3-4
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A Tale of Three Cities: The Struggle for Banking Stability in Boston, New York, and Philadelphia, 1839–1841

FRANCES W. GREGORY

CENTRAL to the economic problems afflicting the United States before the establishment of the Federal Reserve System in 1913 was the stability of its currency. No other question was more challenging; none provoked more debate in the business community. Owing to the predominance of laissez-faire economic thought, prior to the late nineteenth and early twentieth centuries, the issue would be addressed, insofar as it was addressed at all, through the private sector, particularly through banks chartered by the states and controlled by local businessmen. To meet the challenge of managing a nationwide economy in the face of no intact nationwide system, bankers attempted to form cross-regional or, more specifically, intercity cooperative arrangements, which looked as though they would work but frequently did not. The banking and monetary crisis of 1839–41 prompted just such an effort at intercity cooperation; that effort merits historical consideration not only for the ways in which it was made but for the reasons it failed. Its failure casts light on the character of the economic system of the antebellum years and particularly

I am grateful for the helpful suggestions and encouragement of Professors Thomas N. Brown of the University of Massachusetts, Boston; W. Elliot Brownlee of the University of California, Santa Barbara; and Thomas S. Berry of the University of Richmond. I am also indebted to Geraldine Stevens for her editorial assistance and to Susan S. Butler for her research help. This paper is part of a longer study of "Nathan Appleton, Public Man" and was given at a Colloquium at the Mary I. Bunting Institute of Radcliffe College. I appreciate the financial assistance of a fellowship from the National Endowment for the Humanities and of a grant from the Society of the Cincinnati, through the University of Richmond.

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on the importance of personal differences in the business practices of city leaders.

One striking result of a close examination of the 1839–41 crisis is a new respect for the extent of Boston's influence on nineteenth-century business and politics. A group later known as the Boston Associates played a crucial role in the events of those years. To date, Boston's role has usually been overshadowed by the spectacular rise and influence of New York. Historians as well as economists have explored the obvious geographic and economic advantages of New York's location and have emphasized its long-standing rivalry with Philadelphia, which was losing prestige and power as commercial activity shifted northwards.[1] By the 1830s the personal jealousies that had developed between Philadelphia's and New York's financial circles interfered with cooperation in trade and banking, and bitter competition ensued. Scholars have associated this intercity rivalry mainly with the famous Second Bank of the United States (the BUS) and its successor, the Bank of the United States of Pennsylvania (BUSPa), rechartered as a state bank in Pennsylvania. The struggle, which lasted for more than a decade, culminated in the years after the panic of 1837.

Essential to an understanding of these critical years is the realization of the importance of payments in specie—gold or silver coin—or in specie-backed funds—banknotes convertible into coin—to the nineteenth-century businessman. To merchants, bankers, and the public, an indication of the health of the economy was when banknotes of chartered banks could be accepted at their face value and converted into specie on demand. A predictable currency provided a sound basis on which businessmen could make their calculations when selling within and between geographical regions. Banks then could set their discount rates and merchants price their goods with an

[1] Margaret G. Myers, *The New York Money Market*, 2 vols. (New York: Columbia University Press, 1931), 1:4–5. That Philadelphia was the seat of the capital of the United States until 1800 as well as the First and Second Banks of the United States and the first stock exchange contributed to that city's early superiority.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.20 - Mobilizing Women, Anticipating Abolition: The Struggle against Indian Removal in the 1830s

Mary Hershberger

ARTICLE	Mobilizing Women, Anticipating Abolition: The Struggle against Indian Removal in the 1830s
JOURNAL	The Journal of American History 86, no. 1 (1999)
EXCERPT	Original journal pages 15-16
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Mobilizing Women, Anticipating Abolition: The Struggle against Indian Removal in the 1830s

Mary Hershberger

Andrew Jackson's request to Congress in December 1829 for federal monies to remove Southeast Indians beyond the Mississippi River generated the most intense public opposition that the United States had witnessed. In six short months, removal opponents launched massive petition drives that called on Congress to defeat removal and to uphold Indian rights to property. To block removal, Catharine Beecher and Lydia Sigourney organized the first national women's petition campaign and flooded Congress with antiremoval petitions, making a bold claim for women's place in national political discourse. The experience of opposing removal prompted some reformers to rethink their position on abolition and to reject African colonization in favor of immediatism.

The strength of antiremoval forces stunned Martin Van Buren who, writing of the events over twenty years later, portrayed the government's side as besieged from all quarters and stated flatly that "a more persevering opposition to a public measure had scarcely ever been made." Though Jackson's former vice president consistently defended removal, he believed that the issue of Indian removal "unlike histories of many great questions which agitate the public mind in their day will in all probability endure . . . as long as the government itself, and will in time occupy the minds and feelings of our people." It was an issue, Van Buren concluded, in which the nation was responsible "to the opinion of the great family of nations, as it involves the course we have pursued and shall pursue towards a people comparatively weak."[1]

Andrew Jackson had placed Indian removal at the top of his administration's priorities. Though Jackson himself wrote comparatively little about legislative goals, Mar-

Mary Hershberger teaches history at Capital University.

I would like to thank Michael Les Benedict, Randolph Roth, Leila Rupp, Daniel W. Howe, John A. Andrew III, David Paul Nord, and David Thelen for their helpful comments on this paper. I would also like to express my appreciation to Susan Armeny, Lynn Pohl, and Scott Stephan for their skill in copyediting the article and to Peter Kraemer for help with the illustrations.

[1] John C. Fitzpatrick, ed., *Annual Report of the American Historical Association for the Year, 1918,* vol. II: *The Autobiography of Martin Van Buren* (Washington, 1920), 275–76, 288–96.

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tin Van Buren, who served as Jackson's secretary of state, vice president, and confidant, wrote of the Indian Removal Act that "no other subject was of greater importance than this. . . . General Jackson staked the success of his administration upon this measure." From the beginning of his administration, Van Buren wrote, the president's policy goals were plainly prioritized and Indian removal headed the legislative agenda: "First, the removal of the Indians from the vicinity of the white population and their settlement beyond the Mississippi. Second, to put a stop to the abuses of the Federal government in regard to internal improvements. . . . Third, to oppose as well the existing re-incorporation of the existing National Bank." When the removal bill was introduced into Congress, one representative noted that it "came recommended to us as the peculiar favorite of the executive."[2]

President Jackson's proposed legislation to move the Southeast Indians across the Mississippi was not new. The heart of Indian land policy had always been nothing less than massive Indian land cessions to white markets, and treaties were the preferred weapons of transfer. The removal crisis of Jackson's administration was precipitated by the Georgia Compact of 1802 between the national government and Georgia (an agreement to which no Indian group was party), which provided that Georgia would relinquish all claims to western lands in return for Washington's assuming the costs of moving Indians off land that Georgia claimed "as soon as the same can be peaceably obtained on reasonable terms." Between 1802 and 1819, federal treaties with the southern Indians transferred 20 million acres of land to white settlers, a greater expansion of the territory open to slaveholding than the Missouri Compromise had provided. By 1819 only 5 million acres of land were left to the Cherokee, and when they refused to cede any more land, Georgia officials called on the federal government to remove the Indians by force, if necessary. For years the federal government resisted those demands, but Jackson's election brought, for the first time, an executive who wholeheartedly favored such removal.[3]

President Jackson offered two rationales for Indian removal: one, that having an independent Indian nation residing within the borders of any state was an intolerable situation, and two, that for their own survival, southeastern Indians had to move across the Mississippi away from white encroachment. Jackson and other removal proponents insisted that should the southern Indians remain east of the Mississippi, they would shortly become "extinct" as whites steadily invaded their land and destroyed Indian life and culture. Moving the Indians west, Jackson argued, would

[2] *Ibid.,* 275–76; "Maysville and Lexington Roads," *Niles' Weekly Register,* June 19, 1830, pp. 308–9. Andrew Jackson's first federal appointments indicated his removal priorities. He named ardent proponents of removal to government positions crucial in carrying it out: John Eaton as secretary of war (succeeded by Lewis Cass) and the Georgian John M. Berrien as attorney general.

[3] See Dorothy V. Jones, *License for Empire: Colonialism by Treaty in Early America* (Chicago, 1982); Annie Abel, *Annual Report of the American Historical Association, 1907,* vol. I: *The History of Events Resulting in Indian Consolidation West of the Mississippi* (Washington, 1908), 241–45; Clarence Edwin Carter, ed., *The Territorial Papers of the United States* (28 vols., Washington, 1934–1975), V, 142–46; Leonard Richards, "The Jacksonians and Slavery," in *Antislavery Reconsidered,* ed. Lewis Perry and Michael Fellman (Baton Rouge, 1979), 115–16. Jackson called the treaty system with the Indians "farcical," saying that Indians had no rights of domain to any territory in the United States. See Francis Paul Prucha, *American Indian Policy in the Formative Years: The Indian Trade and Intercourse Acts, 1790–1834* (Cambridge, Mass., 1962), 233–35.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.21 - Cholera, Christ, and Jackson: The Epidemic of 1832 and the Origins of Christian Politics in Antebellum America

Adam Jortner

ARTICLE	Cholera, Christ, and Jackson: The Epidemic of 1832 and the Origins of Christian Politics in Antebellum America
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EXCERPT	Original journal pages 233-234
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Cholera, Christ, and Jackson

The Epidemic of 1832 and the Origins of Christian Politics in Antebellum America

ADAM JORTNER

For I will pass through the land of Egypt this night, and will smite all the firstborn in the land of Egypt, both man and beast; and against all the gods of Egypt I will execute judgment: I am the LORD.

Passover traditional

No one knew where it came from. "Epidemiological thought in the United States had been conditioned by experience with yellow fever, and the black vomit seemed obviously non-contagious. As was the case with yellow fever, so it was with cholera: there could never be found any pattern within the cases that would support a contagionist argument." It struck down its victims in the street, and they would be dead by nightfall. Symptoms were multiform and terrifying: muscular cramps, spasmodic vomiting, fever, a constant stream of rice-water diarrhea. It was known, alternately, as Asiatic cholera, pestilential cholera, spasmodic cholera, and the blue pest. In 1832, in the days before germ theory, it was an affliction without cause or logic. The only comfort, perhaps, was that "It is the *intemperate* and vicious, especially the vicious poor, who have most to fear from it, and it is among them the greatest panic prevails." Visiting destruction where it wished, a plague on the filthy and unregenerate, cholera seemed nothing less than the finger of God.[1]

Adam Jortner is a graduate student at the University of Virginia. The author would like to acknowledge Peter S. Onuf, Michael F. Holt, and Charles W. McCurdy for their guidance and encouragement, and the anonymous reviewers of the *JER* for their insight and advice.

1. Charles E. Rosenberg, *The Cholera Years: The United States in 1832, 1849, and 1866* (Chicago, IL, 1962), 76; *Journal of Commerce* (New York), quoted in Albany (NY) *Evening Journal,* July 3, 1832.

Journal of the Early Republic, 27 (Summer 2007)
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The United States, if unready for such a visitation medically, was more than prepared religiously. The cholera made landfall barely a year after Charles Finney closed his Rochester revivals, and in the same Burned-Over District where his New Measures had flourished. At such a time and in such a place, cholera was ideally situated to become understood as a religious event—and from there, to enter politics.

The antebellum cohabitation between religion and politics has received considerable scholarly attention in recent years; interpretations have shifted from a paradigm of early republican religion as a kind of decaying, reactionary Puritanism to an understanding of republican religion as a vibrant Christianity galvanized by frenetic competition, where radical ideas of liberty merged with Arminian impulse and Calvinist tradition to create Christianities that embraced egalitarianism, popular culture, and the needs of everyday people.[2]

Also reflecting the needs of the people, of course, were the nascent political parties of Jacksonian America, and scholars have not missed the opportunity to draw parallels between the religious and political geographies of the age. Evangelical ethos, organization, and belief are often cited as elements that predisposed evangelicals to enter the political

2. See Nathan O. Hatch, *Democratization of American Christianity* (New Haven, CT, 1989). Numerous works have built upon this thesis or advanced related ideas; see Robert H. Abzug, *Cosmos Crumbling: American Reform and the Religious Imagination* (New York, 1994); Catherine A. Brekus, *Strangers and Pilgrims: Female Preaching in America, 1740–1845* (Chapel Hill, NC, 1998); Jon Butler, *Awash in a Sea of Faith: Christianizing the American People* (Cambridge, MA, 1990); Curtis D. Johnson, *Islands of Holiness: Rural Religion in Upstate New York, 1790–1860* (Ithaca, NY, 1989); Susan Juster, *Doomsayers: Anglo-American Prophecy in the Age of Revolution* (Philadelphia, PA, 2003); Alan Taylor, "The Early Republic's Supernatural Economy: Treasure Seeking in the American Northeast, 1780–1830," *American Quarterly* 38 (Spring 1986), 6–34; and John H. Wigger, *Taking Heaven by Storm: Methodism and the Rise of Popular Christianity in America* (New York, 1998). This vein of scholarship challenged earlier interpretations that understood religious enthusiasm as a reaction to social and economic forces. These works include the famous "social control" hypothesis, advanced by Charles I. Foster, *An Errand of Mercy: The Evangelical United Front, 1790–1837* (Chapel Hill, NC, 1960); excoriated by Lois W. Banner, "Religious Benevolence as Social Control: A Critique of an Interpretation," *Journal of American History* 60 (June 1973), 23–41; and resurrected by Paul Johnson, *A Shopkeeper's Millennium: Society and Revivals in Rochester, New York, 1815–1837* (New York, 1978).

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.22 - Rethinking the Jacksonian Economy: The Impact of the 1832 Bank Veto on Commercial Banking

Jane Knodell

ARTICLE	Rethinking the Jacksonian Economy: The Impact of the 1832 Bank Veto on Commercial Banking
JOURNAL	The Journal of Economic History 66, no. 3 (2006)
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THE JOURNAL OF ECONOMIC HISTORY

VOLUME 66 SEPTEMBER 2006 NUMBER 3

Rethinking the Jacksonian Economy: The Impact of the 1832 Bank Veto on Commercial Banking

JANE KNODELL

Revisiting an old debate between "traditional" historians and "New" economic historians about the short-run monetary effects of President Jackson's war on the Second Bank, I offer new arguments for the traditionalists. I develop a framework accounting for growth in commercial bank credit based on the "investment club" characteristics of antebellum state-chartered banking and apply it to state bank balance sheet data for 1830–1836. The removal of the Second Bank indeed magnified the boom in commercial banking, and the replacement of Second Bank branches with state-chartered banks as lenders and federal government depositories amplified the boom in frontier lands and state debt.

The 1830s were a period of rapid financial expansion in the United States; the money supply grew, capital inflows increased, and asset prices rose significantly. Historians traditionally thought that the boom in both the banking system and the market for public lands at the western frontier of settlement occurred because of President Andrew Jackson's veto of the federal rechartering of the Second Bank in July 1832, but the work of Peter Temin, Hugh Rockoff, and George Macesich overturned this interpretation and established a new conventional wisdom.[1] Arriving at the somewhat stunning conclusion that Jackson's veto was neutral in its effect on the pace of monetary expansion, they contended that monetary growth accelerated because of growth in the nation's specie stock, not because commercial banks—even those in rap-

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[1] Temin, *Jacksonian Economy*; Rockoff, "Money, Prices, and Banks"; and Macesich, "Monetary Disturbances."

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idly growing frontier regions—lowered their reserve ratios in the absence of a central bank.

In the three decades since the contributions of Temin, Rockoff, and Macesich, however, we have learned more about the unique capital structure and lending strategies of antebellum banks and about the symbiotic relationship between state governments and state-chartered banks.[2] Recent scholars have shown renewed interest in the financial crises of the late 1830s and early 1840s, which were marked by falling asset prices, commercial bank failures and state debt defaults. For example, Peter Rousseau has uncovered a new culprit in the Panic of 1837, the "supplemental" interbank transfers ordered by the U.S. Treasury in June 1836, and John Wallis has produced a detailed study of the long depression of 1839–1843, in which state defaults play a leading role in the commercial banking crisis of 1841–1842.[3] Both studies show that federal and state governments' management of their finances had powerful monetary effects in this period, effects that were ignored by the New historians' version of the story.

Given these developments in the literature, it is time to take a fresh look at how President Jackson's war on the Second Bank affected domestic finance in the 1830s. After reviewing the traditional hypothesis about the Bank Veto and the now-conventional story about monetary expansion in the 1830s, I present an alternative account of the sources of growth in commercial bank credit in the 1830s. Then I apply this alternative approach to an analysis of the monetary effects of removing the Second Bank. I conclude that the removal of the Second Bank amplified the boom in state banking, state borrowing, and land development, thereby contributing to the financial distress of the early 1840s, particularly in the South and West—but that it did so through monetary mechanisms different from those posited by either the traditional historians or the New economic historians.

AN OLD DEBATE AND A NEW FRAMEWORK

After President Jackson's veto and his October 1833 executive order forbidding further deposits of Treasury receipts in the Second Bank, money supply growth accelerated. From 1834 to 1836 the money supply grew at an average annual rate of 30 percent, compared to 2.7 percent between 1831 and 1834. Historians traditionally attributed the acceleration in money growth to the removal of the federal bank, which had maintained "systematic pressure on the (state-

[2] Lamoreaux, *Insider Lending*; and Sylla, Leger, and Wallis, "Banks."
[3] Rousseau, "Jacksonian Monetary Policy"; and Wallis, "Depression."

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.23 - The Kitchen Cabinet and Andrew Jackson's Advisory System

Richard B. Latner

ARTICLE	The Kitchen Cabinet and Andrew Jackson's Advisory System
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The Kitchen Cabinet and Andrew Jackson's Advisory System

RICHARD B. LATNER

FEW subjects in Jacksonian politics have been more frequently mentioned and less carefully analyzed than Andrew Jackson's kitchen cabinet. The reason is not hard to find. Influence and power, difficult enough to measure in the present, are particularly resistant to historical investigation. Data concerning confidential relationships are spotty and the interviewing of participants is synonymous with necromancy. The shadowy nature of presidential advising thus promotes the growth of legends that obscure the reality of political influence.[1]

By tradition, historians claim that the label "kitchen cabinet" was first applied derogatorily by Jackson's opposition, to describe an informal group of advisers who maintained great influence over the President, particularly on matters of party and patronage. Claude G. Bowers, in his popular study of Jackson's presidency, called "the small but loyal and sleepless group of the Kitchen Cabinet . . . the first of America's great practical politicians."[2] Leonard White's standard administrative account of the Jacksonian period reinforced this conventional view; according to him, Jackson's interest in politics and personality, rather than in administration, naturally prompted the appearance of "a group of personal advisers, primarily concerned with patronage and party manipulation."[3] References to the kitchen cabinet generally imply that the members worked together closely, shared similar political objectives, especially the promotion of Martin Van Buren's political fortunes, and attained their greatest influence in the

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[1] On the kitchen cabinet, see Richard P. Longaker, "Was Jackson's Kitchen Cabinet a Cabinet?" *Mississippi Valley Historical Review*, XLIV (June 1957), 94–108.

[2] Claude G. Bowers, *The Party Battles of the Jackson Period* (Boston, 1922), 144.

[3] Leonard D. White, *The Jacksonians: A Study in Administrative History, 1829–1861* (New York, 1954), 94–95. See also Marquis James, *The Life of Andrew Jackson* (Indianapolis, 1938), 498; John Spencer Bassett, *The Life of Andrew Jackson* (New York, 1931), 540.

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first two years of Jackson's presidency, when the Eaton affair prevented Jackson from calling upon his regular cabinet officers for counsel.[4]

This portrait of a tightly knit group of aides specializing in political manipulation, wire-working, and patronage, however, has not gone unchallenged. Twenty years ago, Richard P. Longaker subjected the ''legend'' of the kitchen cabinet to close scrutiny and raised serious objections to traditional accounts. Longaker denied that the kitchen cabinet was ''an institutional entity,'' and argued instead that the term simply described an ''amorphous advisory pattern,'' a ''procedure, the random choice of a variety of advisers rather than a specific, organized body of men.'' To Longaker, the large number of alleged members (some of whom were also cabinet officers), as well as a lack of evidence of regular meetings, distinguished the kitchen cabinet from an authentic institution, such as the regular cabinet. ''[T]here was no hierarchy of advisers, just as there was no institutionalized entity—a Kitchen Cabinet—meeting regularly with a firmly established membership,'' he concluded. ''The evidence suggests that decisions were made by the President in a haphazard manner with the assistance of those who had his ear at a particular time and who could, in turn, convince him of the wisdom of their position. . . . a Kitchen Cabinet as a stable and regularized institution, did not exist.'' Longaker hoped to demonstrate that Jackson maintained a firm control over policy making during his presidency, and he found the idea of a kitchen cabinet incompatible with presidential leadership.[5]

Longaker's distinction between an informal advisory pattern and a regularized, institutional structure such as the cabinet has been echoed by other historians and political scientists.[6] But the concept of a kitchen cabinet as something more than a casual ''procedure'' or a legendary figment of the opposition's imagination persists. Lynn L. Marshall, for example, has recently suggested that Jackson's kitchen cabinet served as an early version of a national political committee, performing a variety of important non-cabinet functions, especially the construction of an efficient, extensive, and deeply rooted political party.[7]

[4] Charles M. Wiltse, *John C. Calhoun* (3 vols., Indianapolis, 1944–1951), II, 25, 108; Bassett, *Life of Jackson*, 540; J. T. Adams and R. V. Coleman, eds., *Dictionary of American History* (5 vols., New York, 1940), III, 213; Richard B. Morris, ed., *Encyclopedia of American History* (New York, 1953), 163.

[5] Longaker, ''Jackson's Kitchen Cabinet,'' 97, 100, 101, 107–08.

[6] Glyndon G. Van Deusen, *The Jacksonian Era: 1828–1848* (New York, 1959), 34; Robert V. Remini, *Andrew Jackson* (New York, 1966), 110; Louis W. Koenig, *The Invisible Presidency* (New York, 1950), 40.

[7] Lynn L. Marshall, ''The Strange Stillbirth of the Whig Party,'' *American Historical Review*, LXXII (Jan. 1967), 450–51.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.24 - The Nullification Crisis and Republican Subversion

Richard B. Latner

ARTICLE	The Nullification Crisis and Republican Subversion
JOURNAL	The Journal of Southern History 43, no. 1 (1977)
EXCERPT	Original journal pages 19-20
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The Nullification Crisis and Republican Subversion

By Richard B. Latner

Historians are now fully aware of the enormous significance of the nullification controversy. South Carolina's protest against the tariffs of 1828 and 1832 was only a surface manifestation of profound planter fears, real and imaginary, that a hostile northern majority would subvert their slave system. The crisis laid bare southern anxieties about maintaining slavery and evidenced a determination to devise barriers against encroachments on southern rights.[1]

The Jackson administration's response to nullification has not received similar attention. The standard view holds that Andrew Jackson successfully dealt with the nullifiers by adopting a carrot-and-stick strategy. Alternately offering the rebels soothing words and tariff reform and threats of military force and summary execution, he brilliantly outmaneuvered his foes and compelled them to stand down. Although there is some disagreement over which element of his policy, conciliation or coercion, predominated, virtually all accounts agree that Jackson astutely used both to end the crisis.[2]

[1] The authoritative study of nullification is William W. Freehling, *Prelude to Civil War: The Nullification Controversy in South Carolina, 1816–1836* (New York and London, 1965). Other useful accounts are Chauncey S. Boucher, *The Nullification Controversy in South Carolina* (Chicago, 1916); Frederic Bancroft, *Calhoun and the South Carolina Nullification Movement* (Baltimore, 1928); and David F. Houston, *A Critical Study of Nullification in South Carolina* (New York, 1896).

[2] John A. Munroe, *Louis McLane: Federalist and Jacksonian* (New Brunswick, N.J., 1973), 369; Glyndon G. Van Deusen, *The Jacksonian Era, 1828–1848* (New York, 1959), 73; Robert V. Remini, *Andrew Jackson* (New York, 1966), 133; Frederick J. Turner, *The United States, 1830–1850: The Nation and Its Sections* (New York, 1935), 416–20; Arthur M. Schlesinger, Jr., *The Age of Jackson* (Boston, 1945), 96–97. Freehling, *Prelude to Civil War*, 280–81, emphasizes Jackson's reluctance to use force, while Marquis James, *The Life of Andrew Jackson* (2 vols. in 1, Indianapolis and New York, 1925), 619; and John S. Bassett, *The Life of Andrew Jackson* (2 vols. in 1, New York, 1938), 577–80, emphasize his militance. James C. Curtis, *The Fox at Bay: Martin Van Buren and the Presidency, 1837–1841*(Lexington, Ky., 1970), 40–44; and Sydney Nathans, *Daniel Webster and Jacksonian Democracy* (Baltimore, 1973), 52–56, argue that Jackson changed his priorities from conciliation to coercion as the controversy progressed. For a considerably different assessment of Jackson's behavior see Charles M. Wiltse, *John C. Calhoun: Nullifier, 1829–1839* (Indianapolis and New York, 1949), 169–82.

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That this interpretation has some legitimacy makes it especially hard to dislodge. But a further inquiry into nullification from the perspective of the White House indicates a more complex story. Inspired by the image of nullification as a conspiracy of ambitious demagogues, Jackson distorted the nature of the conflict he confronted. Determined to save the republic, he devised a policy that successfully isolated and overawed South Carolina but strained the loyalties of his party's southern wing. An assessment of Jackson's performance, then, defines more precisely the nature of this momentous event and provides additional insight into the structure and ideology of the early Democratic party.

Andrew Jackson's contempt for nullification is well known. "This abominable doctrine . . . strikes at the root of our Government and the social compact, and reduces every thing to anarchy . . . ," he contended. Although he considered himself an adherent of Jeffersonianism, he distinguished between an advocate of states' rights and a nullifier. "One will preserve the union of the states," he explained. "The other will dissolve the Union by destroying the Constitution by acts unauthorized by it." He often likened the Union under nullifier rule to a bag of sand with both ends open, observing that "the least pressure and it runs out at both ends."[3]

Jackson publicly broadcast his opposition to nullification in the administration's newspaper, the Washington *Globe*. Its directors, Amos Kendall and Francis Preston Blair, shared his principles and served as key members of his Kitchen Cabinet.[4] Indeed, the *Globe* had been established in part to counter the radical antitariff leanings of Duff Green's *United States Telegraph*. Shortly after its birth, the newspaper accused John C. Calhoun of driving "the people of South Carolina, and of the whole South, into a league of revolt," and when the nullifiers persisted in their activities, it stepped up the attack, signaling Jackson's identification of nullification with "CIVIL WAR AND DISUNION" and proclaiming his intention to "PRESERVE THE UNION AT EVERY HAZARD."[5]

Jackson's aversion to nullification owed something to his dispute with Calhoun, but his opposition by no means hinged on a conflict of personalities. He had denounced South Carolina's "ultra tariff

[3] Quotations in this paragraph in the order cited are from Jackson to Martin Van Buren, December 23, 1832, John S. Bassett, ed., *Correspondence of Andrew Jackson* (7 vols., Washington, 1926–1935), IV, 504; Robert Hayne to Jackson, February 4, 1831, with Jackson's endorsement, Bassett, *Life of Jackson*, 561; Jackson to Van Buren, December 25, 1832, Bassett, ed., *Correspondence*, IV, 506.

[4] For a discussion of Blair's and Kendall's relationship with Jackson see Richard B. Latner, "A New Look at Jacksonian Politics," *Journal of American History*, LXI (March 1975), 943–69.

[5] Quotations in this paragraph in the order cited are from the Washington *Globe*, March 2, 1831; November 29, 5, 1832. For evidence of the connection between nullification and the

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.25 - Andrew Jackson and the Judiciary

Richard P. Longaker

ARTICLE	Andrew Jackson and the Judiciary
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ANDREW JACKSON AND THE JUDICIARY

IN 1822, protesting a recent attack on the judiciary, a future President of the United States wrote to his nephew, "the constitution is worth nothing and a mere buble [*sic*] except guaranteed to them by an independent and virtuous judiciary."[1] President Jackson is not remembered as a great defender of "an independent and virtuous judiciary" but instead has gained notoriety and fame for the legendary statement, "John Marshall has made his decision; now let him enforce it." Because this statement appears with bothersome regularity in studies of our constitutional past, it seems appropriate to reinvestigate Jackson's views on the place of the judiciary in our governmental system.

Reëxamination of Jackson's attitude toward the judiciary reveals more than the defiance historians have associated with Jackson's conflict with John Marshall during the famous Georgia controversy. Jackson's attitude was ambivalent and to some extent contradictory. He was defiant, but mixed with his defiance were two other significant elements: the belief that the executive was independent of judicial control in certain situations and an attitude of deep-rooted respect for the judicial function in others. The President did not try to resolve his ambivalence, although in retrospect all three components of his attitude—defiance, independence and respect—were based on the shifting constitutional sands of the separation of powers.

Respect for the Marshall court was not a part of the Jacksonian creed. The Jacksonians, as lineal descendants of the Jeffersonians, were vigorous critics of the federal judiciary, and Jackson's election in 1828 was in part a popular repudiation of the institutional aggrandizement of the judicial branch. All Americans revered the Constitution but worship of the document did not presuppose worship of the Supreme Court

[1] Andrew Jackson to Andrew Jackson Donelson, July 5, 1822, *The Correspondence of Andrew Jackson* (Washington, 1926–1935), III, 167 (hereinafter cited as *Correspondence*).

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or the Chief Justice, whose nationalism, according to Jackson men, threatened the sovereignty of the states. There is no evidence, however, that the President shared the extreme hostility of many of his lieutenants, and at no time did he cooperate with their proposals for drastic judicial reform.

Before discussing the President's attitude in specific instances it is necessary to mention the rôle which personal feelings played in contributing to an antagonistic environment. Jackson certainly objected to the institutional imbalance resulting from the Court's aggressiveness under John Marshall, but his displeasure was as much personal as institutional. It is a mistake to confuse Jackson's lack of esteem for John Marshall with presidential hostility toward the judiciary.

The famous statement reads, "John Marshall has made his decision . . .", not "The Supreme Court has made its decision. . . ." As a republican, Jackson could be expected to frown upon the Chief Justice as a symbol of centralization, but his republican objections were far outdistanced by his attitude toward Marshall the man. Marshall had offended Jackson in the campaign of 1828 by siding with Clay and Adams. Jackson was personally affronted and believed Marshall had gone beyond the bounds of "non-partisanship". In 1828 Marshall allegedly declared, "should Jackson be elected, I shall look upon the government as virtually dissolved," and stated his intention to vote for the first time in twenty years to contribute to Jackson's defeat. His subsequent denial of this report did little to assuage the mercurial Jackson, for Marshall publicly admitted

> having said in private that though I had not voted since the establishment of the general ticket system and had believed that I should never vote during its continuance, I might probably depart from my resolution in this instance, from the strong sense I felt of the injustice of the charge of corruption against the President and the Secretary of State.[2]

Such statements were not calculated to evoke presidential sympathy. Thus Jackson's personal resentment toward Marshall was compounded with a prejudice against the federal

[2] Albert J. Beveridge, *The Life of John Marshall* (Boston, 1919), I, 463–464.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.26 - The Strange Stillbirth of the Whig Party

Lynn L. Marshall

ARTICLE	The Strange Stillbirth of the Whig Party
JOURNAL	The American Historical Review 72, no. 2 (1967)
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The Strange Stillbirth of the Whig Party

Lynn L. Marshall*

THE Whig party's peculiar birth cannot properly be understood with reference to politics only. In fact, its birth seems to have been integral to concurrent changes in American social organization in a very general sense. Let us entertain the hypothesis that the most significant developments in early nineteenth-century America involved not elevated political ideology (as, for example, states' rights versus national power and laissez faire versus state regulation), but rather changes in the ways Americans organized themselves to solve immediate problems of all sorts, whether public or private. Whig birth coincided with the crest of a ground swell of social change that would shortly reorganize American life around a proliferating series of specialized, large-scale organizations, flexible, functional, and impersonal.

The key element in the formation of the Whig party was party organization, not ideology. There seems sufficient reason to assume that Whig ideology, in early infancy at least, limited itself to opposition to "executive usurpation," the negative issue implied in its choice of name and the focus of its electioneering efforts throughout the mid-1830's.[1] One can hardly find another common ground between John C. Calhoun, prince of nullification, and nationalists like Henry Clay and Daniel Webster, all of whom joined to establish the party. This issue expressed a reaction to threatening changes in party organization and the role of political leadership. How did the Whig party, then, differ from the Jackson party in organizational structure? How did each relate to the structure of society at large? The conditions of Whig birth, seen in this light, may offer some enlightenment on that much-disputed entity, "Jacksonian Democracy."

Part of the obscurity concerning Whig origins has involved its precise date of birth. It has usually been placed somewhere in 1833 or 1834.[2] The

* An assistant professor at the University of California, Santa Barbara, Mr. Marshall is the author of "The Genesis of Grass-Roots Democracy in Kentucky," *Mid-America,* XLVII (Oct. 1965). He is interested in Jacksonian America and is presently writing a biography of Amos Kendall.

[1] The Whig name of course had originated long before in the English parliamentary party opposing usurpations of the king. American colonists during the Revolution had borrowed the name to indicate a similar opposition to the usurpations of George III.

[2] See, e.g., Charles M. Wiltse, *John C. Calhoun: Nullifier, 1829–1839* (New York, 1949), 223; Charles G. Sellers, Jr., *James K. Polk: Jacksonian, 1795–1843* (Princeton, N. J., 1957), 212–13; Glyndon G. Van Deusen, *The Jacksonian Era, 1828–1848* (New York, 1959), 96. The traditional view has attempted to make sense of the Whig party while maintaining primary focus on formal, explicit, ideological main currents running through the full span of

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name "Whig" was not used formally to designate the party until 1834. If, however, the alignment around the issue of executive usurpation is taken as the effective birth, it may be fixed with precision at a considerably earlier date. It came in July 1832, in direct and explicit reaction to Jackson's veto of the bill rechartering the national bank. Although the anti-Jackson party continued to call itself National Republican through the campaign of 1832, it abruptly and consciously became proto-Whig with the veto message.

On July 11, 1832, Webster rose in the Senate to denounce the Bank veto at great length, with all the force of his inimitable voice and commanding presence. Only the day before Jackson had sent his veto message to the Senate, and at the first possible moment Webster sprang to the attack. Webster paid scant attention to the arguments put forth in the veto message. He simply disdained it. He ignored, furthermore, what was ostensibly the principal doctrine of his National Republican party: nationalism versus doctrinaire states' rights. At one point he even noted that the veto's main argument was "little compliment to State sovereignty"—as indeed it was, despite rhetorical flourishes to the contrary. Webster focused instead on "executive usurpation."

> According to the doctrines set forth by the President, although Congress may have passed a law, and although the Supreme Court may have pronounced it constitutional, yet it is, nevertheless, no law at all, if he, in his good pleasure, sees fit to deny it effect; in other words to repeal and annul it.[3]

With this veto, concluded Webster, Jackson had effectively proposed a "pure despotism," and announced, like Louis XIV, " 'I AM THE STATE.' "[4]

On the following day, Henry Clay, the National Republican presidential nominee, delivered similar expressions to his Senate colleagues.[5] This double-barreled display was the more impressive because Webster, Clay, and the other pro-Bank oratorical giants had participated sparingly in the long debate that preceded passage of the bill, knowing that they had sufficient votes to ensure passage. Now, however, they unleashed their full power. Their speeches, moreover, in length, polish, and fluency of delivery, suggested considerable preparation.

Up to that time Webster, Clay, and party had not agitated executive usurpation, but for the remainder of the 1832 campaign it became the main party issue. The *National Intelligencer,* their principal party newspaper,

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American experience, rather than on more explicit, functional ideology. For an example of this, see *id.,* "Some Aspects of Whig Thought and Theory in the Jacksonian Period," *American Historical Review,* LXIII (Jan. 1958), 305–22.

[3] "Speech of Mr. Webster," Washington *National Intelligencer,* Sept. 22, 1832.

[4] *Ibid.*

[5] "Speech of Mr. Clay," *Niles' Weekly Register,* Aug. 11, 1832.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.27 - Administration and 'The Democracy': Administrative Law from Jackson to Lincoln, 1829-1861

Jerry L. Mashaw

ARTICLE	Administration and 'The Democracy': Administrative Law from Jackson to Lincoln, 1829-1861
JOURNAL	The Yale Law Journal 117, no. 8 (2008)
EXCERPT	Original journal pages 1570-1571
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Nobody knows what he will do when he does come. . . . My opinion is, that when he comes he will bring a breeze with him.

– Daniel Webster, 1829[1]

INTRODUCTION

Daniel Webster's words, written on the eve of Andrew Jackson's inauguration, described not just a man or an administration, but an era. It was a breezy three decades of technological, territorial, social, economic, and, perhaps above all, political change.[2] Technologically, America went from the age of the sailing vessel, the stage coach, and the quill pen to the age of the steamboat,[3] the railroad,[4] and the telegraph.[5] The technological revolutions in transportation and communications fueled economic growth and transformed the economy. Production of goods moved steadily from artisan or household fabrication toward industrial production organized on a factory model.[6] Because manufacturing is capital intensive and relies heavily on the credit

1. Letter from Daniel Webster to Ezekiel Webster (Jan. 17, 1829), *in* 17 THE WRITINGS AND SPEECHES OF DANIEL WEBSTER 467 (Fletcher Webster ed., 1903).

2. And change is unsettling. Leonard White characterizes the Jacksonian era as "years of almost uninterrupted excitement, tension, crisis, and apprehension." LEONARD D. WHITE, THE JACKSONIANS: A STUDY IN ADMINISTRATIVE HISTORY 1829-1861, at 18 (1954).

3. Steamboats had begun to ply the waters of the United States in the early nineteenth century. By the time Jackson took office, they dominated river transportation in the United States and were the most important agencies of internal transportation in the country for the next two decades. Even toward the close of the Jacksonian period, steamship tonnage grew phenomenally – from 5631 registered tons in 1847 to 97,296 by 1860. 4 GEORGE ROGERS TAYLOR, THE ECONOMIC HISTORY OF THE UNITED STATES: THE TRANSPORTATION REVOLUTION 1815-1860, at 58, 116 (1951).

4. The railroad had a similar and ultimately more profound impact. The Baltimore and Ohio Railroad Company laid the cornerstone for the first commercial railroad on July 4, 1828. From that standing start, railway trackage grew to cover 30,000 miles by 1860. ALBERT FISHLOW, AMERICAN RAILROADS AND THE TRANSFORMATION OF THE ANTE-BELLUM ECONOMY 3-8 (1965).

5. Morse's telegraph had an even more rapid diffusion than the railroad. The first line from Washington to Baltimore was completed in 1844. By 1861, 50,000 miles of telegraph wires spanned the continent. In an astonishing display of entrepreneurial daring, a transatlantic cable was completed in 1858. That cable parted after a few weeks of operation, and the line was not relaid until after the Civil War. On the development of the telegraph system generally, see ROBERT LUTHER THOMPSON, WIRING A CONTINENT: THE HISTORY OF THE TELEGRAPH INDUSTRY IN THE UNITED STATES, 1832-1866 (1947). Daniel Howe argues that the communications revolution was the single most transformative cause of change. *See* DANIEL WALKER HOWE, WHAT HATH GOD WROUGHT: THE TRANSFORMATION OF AMERICA, 1815-1848, at 5-7 (2007).

6. *See* TAYLOR, *supra* note 3, at 229-49.

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system, industrialization tended to produce not only stronger economic growth, but also stronger swings in the economic pendulum of boom and bust.

Revolutions in technology and industrial organization changed peoples' lives and were experienced as revolutions in social[7] and economic relations. Americans were wealthier, but economic life became both less secure and more depersonalized.[8] Even more profoundly, factory production stripped workers of social status and of control over their own labor. Many Americans embraced these changes. But fear of corporate monopoly, soft-money speculation, and the debasement of the value of honest toil also fueled a groundswell of anxious popular sentiment.[9]

Urbanization further fanned the flames of popular anxiety. The factory system required that workers be brought together in large numbers. Population and economic growth occurred, therefore, at hubs where transportation and communications facilitated industrial and commercial activity.[10] In the cities these newly urbanized and proletarianized Americans jostled together with wave after wave of foreign immigrants whose languages, customs, and religions reinforced native-born Americans' sense of a crumbling social order. Of thirty-one million Americans counted in the 1860 census,

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7. For an excellent brief description of the social changes generated by the market revolution of the early to mid-nineteenth century, see HARRY L. WATSON, ANDREW JACKSON VS. HENRY CLAY: DEMOCRACY AND DEVELOPMENT IN ANTEBELLUM AMERICA 6-13 (1998). For a more extensive discussion reaching back into pre-Jacksonian roots of economic change, see CHARLES SELLERS, THE MARKET REVOLUTION: JACKSONIAN AMERICA 1815-1846 (1991), which provides a substantial bibliographic essay on further sources at 429-47.

8. The rise of the corporation symbolized this shift from the personal to the impersonal and was understood primarily in ethical terms. A contemporary observer lamented, in words that seem almost timeless, "As directors of a company . . . men will sanction actions of which they would scorn to be guilty in their private capacity." ARTHUR M. SCHLESINGER, JR., THE AGE OF JACKSON 335 (1945) (quoting William M. Gouge).

9. For an extensive treatment, see TAYLOR, *supra* note 3, at 250-300, and sources cited therein. On the development of working class consciousness in New York, see SEAN WILENTZ, CHANTS DEMOCRATIC: NEW YORK CITY AND THE RISE OF THE AMERICAN WORKING CLASS, 1788-1850 (1984). At least one of America's largest antebellum employers, the ready-made clothing industry, managed to contract for home production by the seamstresses who made up the largest segment of its workforce. For a general history of the industry, see MICHAEL ZAKIM, READY-MADE DEMOCRACY: A HISTORY OF MEN'S DRESS IN THE AMERICAN REPUBLIC, 1760-1860 (2003).

10. Within a few years of the building of the Erie Canal, for example, New York City became the leading population and commercial center of the nation. *See* Robert G. Albion, *New York Port and Its Disappointed Rivals, 1815-1860*, 3 J. ECON. & BUS. HIST. 602 (1931). Whereas only sixty-one towns or cities had 2500 or more inhabitants in 1820, there were 392 such places by 1860. *See* U.S. BUREAU OF THE CENSUS, HISTORICAL STATISTICS OF THE UNITED STATES, COLONIAL TIMES TO 1970, at 11 tbl. A43-56 (1975).

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.28 - The Origins of Nullification in South Carolina

J. P. Ochenkowski

ARTICLE	The Origins of Nullification in South Carolina
JOURNAL	The South Carolina Historical Magazine 83, no. 2 (1982)
EXCERPT	Original journal pages 121-122
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THE ORIGINS OF NULLIFICATION IN SOUTH CAROLINA

J. P. OCHENKOWSKI *

Despite its importance for the development of Southern sectionalism, the nullification controversy remains one of those critical events in United States history which have never been explained adequately. For decades professional historians focused on the role of John C. Calhoun in the events of nullification, portraying him either as a nullificationist, secessionist, Union-smashing heresiarch who had been out to wreak a horrible vengeance on the nation in general, and on Andrew Jackson in particular for the shipwreck of his political hopes, or as the true but misunderstood moderate, a man who had worked mightily to bridle the excesses of South Carolina's free trade radicals, and who had openly avowed nullificationist sentiments only when it became necessary for the preservation of his political base within the state.

For nearly a century after the event, discussions of nullification missed the central question which emerged from the proceedings of the winter of 1832-1833. By passing the Ordinance of Nullification, South Carolina clearly had placed itself in the van of radical Southern nationalism, a position it would retain until secession became a reality in December 1860. Not so clear are the reasons for the state's early embrace of this radical stance, one rejected simultaneously by every other Southern state. Professor William W. Freehling's *Prelude to Civil War,* the only serious effort to discover the roots of South Carolina's early forwardness, has generally withstood the test of time well.[1] However, recently discovered sources call into doubt the bases of Freehling's argument, and suggest that further exploration of the nullification controversy may be necessary.

* A graduate student in the history department at Harvard University.

[1] William W. Freehling, *Prelude to Civil War: The Nullification Controversy in South Carolina, 1816-1836* (New York, 1966).

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I

The conclusion of the Civil War was a signal to begin writing the history of that struggle. While historians naturally emphasized the importance of the events immediately leading up to secession and the subsequent military activity, they also discussed nullification from the perspective of the coming of the War. The viewpoints various authors staked out in these early years bore a direct and unmistakable relationship to the side of the Potomac on which their sentiments lay.

Alexander Hamilton Stephens, former vice president of the Confederacy, clearly set forth the Southern view in his *Constitutional View of the late War Between the States*.[2] Stephens believed that South Carolina had been justified in using nullification to seek redress from the tariff of 1828. He saw the measure as the only legitimate way of gaining relief from a Congressional majority strongly disinclined to yield, while sedulously avoiding the only alternative, secession.

> It is proper . . . to state that the primary and leading object of its advocates was not Secession or Disunion. It was just the contrary. But so subtle were the principles upon which it was founded, that it was never understood by the country.[3] Calhoun's role, in Stephens' account, was that of a moderator.

While he implied that Calhoun had been the real power in South Carolina, and that the events of nullification would never have proceeded without his blessing, Stephens stated unequivocally that once Congressman Verplanck had introduced his compromise tariff, and after Henry Clay had spoken in its behalf, Calhoun had embraced the proposal and had led the state away from nullification. Calhoun's leadership and moderation, not the fear of Jackson and federal armies, had solved the crisis. Nullifiaction

> was abandoned by those who initiated it as a mode of redress, when the wrongs and grievances complained of were redressed by Congress, and not until then. . . . It was neither put down or up, nor was the theory of the Government, on which the doctrine was founded, ever put down or up. It simply was never put to a practical test.[4]

[2] Alexander H. Stephens, *A Constitutional View of the Late War between the States; its causes, character, conduct, and results. Presented in a series of colloquies at Liberty Hall*, 2 vols. (Philadelphia, 1868), I, pp. 419-440.

[3] Ibid., I, p. 421.

[4] Ibid., I, pp. 421, 440.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.29 - Jeffersonian Benevolence on the Ground: The Indian Land Cession Treaties of William Henry Harrison

Robert M. Owens

ARTICLE	Jeffersonian Benevolence on the Ground: The Indian Land Cession Treaties of William Henry Harrison
JOURNAL	Journal of the Early Republic 22, no. 3 (2002)
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JEFFERSONIAN BENEVOLENCE ON THE GROUND: THE INDIAN LAND CESSION TREATIES OF WILLIAM HENRY HARRISON

Robert M. Owens

Analyzing Indian treaties in the early republic presents a number of difficulties, especially when they involve the enigmatic third president. Thomas Jefferson wanted to preserve native peoples, but not native cultures. He wanted to treat Indians with justice. Justice, however, always proved secondary to the desire for America's constantly expanding "Empire for Liberty." Jefferson rationalized mightily, deciding that Indians would be healthier and happier as small yeoman farmers, and systematically ignored all evidence to the contrary. In this way, Jefferson convinced himself that Indian land sales provided a scenario where all parties benefited. Although Jefferson publicly insisted that he would only purchase lands that Indians willingly sold, he showed little hesitation in squeezing tribal leaders until they ceded their territory.[1]

Robert M. Owens is an advanced doctoral candidate in history at the University of Illinois, Urbana-Champaign. He would like to thank Daniel C. Littlefield, *Carolina Professor of History* at the University of South Carolina, Frederick E. Hoxie, *Swanlund Professor of History* at the University of Illinois, Dr. John Hoffmann, librarian at the Illinois Historical Survey, and Professor Michael F. Conlin of Eastern Washington University, for their generosity in reading drafts of this article, and the anonymous referees for the *Journal of the Early Republic*.

[1] Jefferson and most other Americans steadfastly ignored Indian women's farming, which provided the vast bulk of food for most Indians east of the Mississippi. Yet Indian cornfields and grain stores were and had been primary targets when the United States fought the tribes. In part this may be explained by a desire to see the Indians as primitive, wandering hunters, who possessed far more land than they could really use, which in turn served to help rationalize Americans' taking such land for agriculture. See Reginald

JOURNAL OF THE EARLY REPUBLIC, 22 (Fall 2002). © 2002 Society for Historians of the Early American Republic.

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In *Jefferson and the Indians*, Anthony F. C. Wallace asserts that President Jefferson served as the architect for American territorial expansion and the Indian Removal period. For Wallace, Jefferson's controlling personality proved the driving force behind America's settlement and Indian policy in the early nineteenth century. Though Jefferson touted himself as a beacon of liberty, a malevolent element in his personality showed through in his determination to acquire Indian lands by any means necessary. On the other side of the issue, Bernard Sheehan's *Seeds of Extinction* and Francis Paul Prucha's *The Great Father* argue that though Jefferson's Indian policy did treat Indians poorly on many occasions, it emanated from a philanthropic, if confused, set of motives.[2]

Although not always in agreement, both camps offer compelling insights into Jefferson's abstract motives regarding America's territorial expansion. That they tend to express surprise and regret at the victory of Jeffersonian land hunger over Jeffersonian benevolence, however, reveals that they have privileged the president's seductive prose over the crucial role played by his lieutenants on the frontier. A detailed analysis of the actions of one such lieutenant offers another perspective. William Henry Harrison's career as governor of Indiana Territory demonstrates that Jefferson's lofty ideals for civilization and justice were routinely trumped by his consistent support of ardent expansionists on the ground. The land cession treaties Harrison negotiated in Indiana Territory from 1803 to 1809 provide an excellent case study of how Jefferson's policy, formed in Washington, worked in practice on the frontier.

Created in 1800, when Harrison was just twenty-seven years old, Indiana Territory originally comprised the future states of Indiana, Illinois, Michigan, and Wisconsin. During Harrison's twelve-year tenure Congress continually pared this territory down to essentially the present-day boundaries of the state of Indiana. Appointed by the president rather than elected by local citizens, a territorial governor wielded considerable power. Harrison also was appointed the superintendent of Indian affairs in the territory, and the U. S. commissioner plenipotentiary for concluding treaties

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Horsman, *Expansion and American Indian Policy, 1783-1812* (East Lansing, MI, 1967), 106, 143.

[2] Anthony F. C. Wallace, *Jefferson and the Indians: The Tragic Fate of the First Americans* (Cambridge, MA, 1999); Bernard Sheehan, *Seeds of Extinction: Jeffersonian Philanthropy and the American Indian* (Chapel Hill, 1973); Francis Paul Prucha, *The Great Father: The United States Government and the American Indians* (Lincoln, 1984). See also Peter S. Onuf, *Jefferson's Empire: The Language of American Nationhood* (Charlottesville, 2000).

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.30 - The Economics and Politics of Charleston's Nullification Crisis

Jane H. Pease and William H. Pease

ARTICLE	The Economics and Politics of Charleston's Nullification Crisis
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The Economics and Politics of Charleston's Nullification Crisis

By Jane H. Pease and William H. Pease

Even before the 1828 tariff became law, South Carolina had flirted openly with nullification.[1] Robert James Turnbull's 1827 "Brutus" letters, first published in the Charleston *Mercury,* had popularized the doctrine in Carolina's chief port. Then, a year later, the South Carolina Exposition endorsed interposition, and the state legislature seemed ready to dissolve the Union. When, in January 1830, the Webster-Hayne debate revealed an impending constitutional crisis to a shocked North, nullification had already become a practical political issue in South Carolina.

Historians, long fascinated by the subsequent drama, have plumbed the economic and political implications inherent in Andrew Jackson's militant nationalism and John Caldwell Calhoun's brilliant assertion of states' rights. Some have found in the event as little as a personal clash between ambitious men; others, as much as a prelude to civil war. The crisis has also served as a glass through which to examine South Carolina's aberrant political system and a key to unlock the racial anxieties present in a state with a black majority.[2]

[1] The authors wish to thank the following colleagues for their criticisms of earlier versions of this paper presented at the SUNY-Brockport Conference on Social and Political History, October 1976, and at an American Antiquarian Society seminar on political and social history, April 1977: James M. Banner, Jr., Stanley L. Engerman, Ronald P. Formisano, Mary E. Young, and Robert M. Zemsky. We wish also to thank the American Philosophical Society and the University of Maine Faculty Research Grants Committee for making possible much of the research on which this article is based. David Kovenoch, director of the University of Maine Social Science Research Institute, read various versions of this article and performed the multiple-regression analysis of Charleston's high-prestige voters.

[2] See among others James M. Banner, Jr., "The Problem of South Carolina," in Stanley Elkins and Eric McKitrick, eds., *The Hofstadter Aegis: A Memorial* (New York, 1974), 60–93; Chauncey S. Boucher, *The Nullification Controversy in South Carolina* (New York, 1916); Patrick S. Brady, "Political and Civil Life in South Carolina, 1787–1833" (unpublished Ph.D. dissertation, University of California at Santa Barbara, 1971); William H. Denney, "South Carolina's Conception of the Union in 1832," *South Carolina Historical Magazine,* LXXVIII (July 1977), 171–83; William W. Freehling, *Prelude to Civil War: The Nullification Controversy in South Carolina, 1816–1836* (New York and London, 1965);

Jane H. Pease and William H. Pease are professors of history at the University of Maine.

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Much examined as both national and state phenomenon, the nullification crisis has been largely ignored as a force shaping partisan politics in one of the South's major cities. Nonetheless, between 1830 and 1832, as a clear-cut two-party structure emerged in the city, Charleston shifted dramatically from a Unionist bastion to a nullification stronghold. Concomitant with that change, which shook the city to its core and laid bare a complex political culture, was a redistribution of economic as well as political power. True it was that fears generated by the intense partisanship which the crisis had engendered ultimately destroyed the party structure created by it. Nonetheless, the apparent relapse to traditional, deferential politics occurred only after the nullification controversy had provided an opportunity for recent immigrants to seek community consideration for their distinctive ethnocultural values, had offered a means for businessmen to readjust competing economic interests, and, of most lasting significance, had served as a major channel through which socially prestigious and economically privileged men fought for power.

Intensifying Charleston's nullification experience was anxiety over the city's stagnant economy in the 1820s. Between 1820 and 1830 her imports had diminished every year but one. In 1825 the international cotton market collapsed, and the dramatic growth in the city's cotton exports earlier in the decade leveled off. In the wake of that collapse, general economic depression followed. Unemployment and inflation plagued Charleston's inhabitants. Upcountry legislators threatened to reduce the city's representation in a state government which already taxed city property and commercial income more heavily than agricultural land and produce. Charleston's appeals for aid to internal improvements went unheard in the rest of the state. Then, in 1828, her languishing economy seemed further threatened by the new federal tariff. Many feared that commerce would soon "take its departure," leaving the city "deserted," its prospects "ruined."[3] Any change, therefore, promised improvement.

And indeed, once the nullification crisis began in earnest Charleston's prospects did soar. In 1830 construction began on the

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Richard B. Latner, "The Nullification Crisis and Republican Subversion," *Journal of Southern History,* XLIII (February 1977), 19–38; and Charles M. Wiltse, *John C. Calhoun, Nullifier, 1829–1839* (Indianapolis and New York, 1949).

[3] J. L. Dawson and H. W. De Saussure, *Census of the City of Charleston, South Carolina, for the Year 1848* . . . (Charleston, 1849), 134, 101. "A Constituent" in the Charleston *Courier,* October 30, 1829 (first quotation); *Proceedings of the Fourth Convention of Merchants and Others, Held in Charleston, S. C., April 15, 1839, for the Promotion of the Direct Trade* (Charleston, 1839), 54–55 (second and third quotations), is a historical survey of Charleston's economic past.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.31 - The Legacy of Indian Removal

Theda Perdue

ARTICLE	The Legacy of Indian Removal
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The Legacy of Indian Removal

By Theda Perdue

Removal is where most historical accounts of southern Indians end, but that is where this story begins. Intended to rid the South of Indian nations with communal lands and sovereign powers, the removal policy of the 1830s fell short. Not only did individual Indians remain, but native communities also struggled over the next century and a half to carve out a place for themselves in the South.[1] For much of that time, U.S. officials schemed to transport remnants of removed nations to Indian Territory, and in a variety of scenarios, both states and individuals sought to dispossess other Indians and dislocate their communities. The ongoing efforts to expel Indian people from the South and/or obliterate their status as Indians met with little of the highly publicized opposition that the removal of the 1830s provoked. Instead, white southerners used the expulsion of Indians in the Jacksonian era to obscure the continuing presence of native people in the South, to fuse their own lost cause to that of the Indians, and to fortify Jim Crow against the challenges that diversity among non-whites presented. As for Indians, poverty, isolation, disenfranchisement, intimidation, and racism compounded their terror and threatened to render them powerless, but in a struggle that coincided with the civil rights movement, some southern Indians forced a reckoning. As historians, we have incorporated Indians into narratives of colonization, slavery, and the expansion of the cotton kingdom, but after the Jacksonian period, we puzzle over what to do about scattered, historically disconnected Indian communities. One way of linking those communities to each other and to the broader history of the South is to

[1] For an overview, see Theda Perdue and Michael D. Green, *The Columbia Guide to American Indians of the Southeast* (New York, 2001), chap. 7. For purposes of this essay, the South excludes Indian Territory and Oklahoma, which legally defined Indians as white. The article focuses on well-documented Indian tribes and communities in east Texas, Louisiana, Mississippi, Alabama, Tennessee, Georgia, Florida, South Carolina, North Carolina, and Virginia.

Ms. Perdue is the Atlanta Distinguished Professor of Southern Culture Emerita in the Department of History at the University of North Carolina at Chapel Hill. She delivered this paper on Friday, October 28, 2011, as the presidential address at the seventy-seventh annual meeting of the Southern Historical Association in Baltimore, Maryland.

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recognize that removal served to solidify a biracial South and reinforce white power long after the Trail of Tears ended. Furthermore, native resistance to dispossession and segregation helped loosen the hold of Jim Crow on the region.

Most southern historians are aware that the United States government removed the so-called five civilized tribes, a term Indian historians no longer use, and some scholars know that remnants of four of the tribes remained in the South. A private reservation granted under the 1814 treaty that ended the Creek War provided land in Alabama on which a community coalesced, one that the United States recognized in 1984 as the Poarch Band of Creeks.[2] Cherokees in North Carolina who had received private reservations under an 1819 treaty and subsequently lived outside the Cherokee Nation formed the nucleus of the Eastern Band of Cherokee Indians, recognized by Congress in 1868.[3] Thousands of Choctaws who unsuccessfully sought reservations under their removal treaty remained in Mississippi, landless and impoverished until the United States stepped in after World War I and then, in 1945, accepted the tribal constitution that formally established them as the Mississippi Band of Choctaw Indians.[4] And in southern Florida, Indians who avoided capture in the Seminole Wars struggled to survive in the swamps and marshes. In 1957 and 1961 they constituted Seminole and Miccosukee tribes under the Indian Reorganization Act.[5] As the dates of their formal organizations indicate, the United States, in the aftermath of removal, did not officially acknowledge any of these remnants as tribes, and before World War II, only the Cherokees had a government-to-government relationship with Washington, D.C.

The absence of formal governments, commonly held land, and federal relations made these remnants vulnerable to exploitation by whites. Recognizing the dangers, Jim Boy, a Creek headman, returned to Alabama in 1848 to rescue Creeks left behind in his tribe's chaotic removal. He saved sixty-five countrymen, but he failed to secure the freedom of at least a hundred others whom white Alabamians held in

[2] J. Anthony Paredes, "Federal Recognition and the Poarch Creek Indians," in Paredes, ed., *Indians of the Southeastern United States in the Late Twentieth Century* (Tuscaloosa, 1992), 120–39.

[3] John R. Finger, *The Eastern Band of Cherokees, 1819–1900* (Knoxville, 1984), 10, 105–6.

[4] John H. Peterson Jr., "Choctaw Self-Determination in the 1980s," in Paredes, ed., *Indians of the Southeastern United States*, 140–61, esp. 141–42.

[5] Harry A. Kersey Jr., "Seminoles and Miccosukees: A Century in Retrospective," *ibid.*, 102–19.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.32 - Lost Opportunities for Compromise in the Bank War: A Reassessment of Jackson's Veto Message

Edwin J. Perkins

ARTICLE	Lost Opportunities for Compromise in the Bank War: A Reassessment of Jackson's Veto Message
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Lost Opportunities for Compromise in the Bank War: A Reassessment of Jackson's Veto Message

EDWIN J. PERKINS

¶ *In this article Professor Perkins reexamines President Andrew Jackson's objections to the bill to recharter the Second Bank of the United States, as expressed in his famous veto message of 1832. He observes that, in addition to its exaggerated rhetoric, the veto message discusses at length a number of alleged deficiencies in the existing charter provisions. Professor Perkins's systematic analysis of the probable ramifications of a series of judicious alterations reveals that a compromise bill reformulated to meet most of the president's stated objections would not have seriously undermined the institution's position in American financial markets. Although several opportunities for sensible compromise arose, Nicholas Biddle and other members of the probank faction disregarded them. Perkins argues that the failure of bank supporters to consider comparatively modest modifications in the terms of recharter was a major blunder that ultimately doomed the Second Bank.*

The confrontation between President Andrew Jackson and supporters of the bill to recharter the Second Bank of the United States in 1832 is among the most frequently researched episodes in American history. And deservedly so, for the outcome of the battle over the bank had a profound effect on the institutional development of the nation's financial system. In the decades that followed, the issue became so controversial and divisive that it defied political solution until the creation of the Federal Reserve Bank in the twentieth century.

One thrust of scholarship has attempted to assess whether Jackson's attacks on the bank were warranted by the facts or were rather mainly reflections of his pronounced biases against banks and paper money.[1] Although Jackson and the supporters of the Second Bank have both earned their share of defenders and detractors over the years, the

EDWIN J. PERKINS is professor of history at the University of Southern California.

[1] The literature on Jackson and the issue of banking and finance is vast. A representative sample of a few important books includes: Bray Hammond, *Banks and Politics in America from the Revolution to the Civil War* (Princeton, N.J., 1957); Arthur Schlesinger, Jr., *The Age of Jackson* (Boston, 1945); John McFaul, *The Politics of Jacksonian Finance* (Ithaca, N.Y., 1972); James R. Sharp, *The Jacksonians versus the Banks: Politics in the States after the Panic of 1837* (New York, 1970); William Shade, *Banks or No Banks: The Money Issue in Western Politics* (Detroit, Mich., 1972); Edward Pessen, *Jacksonian America: Society, Personality, and Politics* (Homewood, Ill., 1969). The best account of the conflict between Jackson and the Second Bank remains Robert Remini's *Andrew Jackson and the Bank War* (New York, 1967); Remini covers much of the same territory in volume 2 of *Andrew Jackson and the Course of American Freedom* (New York, 1981), 331–73.

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modern judgment of economic historians is overwhelmingly favorable toward the bank. They argue that the bank performed its tasks in a manner beneficial to the stability of the economy, especially after 1823, and that it therefore did not deserve the fate it met at the hands of an aroused president.[2]

This paper accepts the validity of the arguments favoring the continuance of the Second Bank, but it uses that position simply as a point of departure for a thorough review of a series of substantive objections to provisions of the recharter bill as outlined in the presidential veto message of 1832.[3] Jackson expressed opposition to the bank on two levels. First, he opposed it on an abstract plane for using its alleged monopoly power to promote class and regional divisions within society. On another level, he cited at least seven specific reservations about the terms of recharter and discussed each issue at length. Even if most of his objections were based on questionable judgments, it does not necessarily follow that a bank bill drafted to satisfy the bulk of his complaints would have been unworkable.

My analysis of the contested provisions indicates that the supporters of the bank could have acceded to numerous alterations in the charter terms without emasculating the institution. In truth, the bank's allies could have acquiesced to almost all of Jackson's preferences without drastically transforming the structure or operations of the bank. If they were genuinely concerned about sustaining the bank in order to stabilize the U.S. financial system and promote the general welfare, then their failure to seek a negotiated compromise in the face of determined presidential opposition was not only impolitic but shortsighted as well.

The chain of events leading up to the presidential veto is well known and can be briefly summarized. Jackson fired the first volley in the battle over the Second Bank in his state of the union message to Congress in late 1829. Acknowledging the existence of a campaign to renew the charter of the bank several years in advance of its scheduled expiration in 1836, the president put its supporters on notice by reviving the old question about its constitutionality and by charging that it had "failed in the great end of establishing a uniform and sound

[2] See, for example, Walter B. Smith, *Economic Aspects of the Second Bank of the United States* (Cambridge, Mass., 1953); Fritz Redlich, *The Molding of American Banking*, 2d ed. (New York, 1968), 1: 96–181; Richard Timberlake, *The Origins of Central Banking in the United States* (Cambridge, Mass., 1978). Every textbook written by an economic historian over the last quarter-century, and there have been many, including one of my own, provides a generally positive assessment of the accomplishments of the bank under the leadership of Nicholas Biddle.

[3] President Andrew Jackson, "Veto Message," 10 July 1832, *House Miscellaneous Documents*, 53d Cong., 2d sess. (Washington, D.C., 1893–94), 2: 576–91. The complete text of the message plus excerpts from books and articles related to the controversy, both pro and con, are found in *Jackson vs. Biddle's Bank: The Struggle over the Second Bank of the United States*, ed. George Rogers Taylor, 2d ed. (Lexington, Mass., 1972), 10–29.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.33 - Jackson, the Bank War, and Liberalism

Harold J. Plous

ARTICLE	Jackson, the Bank War, and Liberalism
JOURNAL	The Southwestern Social Science Quarterly 38, no. 2 (1957)
EXCERPT	Original journal pages 99-100
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Jackson, the Bank War, and Liberalism

HAROLD J. PLOUS*
UNIVERSITY OF CALIFORNIA, SANTA BARBARA COLLEGE

IT HAS BEEN THE PRACTICE of writers in recent years to portray President Jackson as one of the forerunners of modern liberalism.[1] As supporting evidence they have used Jackson's unrelenting and successful fight to overthrow the second Bank of the United States. It is the purpose of this paper to challenge such an interpretation of history insofar as support is gained from the Bank War. That is not to argue that Nicholas Biddle was the great liberal and Andrew Jackson the conservative. It would perhaps be more accurate to state that, within the limited scope of the Bank War period, Jackson does not shine as an apostle of *economic liberalism*.

I would contend that there are two main facets of liberalism: political and economic. Using this approach, it may be argued that Jackson was liberal insofar as his political philosophy was concerned but that he cannot retain the liberal mantle for his economic concepts. It is, of course, unthinkable to proceed with a discussion concerning "liberalism" without making clear what definition of that ambiguous term is being employed. A liberal is here defined as one who, at any given time, understands, and gives voice to, the aspirations and energies of the people. Although this definition has, no doubt, certain defects, it does have the advantage of applicability over time. Thus we need not constantly differentiate between the classical liberal and the modern liberal during the course of the argument.

It should be understood that the methods of liberalism can, and in fact have, changed with time, while the end goal has remained constant. Clearly the role played by government in social legislation today finds favor with liberals, whereas in Adam Smith's or Jackson's time it would have been found

* The QUARTERLY has learned with deep regret that Harold J. Plous, assistant professor of economics, University of California, Santa Barbara College, died from a heart attack in London on May 2, 1957, while on sabbatical leave to do research on British monetary policies since the Second World War. The article appearing here had been accepted for publication prior to his death.—EDITOR.

[1] See Marquis James, *The Life of Andrew Jackson* (Indianapolis, The Bobbs-Merrill Co., Inc., 1938); also Arthur M. Schlesinger, Jr., *The Age of Jackson* (Boston, Little Brown & Company, 1946). For a penetrating review of the latter, see Bray Hammond, "Schlesinger's Age of Jackson," *Journal of Economic History,* Vol. VI (1946), pp. 79–84.

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abhorrent. Yet in accord with the definition given, those favoring such use of government power are considered just as liberal as their ancestors of earlier years.

Although the adoption of the definition given above eliminates the necessity of differentiating between classical and modern liberalism, the problem remains to determine who merited or merits the label of liberal by determining what were or are the aspirations of the people. That there is room for disagreement on this point is sufficiently apparent, and therefore if my argument appears to be in any sense dogmatic it is not my intention that it be so.

To establish the groundwork for the analysis it is necessary to review the course of events that have been labeled "the Bank War" and place them in perspective with the nation's growth and development.[2] If the evidence indicates that the people's wish for economic expansion was deterred or hampered by the Administration's banking policy, a strong case will have been made against Jackson as a liberal in the economic sense.

It is hardly necessary to say that expansion was the keynote of the period. Every history on the period stresses the expectations of economic growth. But it is necessary to examine the status of banking and credit at the time of Jackson's election to the Presidency and then determine whether the policies followed during his two terms of office operated to provide the growth of stable banking and credit facilities that the nation required for this expansion.[3]

At the start of the decade of the 1820's, state banking was in a chaotic condition: "A bank could still be chartered and currency notes issued with no other obligation than the printing bill."[4] During this decade, the Bank of the United States was doing its best to restore specie redemption so that bank notes might be brought back to par. Toward this end, it refused to accept state bank-notes that could not be redeemed in specie. In contrast to the South and West, banking conditions in the East were ideal, and in large cities of the East the bank check became the accepted medium of commercial payments. Unfortunately the relative stability achieved in the East was but an island surrounded by chaos. It could be said that from 1815 to 1828, the currency of the United States was paper based upon specie. Actually during most of this period, the specie backing was illusory. The dollar might be the national unit of reckoning, but in many parts of the country few of the dol-

[2] The work of Ralph C. H. Catterall, *The Second Bank of the United States* (Chicago, University of Chicago Press, 1903), has been an invaluable reference for this entire period.

[3] For an excellent discussion of the administrative relations between the Bank of the United States and the government, see Leonard D. White, *The Jacksonians* (New York, The Macmillan Company, 1954), Chap. XXIV.

[4] Shultz and Caine, *Financial Development of the United States* (New York, Prentice-Hall, Inc., 1937), p. 182.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.34 - 'Female Petitioners Can Lawfully Be Heard': Negotiating Female Decorum, United States Politics, and Political Agency, 1829-1831

Alisse Theodore Portnoy

ARTICLE	'Female Petitioners Can Lawfully Be Heard': Negotiating Female Decorum, United States Politics, and Political Agency, 1829-1831
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"FEMALE PETITIONERS CAN LAWFULLY BE HEARD": NEGOTIATING FEMALE DECORUM, UNITED STATES POLITICS, AND POLITICAL AGENCY, 1829-1831

Alisse Theodore Portnoy

It may be, that female petitioners can lawfully be heard,
even by the highest rulers of our land.
—Catharine Beecher, 1829
"Circular Addressed to Benevolent Ladies of the U. States"

Catharine Beecher kept it a secret for decades. In 1829 Beecher, best known as a leader of the nineteenth-century domestic economy movement and as an active, life-long proponent of women's education, went home to Boston to visit her family. Her visit coincided with the visit of her father's friend, Jeremiah Evarts. Evarts and Lyman Beecher worked together in evangelical reform, and a prominent national issue troubled both men: the federal government's plan to remove Native Americans from within the

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Alisse Theodore Portnoy is an assistant professor in the Department of English Language and Literature at the University of Michigan. She thanks Joshua Miller, Martha Watson, Steven Mailloux, the rhetoric group at Penn State University, and the readers of *JER* for their responses to earlier versions of this essay. This essay derives from a longer project on women's early national political activism in the United States, a project supported by grants from the National Endowment for the Humanities as well as the Center for the Education of Women and the Horace H. Rackham School of Graduate Studies at the University of Michigan.

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boundaries of six southern states. Almost fifty years later, in *Educational Reminiscences and Suggestions*, Catharine remembered Evarts describing to her the "distressing and disastrous consequences that would result from the cruel measures undertaken" by the federal government against the Cherokee, Chickasaw, Choctaw, Creek, and Seminole southern tribes. Catharine also remembered Evarts telling her that "American women might save these poor, oppressed natives." Inspired by Evarts's personal request that she "devise some method of intervention," Catharine returned to Hartford Female Seminary, the school for girls of which she was founder and principal. Upon her return, Catharine Beecher granted Evarts's request. She initiated and orchestrated the first national women's petition campaign in United States history. Amazingly, nearly 1,500 women followed her lead.[1]

But later in her public debate with Angelina Grimké on women's antislavery petitioning, Beecher adamantly denied women the right to petition the federal government. In 1837 she told Grimké and her readers, "In this country, petitions to congress, in reference to the official duties of legislators, seem, IN ALL CASES, to fall entirely without the sphere of female duty." Beecher subsequently became the target for Grimké's thoughtful, spirited, and committed essays in support not only of the women's antislavery petition campaign but also women's rights more broadly.[2] Yet only eight years earlier Beecher had urged women to petition Congress in protest of the federal government's Indian removal policies.

This seeming contradiction has puzzled scholars. In an award-winning 1999 *Journal of American History* essay, Mary Hershberger seeks to explain Beecher's reversal. She argues that the "unsettling experience" of "congressional attacks . . . seems to have contributed to the end of both [Beecher's] work at the Hartford Seminary and her advocacy of women's political petitioning." But only one congressman attacked women for their antiremoval activism. Despite the door being opened for attack, other

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[1] Catharine Beecher, *Educational Reminiscences and Suggestions* (New York, 1874), 62. The six southern states were Alabama, Florida, Georgia, Mississippi, North Carolina, and Tennessee.

[2] Catharine Beecher, *An Essay on Slavery and Abolition, with Reference to the Duty of American Females* (2nd ed., Philadelphia, 1837), 104; Angelina Emily Grimké, *Letters to Catherine* [*sic*] *E. Beecher* (1838; rep., Freeport, 1971). On Grimké's response to Beecher, see Stephen Howard Browne, *Angelina Grimké: Rhetoric, Identity, and the Radical Imagination* (East Lansing, 1999), 83-110.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.35 - Exercising Their Right: African American Voter Turnout in Antebellum Newport, Rhode Island

Richard C. Rohrs

ARTICLE	Exercising Their Right: African American Voter Turnout in Antebellum Newport, Rhode Island
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Exercising Their Right: African American Voter Turnout in Antebellum Newport, Rhode Island

RICHARD C. ROHRS

DURING the first half of the nineteenth century, just as the franchise was being extended to more and more white males in the United States, it was being withdrawn from African Americans, even in the North. In four northern states—New Jersey (1807), Connecticut (1818), Rhode Island (1822), and Pennsylvania (1838)—the right to vote was taken away outright. In 1821, the New York state legislature established a more stringent property requirement for African Americans than for whites.[1] As late as 1860, only Maine, Massachusetts, New Hampshire, Rhode Island, and Vermont allowed African American males to vote without restriction beyond the qualifications required of all voters. In three other states—Michigan, New York, and Ohio—African Americans could vote in some types of elections or if they met certain conditions.[2] Leon Litwack estimates that only about 6 percent of the free black population of the northern states was admitted at the polls during the antebellum period.[3] It is not surprising, then, as

[1]James Oliver Horton and Lois E. Horton, *In Hope of Liberty: Culture, Community and Protest among Northern Free Blacks, 1700–1860* (New York: Oxford University Press, 1997), pp. 107, 168; Leon F. Litwack, *North of Slavery: The Negro in the Free States, 1790–1860* (Chicago: University of Chicago Press, 1961), p. 75; Dixon Ryan Fox, "The Negro Vote in Old New York," *Political Science Quarterly* 32 (June 1917): 263; Charles H. Wesley, "Negro Suffrage in the Period of Constitution-Making, 1787–1865," *Journal of Negro History* 32 (April 1947): 159–60, 161, 162, 163; Eric Ledell Smith, "The End of Black Voting Rights in Pennsylvania: African Americans and the Pennsylvania Constitutional Convention of 1837–1838," *Pennsylvania History* 65 (Summer 1998): 279, 280.

[2]Horton and Horton, *In Hope of Liberty*, p. 169.

[3]Litwack, *North of Slavery*, p. 91.

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one historian recently lamented, that because of the scarcity of sources, "northern black voting . . . remains a marginalized topic."[4]

One important source, however, is extant, and it yields valuable insights into African American voting behavior in one New England town.[5] At the mid-nineteenth-century town meetings of Newport, Rhode Island, occasions for conducting the town's business, residents also voted annually for state officers, biennially to elect a member of the United States House of Representatives, and every four years to elect a president. During the 1840s, town meeting minutes often recorded the names of those men, black and white, who voted, although not for whom they voted.[6] When analyzed in conjunction with the 1850 census and other sources, these voter lists yield sufficient information to determine certain patterns in African American voting and to compare them to those of white voters.

[4]Richard S. Newman, "Faith in the Ballot: Black Shadow Politics in the Antebellum North," *Common-Place* 9 (October 2008): 1. Those scholars who have treated the issue have focused on matters like voter eligibility and the political allegiances of the few blacks who could and did vote. On voter eligibility, see Christopher Malone, *Between Freedom and Bondage: Race, Party, and Voting Rights in the Antebellum North* (New York: Routledge, 2008); Paul Finkelman, "Prelude to the Fourteenth Amendment: Black Legal Rights in the Antebellum North," *Rutgers Law Review* 17 (Spring and Summer 1986): 415–82; James Truslow Adams, "Disfranchisement of Negroes in New England," *American Historical Review* 30 (April 1925): 543–47; Horton and Horton, *In Hope of Liberty*, pp. 167–69; Smith, "The End of Black Voting Rights in Pennsylvania," p. 293; Charles H. Wesley "The Participation of Negroes in Anti-Slavery Political Parties," *Journal of Negro History* 29 (January 1944): 35. On African American political allegiances, see Fox, "The Negro Vote in Old New York," pp. 254, 264, 265, 267, 275; Lee Benson, *The Concept of Jacksonian Democracy: New York as a Test Case* (New York: Atheneum, 1964), pp. 179, 185, 318, 319, 320; James Oliver Horton and Lois E. Horton, *Black Bostonians: Family Life and Community Struggle in the Antebellum North* (New York: Holmes and Meier, 1979), pp. 86, 87–88; Leslie M. Alexander, *African or American? Black Identity and Political Activism in New York City, 1784–1861* (Urbana: University of Illinois Press, 2008), pp. 116–18.

[5]For an overview of Newport's African American community in this period, see Richard C. Youngken, *African Americans in Newport: An Introduction to the Heritage of African Americans in Newport, Rhode Island, 1700–1945* (Providence: Rhode Island Historical Preservation and Heritage Commission, 1995); Ralph E. Luker, "'Under Our Own Vine and Fig Tree': From African Unionism to Black Denominationism in Newport, Rhode Island, 1760–1876," *Slavery and Abolition* 12 (September 1991): 23–48.

[6]These records can be found at the Newport Historical Society, Newport, R.I.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.36 - 'We Have a Country': Race, Geography, and the Invention of Indian Territory

James P. Ronda

ARTICLE	'We Have a Country': Race, Geography, and the Invention of Indian Territory
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"WE HAVE A COUNTRY": RACE, GEOGRAPHY, AND THE INVENTION OF INDIAN TERRITORY

James P. Ronda

In 1859, some two decades after the Trail of Tears, Principal Chief John Ross surveyed the Cherokee Nation and confidently announced "we have a country." And this was, so he told his fellow citizens, no ordinary country. Drawing on a geographic vocabulary already centuries old, Ross described the Cherokee portion of Indian Territory as "salubrious in climate, rich in soil, and abounding in the resources of mineral wealth."[1] But Ross and other Indians had not always been so enthusiastic in their assessment of the trans-Mississippi West. Twenty years before, in the heat of the removal crisis, Ross labelled what became Indian Territory as "the wilderness of the West."[2] This was no isolated outburst of dismissive eastern prejudice. Like many speaking against removal, he repeatedly described the proposed western Indian country as "a barren and inhospitable region," a land where "water and timber are scarcely to be seen."[3]

Perhaps without fully recognizing it, Ross was part of the continuing invention of Indian Territory. In the first three decades of the nineteenth

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James P. Ronda is the H. G. Barnard Professor of Western American History at The University of Tulsa. A specialist in the history of the exploration of western North America, he is the author of many books including *Lewis and Clark Among the Indians*, *Astoria and Empire*, *Revealing America: Image and Imagination in the Exploration of North America*, and *Voyages of Discovery: Essays on the Lewis and Clark Expedition*. Ronda is currently president-elect of the Western History Association and will become its president in 2000. He gratefully acknowledges the help of Lori Curtis and Milissa Burkart in the Special Collections Department, McFarlin Library, at The University of Tulsa, and also thanks the Dukes (Ellington and Wayne) for inspiration.

[1] John Ross, Annual Message, Oct. 3, 1859, in Gary E. Moulton, ed., *The Papers of Chief John Ross* (2 vols., Norman, 1985), II: 421.

[2] Cherokee Delegation to the Senate and the House of Representatives, Feb. 28, 1840, *ibid*, 7.

[3] Cherokee Delegation to the Senate and the House of Representatives, Apr. 15, 1824, *ibid.*, I, 77.

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century, Indian Territory did not exist as a clearly defined geo-political region, marked out by a widely recognized set of boundaries. Instead, the place that became Indian Territory first had to be imagined and then created. Space had to become place. Indian Territory was an idea—or a cluster of ideas—in search of a place. This act of geographic fashioning came through the efforts of an unlikely combination of politicians, bureaucrats, missionaries, and explorers. In this story of imagination, geography, and race, Cherokee politician John Ross marches in company with James Monroe, John C. Calhoun, and Andrew Jackson. Here missionary Isaac McCoy has much in common with the strident Georgia apologist Wilson Lumpkin. And the story reaches out to explorers like Zebulon Montgomery Pike, Stephen H. Long, and Thomas Nuttall as well as the literary adventurer Washington Irving. What they shared was a set of assumptions about race and geography, national sovereignty and cultural identity. As fortune had it, the same attitudes about race and geographic boundaries played a central role both in removal as expulsion and in the Native-American creation of Indian Territory as new homelands.

When it came to the trans-Mississippi West and Native Americans, Thomas Jefferson lived in, and sometimes between, two tightly comparmentalized worlds. Those worlds had unequal measures of fact and fantasy, information and illusion. In one part of his spacious imagination Jefferson constructed a place where Indians would willingly abandon traditional ways, take up the plough, and eventually melt into the larger white population. This was the romantic, utopian Jefferson, the American *philosophe* who saw native people as children of nature who might become adult participants in the new world of the American Republic. But that same imagination also had space for a profoundly different conception of the Republic. Writing to Indiana Territorial governor William Henry Harrison, the president revealed a space defined by the absence of native people as either a distinct polity or culture. "They will in time," Jefferson predicted, "either incorporate with us as citizens of the United States or remove beyond the Mississippi."[4] In the first months of 1803 Indian removal and resettlement outside of the United States was a geo-political idea in search of a space. Beyond the Mississippi there were neither known places nor available spaces for natives unwilling to become Americans. The West might be the Garden of the World, but it seemed already

[4] Jefferson to William Henry Harrison, Feb. 27, 1803, Thomas Jefferson Papers (Library of Congress, Washington, DC), microfilm edition. The complexities and ambiguities of Jefferson's views of Indians are discussed in Bernard Sheehan, *Seeds of Extinction: Jeffersonian Philanthropy and the American Indian* (Chapel Hill, 1973).

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.37 - Jackson, the Bank War, and the Legacy of the Second Bank of the United States

Peter L. Rousseau

ARTICLE	Jackson, the Bank War, and the Legacy of the Second Bank of the United States
JOURNAL	AEA Papers and Proceedings 111 (2021)
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US FINANCIAL CRISES BEFORE THE FEDERAL RESERVE[‡]

Jackson, the Bank War, and the Legacy of the Second Bank of the United States[†]

By Peter L. Rousseau*

Early in its history, the US Congress twice authorized 20-year federal charters for quasi-public but privately operated banks. The first came in 1791, shortly after ratification of the Constitution, and the second in 1816 in the wake of financial disarray related to the War of 1812. Both charters went unrenewed. The banks, now known as the "First" and "Second" Banks of the United States (BUS), served as fiscal agents to the federal government, establishing branches throughout the nation to receive, transfer, and distribute funds on behalf of the Treasury. In this sense, they were public banks, but they might be better viewed as private banks serving the public interest. Effectiveness in achieving that mission, however, seemed always at the center of controversies surrounding their existence. A relatively mild confrontation in Congress ended the First BUS in 1811, and most consider this to have been premature. But a more aggressive "bank war" in the early 1830s ended the Second BUS in a manner that allowed large numbers of poorly monitored banks, new and old, to form and expand, setting events into motion that led to the second largest recession in the nation's history (1837–1843). This article describes the political path through which President Andrew Jackson and his allies destroyed the Bank and the impact of that destruction on the course of US financial history.

[‡]*Discussants:* Michael D. Bordo, Rutgers University; Daniel Ladley, University of Leicester; Carola Frydman, Northwestern University.

*Vanderbilt University (email: peter.l.rousseau@vanderbilt.edu). I thank participants at the Federal Reserve Bank of Philadelphia's Policy Forum and workshops at the Federal Reserve Bank of Atlanta, the London School of Economics, and Rutgers University for useful comments.

[†]Go to https://doi.org/10.1257/pandp.20211095 to visit the article page for additional materials and author disclosure statement.

I. The Bank Veto

The same Democratic-Republicans who allowed the First BUS's charter to expire in 1811 were strong supporters of starting the Second BUS in 1816. Yet that support eroded rapidly as the new Bank made large and often nonperforming loans to insiders, bringing it to the brink of bankruptcy within two years under its first president, William Jones. His replacement, Langdon Cheves, was more capable but chose to contract loans sharply as a financial panic took hold in 1819. Critics claimed that the Bank had saved its shareholders at the public's expense. The situation seemed to turn around when Nicholas Biddle took over in 1823. Biddle took pride in the Bank's ability to process federal receipts and payments efficiently, monitor and react to excessive note issues by other banks, and lend out the government's surplus balances to provide robust dividends of 7 percent. By most accounts, the early days under Biddle's leadership were good ones for the Bank.

Jackson's election in 1828 represented a sea change. Although Jackson had not spoken ill of the Bank publicly before the election, accusations about politicization of loans at branches in Portsmouth, New Hampshire, and New Orleans attracted his attention in mid-1829. Confiding in friend John Overton on keeping an ally on the Supreme Court, Jackson revealed an early opinion, stating that any judge he selected would be

> better calculated to aid [former Tennessee] Judge White and myself in the change of the present incorporated Bank to that of a National Bank—This being the only way that a recharter to the present US Bank can be prevented, and which I believe is the only thing that can prevent our liberties to be crushed by the Bank and its influence (Jackson to Overton, June 8, 1829; Jackson 2007, p. 271).

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Jackson delivered the opening salvo in his first Annual Message to Congress, stating,

> The charter of the Bank of the United States expires in 1836, and its stock holders will most probably apply for a renewal of their privileges. In order to avoid the evils resulting from precipitancy in a measure involving such important principles and such deep pecuniary interests, I feel that I cannot, in justice to the parties interested, too soon present it to the deliberate consideration of the Legislature and the people. Both the constitutionality and the expediency of the law creating this bank are well questioned by a large portion of our fellow citizens, and it must be admitted by all that it has failed in the great end of establishing a uniform and sound currency (December 8, 1829).

With more than six years remaining in the charter, Biddle was surprised Jackson would express a view on the Bank so early, especially since the president had informed him only days earlier at the White House that the annual message would praise the Bank for its efforts in paying down the federal debt. Biddle believed that the president simply lacked information about the services the Bank did and could provide.[1] And Jackson, though more explicit in his next annual message in 1830, still seemed to leave the door open to negotiation, stating,

> In the spirit of improvement and compromise which distinguishes our country and its institutions it becomes us to inquire whether it not be possible to secure the advantages afforded by the present bank through the agency of a bank of the United States so modified in its principles and structure as to obviate constitutional and other objections (December 6, 1830).

Biddle once again took this statement in earnest, setting out to craft terms for recharter that would be acceptable to the Bank, to Congress, and, most importantly, to Jackson. It even seemed that negotiations were going well when Biddle wrote to attorney Charles Ingersoll:

> In truth I believe there is no change desired by the President which would not be immediately assented to. And this it is which gives me so much regret, to find the President and the Bank apparently estranged while there is really no difference between them, and to see the President's friends lose the present opportunity of settling the question so well, and so advantageously for them (Biddle to Ingersoll, February 26, 1832; Biddle 1919, p. 187).

Negotiations quickly took a turn, however, when Rep. Augustin Smith Clayton of Georgia proposed that Congress inquire into mismanagement at the Bank and violations of the charter. It took six weeks from the resolution's passage on March 14, 1832, for the select committee to issue a scathing 33-page report with multiple allegations against the Bank, the most serious involving loans to insiders and public officials. By the time discussion reopened on May 22, there was little time to take a recharter bill forward before Congress adjourned in mid-July.

Biddle had to decide. Under advisement of House Speaker Henry Clay, both men chose to steer an act to recharter the Bank for 15 additional years (from 1836 to 1851) through both chambers on July 3, 1832. The decision, in the midst of Jackson's reelection bid, turned the Bank into a political issue. Jackson vetoed the bill on July 10 and then won a landslide victory over Clay in the general election. Biddle and Clay had badly underestimated Jackson's populist support and played directly into his hands, for it was Jackson who had consistently stated his preference for considering the Bank issue earlier rather than later. By effectively ending the matter in his first term, Jackson gained four years to dismantle the Bank's federal role. He did not take nearly that long.[2]

[1] Biddle writes Alexander Hamilton Jr. on December 12, 1829, that "my impression is that these opinions expressed by the President are entirely and exclusively his own and that they should be treated as the honest though erroneous notions of one who intends well" (Biddle 1919, p. 91).

[2] The veto was unsurprising given Biddle (and Clay) made no concessions in the final bill. Biddle was slow to absorb defeat, writing to Clay that "as to the Veto message I am delighted with it. It has all the fury of a chained panther biting the bars of his cage. It is really a manifesto of anarchy—such as Marat or Robespierre might have issued to the mob of the Faubourg St. Antoine: and my hope is that it will contribute to relieve the country from the dominion of these miserable people. You are destined to be the instrument of that deliverance, and at no point of your life has the country ever had a deeper stake in you" (Biddle 1919, p. 196).

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.38 - Jacksonian Monetary Policy, Specie Flows, and the Panic of 1837

Peter L. Rousseau

ARTICLE	Jacksonian Monetary Policy, Specie Flows, and the Panic of 1837
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Jacksonian Monetary Policy, Specie Flows, and the Panic of 1837

PETER L. ROUSSEAU

A number of hypotheses attempt to disentangle the "true" causes of the Panic of 1837 from domestic and international factors that came into play as the crisis approached. I analyze U.S. government documents and contemporary newspapers to reconsider the role of domestic factors. These sources place neither the official distribution of the federal surplus nor an international shock at the center. Rather, a series of interbank transfers of government balances and a policy-induced increase in the demand for coin in the Western states drained the largest New York City banks of their specie reserves and rendered the panic inevitable.

The financial panic that gripped the U.S. economy in the Spring of 1837 was among the most severe in its history. In the five years that followed the nation's first general suspension of specie payments by banks, failures and loan losses reduced the book assets of the state chartered banks by 45 percent, and 194 of the 729 banks with charters in 1837 were forced to close their doors.[1] Prices of banking, railroad, and industrial securities in the early stock markets plummeted.[2] And though the resumption of payments a year later led to a short-lived recovery in the second half of 1838, the specter of 1837 must have weighed heavily in the minds of the public as panic conditions returned in 1839 at the first sign of monetary pressure. Declines in real activity accompanied these losses of confidence. For example, growth in per capita investment fell from an average of 6.6 percent per year between 1831 and 1836 to –1.0 percent per year over the next five years, while average per capita output growth fell by 1.4 percent per year across the same five-year periods.[3] Douglass C. North reports that real per capita imports reached only

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This research began during a visit to the Federal Reserve Bank of Minneapolis in the Spring of 1999, and I am grateful to Warren E. Weber for useful discussions. I also thank Jeremy Atack, Jack L. Rutner, Richard Sylla, Gavin Wright (the editor), two anonymous referees, and seminar participants at the March 2000 Meeting of the NBER's Development of the American Economy Program for helpful comments.

[1] Total bank assets are from *Historical Statistics* (series X581, p. 1020). Bank failures are from Martin, *Seventy-Three Years*, p. 31. The number of state chartered banks is from Fenstermaker, *Development*, p. 111.

[2] For example, Smith and Cole (*Fluctuations*, p. 46) report that railroad stock prices fell by 63 percent between 1837 and 1843, and that banking and insurance stocks fell by 31.9 percent. Atack and Rousseau (*Business Activity*, p. 175) report a decline of 23 percent in their value-weighted index of industrial stock prices for Boston over this period.

[3] Data on real output, real investment and population for 1832–1843 are from Berry "Production."

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half of their 1836 level in each year from 1837 to 1843, and George Heberton Evans finds that nonfinancial business incorporations fell by more than 80 percent.[4]

Given the consequences of the 1837 panic and their magnification in 1839, it is not surprising that a number of hypotheses have emerged to explain the suspensions of May 1837. Each isolates a different domestic or international event as central among a host of shocks that buffeted the nation in the months leading up to the crisis. To this day, however, the panic remains imperfectly understood.

This article organizes previously unexplored information from U.S. government documents and newspapers to take a fresh look at the panic. The analysis suggests that the official distribution of the federal surplus to the states in 1837—Richard H. Timberlake's explanation—could not have involved enough specie movement to be an immediate determinant of the crisis.[5] Further, an international shock—Peter Temin's explanation—could not alone have caused the suspensions.[6] Rather, the banking system sustained two other disruptions in 1836 and early 1837 that turn out to be central. The first was a series of "supplemental" interbank transfers of public balances ordered by the Treasury under the Deposit Act of 23 June 1836 to prepare for the "official" distribution of $28 million of the $34 million federal surplus. The second was a heightened demand for specie in the West arising from the Jackson administration's "Specie Circular" of 11 July 1836, which ordered the use of specie for the purchase of public lands after 15 August.

Operating in a tandem, these measures reduced the specie reserves of the deposit banks in New York City from $7.2 million on 1 September 1836 to $2.8 million by 1 March 1837 and a mere $1.5 million by 1 May. The drain left the banks vulnerable to specie calls from a faltering British economy that had become determined to settle its international balances. As the dollar-sterling exchange rate approached the export point in April of 1837, the prospect of such calls and President Van Buren's highly publicized refusal to repeal the Specie Circular combined to engender distrust in the value of bank notes. As news of New York's dwindling reserves reached the newspapers, declining land prices and pressure from abroad combined to launch a precautionary demand for coin in early May. Figure 1 shows the timing of key domestic events in the year leading up to the panic. Indeed, the balance sheets of the deposit banks between July of 1836 and August of 1837 show how these policies combined to set the panic into motion. Since the Jackson administration acquiesced to the Deposit Act and initiated the

[4] North, *Economic Growth*; and Evans, *Business Incorporations*.
[5] Timberlake, "Specie Circular."
[6] Temin, *Jacksonian Economy*.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.39 - The Cherokee Trail of Tears: A Sesquicentennial Perspective

Ronald N. Satz

ARTICLE	The Cherokee Trail of Tears: A Sesquicentennial Perspective
JOURNAL	The Georgia Historical Quarterly 73, no. 3 (1989)
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The Cherokee Trail of Tears: A Sesquicentennial Perspective

By Ronald N. Satz

One hundred and fifty years ago, during the first week of October 1838, the majority of the Cherokee people who had steadfastly resisted removal from their ancestral southern Appalachian homeland under the terms of the Treaty of 1835, began their westward trek to present-day Oklahoma. Many scholars have claimed that some four thousand Cherokee men, women, and children, about one-fourth of the tribal population, eventually died as a result of the events surrounding their capture, detention, and journey along the Trail of Tears.[1] Recent demographic research suggests that Cherokee emigrants may have suffered a higher mortality rate than government records and historical studies have previously indicated.[2] Al-

[1]For two frequently cited accounts of the Treaty of 1835 and the Trail of Tears based on primary sources, see James Mooney, *Myths of the Cherokee*, which first appeared in Smithsonian Institution, Bureau of American Ethnology, *Nineteenth Annual Report*, Part 1 (Washington, D.C.. 1900) and is available in numerous reprint editions including the paperback *Historical Sketch of the Cherokee* (Chicago, 1975), (see especially pages 115-28 of the latter edition); and Grant Foreman, *Indian Removal: The Emigration of the Five Civilized Tribes of Indians*, new ed., (Norman, Okla., 1953), 264-312. Examples of other authors who cite the mortality figures presented above include John R. Swanton, *The Indians of the Southeastern United States* (Washington, D.C., 1979, c1946), 113; Grace Steele Woodward, *The Cherokees* (Norman, Okla., 1963), 218; Charles Hudson, *The Southeastern Indians* (Knoxville, 1976), 464. For a convenient compilation of documents pertaining to the Trail of Tears, see Duane H. King and E. Raymond Evans, eds., "The Trail of Tears: Primary Documents of the Cherokee Removal," *Journal of Cherokee Studies* 3, special ed. (Summer 1978):130-87. R. Palmer Howard, a physician and professor of the history of medicine, reviews the impact of the Trail of Tears from a medical perspective in "Cherokee History to 1840: A Medical View," *Journal of the Oklahoma State Medical Association* 63 (February 1970):73-81.

[2]Russell Thornton, "Cherokee Population Losses During the 'Trail of Tears': A New Perspective and a New Estimate," *Ethnohistory* 31 (November 1984):289-300. Thornton, a sociologist at the University of Minnesota, uses the techniques of demographic analysis to reach his conclusions. In a presentation at the 1986 Cherokee Studies Conference at Western Carolina University entitled, "The Demography of the Trail of Tears Period," Thornton argued that the actual mortality rate during the Trail of Tears was about eight thousand. Also see Thornton's *American Indian Holocaust and Survival: A Population History Since 1492* (Norman, Okla., 1987), 50, 114-18.

Mr. Satz is professor of history at the University of Wisconsin-Eau Claire.

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though the actual population loss may never be known, the disruptions caused by the removal crisis and the hardships suffered by the Cherokees en route to the West have long been acknowledged by scholars.[3]

Efforts to evict the Cherokee people from their ancestral lands elicited a great deal of sympathy for the Indians in the 1830s. The issue was debated in the press and on the floor of Congress. Francis Paul Prucha, a contemporary scholar of Indian-white relations, argues that the removal question "agitated the nation to its very roots, . . . and [that] it touched the fundamental conception of the United States as a Christian nation."[4] Generations of historians and popular writers have reminded the American people of the numerous indignities suffered by the Cherokees. Historian Carl Degler, for example, claimed that "in the confrontation between the American Indian and the white man over the course of the past three centuries, no single episode is more revealing or more devastating in its moral implications than the removal of the Cherokees."[5] In a study of Indian removal aimed at a popular audience, Dale Van Every referred to the controversy over the forced removal of the Cherokees as "an issue impregnated with the most fundamental bearings on the evolution of the American form of government under the Constitution."[6] The historical evidence clearly supports the assertions of these authors.

[3]Francis Paul Prucha argues that scholars have been too prone "to accept uncritically greatly exaggerated" mortality figures "because of the injustice involved in the removal and the hardships endured." Using statistics reported by Commissioner of Indian Affairs T. Hartley Crawford in a letter to Secretary of War Joel R. Poinsett, dated August 8, 1840, H. R. Doc. 1098, 27th Cong., 2d sess., August 27, 1842, 9-10, he asserts that fewer than 10 percent of the sixteen thousand emigrants died on the journey. Prucha also cites Donald R. Englund's 1973 University of Oklahoma Ph.D. dissertation, "A Demographic Study of the Cherokee Nation," which concludes that about two thousand Cherokees died as a result of removal. Although Prucha challenges the validity of higher morality figures, he concedes that "this Trail of Tears reaped a heavy harvest of misery and death." See *The Great Father: The United States Government and the American Indians*, 2 vols. (Lincoln and London, 1984), 1:240-41, 241n. Also see Prucha's "Doing Indian History," in *Indian-White Relations: A Persistent Paradox*, ed. by Jane F. Smith and Robert M. Kvasnicka (Washington, D.C., 1976), 6.

[4]Prucha, "Introduction," in Jeremiah Evarts, *Cherokee Removal: The "William Penn" Essays and Other Writings*, ed. by Prucha (Knoxville, 1981), 3.

[5]Carl Degler, "Indians and Other Americans," *Commentary* (November 1972): 68.

[6]Dale Van Every, *Disinherited: The Lost Birthright of the American Indian* (New York, 1966), 103.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.40 - Andrew Jackson versus the Historians

Charles Grier Sellers Jr.

ARTICLE	Andrew Jackson versus the Historians
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Andrew Jackson versus the Historians

By Charles Grier Sellers, Jr.

Andrew Jackson's masterful personality was enough by itself to make him one of the most controversial figures ever to stride across the American stage. "It can hardly be expected that the present generation will do justice to the character of Jackson," complained the compiler of his funeral eulogies in 1846, for "his opponents have ever been most bitter enemies, and his friends almost his worshippers." [1] And when James Parton sat down fifteen years later to attempt the first impartial biography of Old Hickory, he despairingly concluded from the mountain of conflicting sources before him that his subject "was a patriot and a traitor. He was one of the greatest of generals, and wholly ignorant of the art of war. A writer brilliant, elegant, eloquent, without being able to compose a correct sentence, or spell words of four syllables. The first of statesmen, he never devised, he never framed a measure. He was the most candid of men, and was capable of the profoundest dissimulation. A most law-defying, law-obeying citizen. A stickler for discipline, he never hesitated to disobey his superior. A democratic autocrat. An urbane savage. An atrocious saint." [2]

Such radical opposites could not be reconciled simply by splitting the difference; Parton and all who followed him on this difficult terrain have been forced pretty substantially either into the Jackson camp or into the camp of Jackson's enemies. Indeed, Parton's lament could almost stand today as the conclusion to a review of Jacksonian historiography.

The reasons for such continuing disagreement run far deeper than the individual characteristics of any historical personality. Andrew Jackson was intimately identified with the full flowering of American democracy; and as long as democracy remains pre-eminently the

[1] Benjamin M. Dusenbery (comp.), *Monument to the Memory of General Andrew Jackson: Containing Twenty-five Eulogies and Sermons Delivered on Occasion of His Death* (Philadelphia, 1846), 32.

[2] James Parton, *Life of Andrew Jackson* (3 vols., New York, 1861), I, vii.

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distinguishing feature of our society, the period and symbol of its triumph will remain controversial.

While American democracy emerged victorious on the plane of political ideology around 1776 or 1800, and on the plane of political practice around 1828, it did not achieve respectability in American historiography (for all George Bancroft's efforts) until about 1900. From the Jacksonian era to the end of the nineteenth century the writing of American history was dominated, as Charles H. Peck observed in 1899, by men "who were educated under the sway of the Whiggish culture of the country." [3] This "Whig" school of Jacksonian historiography included the first two important Jackson biographers, James Parton and William Graham Sumner; the authors of the first two detailed American histories extending to the Civil War, Hermann E. von Holst and James Schouler; and Moisei Ostrogorski, author of the enormously influential study of *Democracy and the Organization of Political Parties*.

These writers, in effect, stamped the partisan fulminations of Jackson's political enemies with the cachet of scholarly authority. If Henry Clay had pronounced Old Hickory "ignorant, passionate, hypocritical, corrupt, and easily swayed by the base men who surround him," von Holst could similarly pronounce him an "arrogant general" whose "mind was as untrained as his passions were unbridled" and who was "like wax in skillful hands." Sumner thought him a "barbarian" who "acted from spite, pique, instinct, prejudice or emotion"; Schouler flatly declared him "illiterate"; Ostrogorski expatiated on his "autocratic policy"; and Parton, despite a grudging admiration for some aspects of Jackson's character, lamented "the elevation to the presidency of a man whose ignorance, whose good intentions, and whose passions combined to render him, of all conceivable human beings, the most unfit for the office." [4]

Yet it was not fundamentally Jackson's personality that turned the Whig historians against him, nor was it the general policies he pursued as president. These writers were all liberals of the nine-

[3] Charles H. Peck, *The Jacksonian Epoch* (New York, 1899), 328.

[4] Calvin Colton (ed.), *The Private Correspondence of Henry Clay* (Boston, 1856), 368-69; Hermann E. von Holst, *The Constitutional and Political History of the United States* (8 vols., Chicago, 1876-1892), II, 2, 3, 30; William Graham Sumner, *Andrew Jackson as a Public Man: What He Was, What Chances He Had, and What He Did with Them* (Boston, 1882), 25, 278-79; James Schouler, *History of the United States of America under the Constitution* (Rev. ed., 6 vols., New York, 1894-1904), II, 439; M. Ostrogorski, *Democracy and the Organization of Political Parties* (2 vols., New York, 1902), II, 46, 65; Parton, *Jackson*, III, 694-700.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.41 - 'The Most Delicate and Exciting Topics': Martin Van Buren, Slavery, and the Election of 1836

William G. Shade

ARTICLE	'The Most Delicate and Exciting Topics': Martin Van Buren, Slavery, and the Election of 1836
JOURNAL	Journal of the Early Republic 18, no. 3 (1998)
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"THE MOST DELICATE AND EXCITING TOPICS": MARTIN VAN BUREN, SLAVERY, AND THE ELECTION OF 1836

William G. Shade

The presidential election of 1836 has not drawn a great deal of scholarly interest. For some historians of the early republic Martin Van Buren's election signaled the end of the era of Jacksonian Democracy. Consequently, textbook writers and those students of American political parties who deal with the *longue dureé* barely acknowledge its existence, while specialized studies of the Jacksonian era routinely ignore its importance. Only scholars studying party development during these years have suggested the significance of 1836 as a transitional election between phases of the second party system.[1]

Political scientist Gerald Pomper categorized 1836 as a "converting" election—that is, one "in which the majority party retains its position, but there is considerable change in its voter base."[2] As such, it bore characteristics of both tradition and modernity. For Richard P.

William G. Shade is professor of history and director of American Studies at Lehigh University, Bethlehem, PA. His most recent book is *Democratizing the Old Dominion: Virginia and the Second Party System, 1824-1861* (Charlottesville, 1996). He would like to thank Ron Formisano, Lew Gould, Deborah Van Broekhoven, and Bill Scott for their comments on various versions of this essay.

[1] Compare Harry L. Watson, *Liberty and Power: The Politics of Jacksonian America* (New York, 1990); Charles Sellers, *The Market Revolution: Jacksonian America, 1815-1846* (New York, 1991); and Daniel Feller, *The Jacksonian Promise: America, 1815-1840* (Baltimore, 1995); with Joel H. Silbey, "Election of 1836," in Arthur M. Schlesinger, Jr., and Fred L. Israel, eds., *History of American Presidential Elections* (4 vols., New York, 1971), I, 577-640; Joel H. Silbey, *The American Political Nation, 1838-1893* (Stanford, CA, 1991); William G. Shade, "Political Pluralism and Party Development: The Creation of a Modern Party System, 1815-1852," in Paul Kleppner *et al.*, *The Evolution of Electoral Politics* (Westport, 1981); and Donald B. Cole, *The Presidency of Andrew Jackson* (Lawrence, KS, 1993).

[2] "Classification of Presidential Elections," in Joel H. Silbey and Samuel T. McSeveney, eds., *Voters, Parties, and Elections* (Lexington, MA, 1972).

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McCormick, the foremost student of party structure in these years, the election produced the consolidation of the "Jacksonian strategy" and the shift from the "game of faction" to the "party game," which awaited only the outpouring of voters in 1840 to establish the pattern that would last until the mid-twentieth century.[3] But beyond that, an examination of the 1836 election is essential to understanding the relationship between the development of the Democratic party and the set of issues related to slavery and race in antebellum American society.[4]

There was probably never a time in the early republic when slavery in one form or another did not intrude into the political arena, but the campaign of 1835-36 was the first in which the discussion of slavery played a major role.[5] In the years following the War of 1812 there were

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[3] Richard P. McCormick, "New Perspectives On Jacksonian Politics," *American Historical Review*, 65 (Jan. 1960), 288-301; McCormick, *The Second American Party System: Party Formation in the Jacksonian Era* (Chapel Hill, 1966); McCormick, *The Presidential Game: The Origins of American Presidential Politics* (New York, 1982); McCormick, "Was There a 'Whig Strategy' in 1836?" *Journal of the Early Republic*, 4 (Spring 1984), 47-70; McCormick, "The Jacksonian Strategy," *ibid.*, 10 (Spring 1990), 1-17.

[4] Most of the literature on the subject involves a debate over the degree to which Jacksonians and the Democrats were proslavery, and thus undemocratic. On the evolution of this debate, see Charles Greer Sellers, Jr., "Andrew Jackson versus the Historians," *Mississippi Valley Historical Review*, 44 (Mar. 1958), 626; Richard H. Brown, "The Missouri Crisis, Slavery, and the Politics of Jacksonianism," *South Atlantic Quarterly*, 65 (Winter 1966), 55-72; William W. Freehling, *Prelude to Civil War: The Nullification Controversy in South Carolina, 1816-1836* (New York, 1966); Gerald S. Henig, "The Jacksonian Attitude Toward Abolitionism in the 1830's," *Tennessee Historical Quarterly*, 28 (Spring 1969), 42-56; Edward Pessen, *Jacksonian America: Society, Personality, and Politics* (Homewood, IL, 1969); Alexander Saxton, "Blackface Minstrelsy and Jacksonian Ideology," *American Quarterly*, 27 (Mar. 1975), 3-28; Leonard L. Richards, "The Jacksonians and Slavery," in Lewis Perry and Michael Fellman, eds., *Antislavery Reconsidered: New Perspectives on the Abolitionists* (Baton Rouge, 1979), 99-118; Michael Paul Rogin, *Fathers and Children: Andrew Jackson and the Subjugation of the American Indian* (New York, 1975), 297-98; John M. McFaul, "Expediency vs. Morality: Jacksonian Politics and Slavery," *Journal of American History*, 62 (June 1975), 24-39; Richard B. Latner, *The Presidency of Andrew Jackson: White House Politics, 1829-1837* (Athens, GA, 1979); William J. Cooper, Jr., *The South and the Politics of Slavery, 1818-1856* (Baton Rouge, 1978); Robert V. Remini, *The Legacy of Andrew Jackson: Essays on Democracy, Indian Removal, and Slavery* (Baton Rouge, 1988), 83-111; and John Ashworth, *Slavery, Capitalism, and Politics in the Antebellum Republic*, Vol. 1: *Commerce and Compromise, 1820-1850* (Cambridge, UK, 1995), 289-365.

[5] Robert McColley, *Slavery and Jeffersonian Virginia* (Urbana, 1964); Staughton Lynd, *Class Conflict, Slavery and the United States Constitution, Ten Essays* (Indianapolis, 1967); Winthrop D. Jordan, *White Over Black: American Attitudes Toward the Negro, 1550-1812* (Chapel Hill, 1968); Donald L. Robinson, *Slavery in the Structure*

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.42 - The Webster-Hayne Debate: Recasting New England's Sectionalism

Harlow W. Sheidley

ARTICLE	The Webster-Hayne Debate: Recasting New England's Sectionalism
JOURNAL	The New England Quarterly 67, no. 1 (1994)
EXCERPT	Original journal pages 5-6
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The Webster-Hayne Debate: Recasting New England's Sectionalism

HARLOW W. SHEIDLEY

THE excitement in Washington was palpable on the morning of 26 January 1830. The previous day Senator Robert Y. Hayne of South Carolina had concluded a compelling two-day attack on Daniel Webster and New England in which he questioned not only the statesmanship of the senator from Massachusetts but the loyalty of the region's Federalist leadership during the War of 1812. Word quickly went forth that Hayne had deliberately "abused Mass. & Mr W.,"[1] and all of Washington anticipated a reply.

Webster did not disappoint his eager audience, nor did he disappoint posterity. The "Second Reply to Hayne" is generally ascribed first rank among nineteenth-century American congressional addresses.[2] Commending the speech for its generous nationalism, historians have appreciated its refutation of the doctrine of nullification even when questioning the validity of Webster's constitutional arguments on the origin and nature of

The research for this essay was made possible by a Frances Hiatt Fellowship from the American Antiquarian Society and a Charlotte W. Newcombe Doctoral Dissertation Fellowship from the Woodrow Wilson Foundation. I would like to thank R. Kent Newmyer and Richard D. Brown for their cogent criticisms and frequent encouragement.

[1]John Davis to Eliza Bancroft Davis, 26 January 1830, John Davis Papers, American Antiquarian Society, Worcester, Mass. Permission to quote from this collection has been granted by the American Antiquarian Society. See also Edward Everett, Diary, 25 January 1830, Edward Everett Papers, Massachusetts Historical Society, Boston, microfilm ed., reel 36.

[2]See, e.g., Irving H. Bartlett, *Daniel Webster* (New York: Norton, 1978), p. 117; Robert A. Ferguson, *Law and Letters in American Culture* (Cambridge: Harvard University Press, 1984), p. 221; Merrill D. Peterson, *The Great Triumvirate: Webster, Clay, and Calhoun* (New York: Oxford University Press, 1989), pp. 175, 178–79; editorial comment in *The Papers of Daniel Webster: Speeches and Formal Writings*, ed. Charles M. Wiltse and Alan R. Berolzheimer, 2 vols. (Hanover, N.H.: University Press of New England, 1986–88), 1:28 (hereafter cited as *Speeches*).

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the Union.[3] More important, Webster's nationalist argument has been credited with giving Americans a new way of conceiving of their collective identity. In the words of Robert A. Ferguson, the speech "resonates with a common nationality at a time when most republicans still saw their country as a compact between the states"; thus Webster formalized "a shift in the American mind toward the idea of a single, democratic union." Or, as Merrill D. Peterson argues, "Webster . . . raised the idea of Union above contract or expediency and enshrined it in the American heart."[4]

The nationalism of Webster's "Second Reply to Hayne" cannot and should not be denied, of course. But the specific terms of that nationalism and the manner in which Webster proclaimed it to the Senate and the country at large were in great measure determined by the sectional interests and culture of the conservative elite community of Massachusetts that had shaped Webster's vision and on whose behalf he spoke. Many historians have recognized that Webster was a sectional leader who successfully blocked a potential alliance between the West and the South against the Northeast by shifting the terms of debate from issues of public policy to constitutional interpretations. Yet, fascinated by his ability to give voice to an American national identity that until then had remained inchoate, these same historians seldom

[3]Maurice G. Baxter, *One and Inseparable: Daniel Webster and the Union* (Cambridge: Harvard University Press, 1984), pp. 187–88, 191, 217–18, believes Webster made a solid case for constitutional nationalism, although he readily admits that the states' rights interpretation of the Constitution, which designated it a compact among the states, retained validity at least until the Civil War. Those who take issue with Webster's constitutional exegesis include Bartlett, *Webster*, pp. 166–67; Claude M. Fuess, *Daniel Webster*, 2 vols. (Boston: Little, Brown and Company, 1930), 1:380–81; Henry Cabot Lodge, *Daniel Webster* (Boston: Houghton Mifflin, 1899), pp. 171–73; Peterson, *Great Triumvirate*, p. 178; and Charles M. Wiltse, *John C. Calhoun: Nullifier, 1829–1839* (Indianapolis: Bobbs-Merrill Co., 1949), pp. 65–66.

[4]Ferguson, *Law and Letters*, p. 221; Peterson, *Great Triumvirate*, p. 178. See also, e.g., Bartlett, *Webster*, pp. 120–21; Richard N. Current, *Daniel Webster and the Rise of National Conservatism* (Boston: Little, Brown and Company, 1955), pp. 62–63; George T. Curtis, *Life of Daniel Webster*, 2 vols. (New York: D. Appleton and Company, 1870), 1:360–61; Fuess, *Webster*, 1:381, 398; Wilbur S. Howell and Hoyt H. Hudson, "Daniel Webster," in *A History and Criticism of American Public Address*, ed. William N. Brigance, 3 vols. (New York: McGraw-Hill, 1943–55), 2:704–11; Lodge, *Webster*, pp. 173–75; Craig R. Smith, *Defender of the Union: The Oratory of Daniel Webster* (New York: Greenwood Press, 1989), p. 224; Wiltse, *Calhoun: Nullifier*, pp. 65–66.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.43 - Sentimental Racism and Sympathetic Paternalism: Feeling Like a Jacksonian

Laurel Clark Shire

ARTICLE	Sentimental Racism and Sympathetic Paternalism: Feeling Like a Jacksonian
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Sentimental Racism and Sympathetic Paternalism

Feeling Like a Jacksonian

LAUREL CLARK SHIRE

In 1814 Andrew Jackson performed a deed that biographers often interpret as evidence that he felt pity or empathy toward Native Americans. Jackson rescued a Creek boy orphaned during the battle of Horseshoe Bend, reportedly gathering him from his dead mother's arms. Jackson adopted "Lyncoya" and sent him to be raised among his family, noting to his wife Rachel that he felt an "unusual sympathy" for the orphan. What could possibly explain this action—made by the same man who prosecuted the war that orphaned this boy in the first place? Historian Mark Cheathem points out the paradox: "Jackson's actions toward Native Americans during this period were by any definition contradictory. On the one hand, he endorsed the slaughter of Indians . . . on the other hand, Jackson rescued infant Indian boys." How can this sympathetic adoptive father also be the president who would oversee Indian Removal in the 1830s?[1]

Many biographers cite the story of Lyncoya as extraordinary or contradictory, but it was neither. It was perfectly in line with the paternalist racism of the time. When Jackson expressed sympathy for the orphaned boy, he situated himself as a sympathetic father figure, and may have

Laurel Clark Shire is associate professor of history at Western University in London, Ontario, Canada. A native of North Carolina, she holds a PhD in American Studies from the George Washington University. She thanks Nancy Rhoden, Joshua Lynn, Harry Watson, and Catherine Kelly for their helpful suggestions regarding this article.

1. Mark R. Cheathem, *Andrew Jackson, Southerner* (Baton Rouge, LA, 2013), 80.

Journal of the Early Republic, 39 (Spring 2019)
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saved Lyncoya's life, but his feelings did nothing to elevate the boy to his own level.

Recent discussions of Jackson focus on his populism, with good reason in the midst of reinvigorated forms of nationalism and populism appearing within and beyond U.S. borders. Historians note that Jacksonian Democrats offered hope to Americans anxious about economic and cultural change in the 1820s, and also strategically played on their mistrust of authority with images of elite bureaucrats wasting national resources while enriching themselves on the public's dime. Regardless of their motives, Jacksonian populists operated in white-supremacist terms: "The people" that populists promised to empower were white and male, and the resources their party promised to protect (exclusively for them) included indigenous land and African American labor among the rights of citizens.[2]

Jackson's relationship with Lyncoya appears to have little to do with his populist politics, and even seems to challenge evidence of his racism. The seeming contradiction of Jackson's sympathy for Indians does mirror the contradictions at the heart of populism—that sympathy for the needs of some people required dehumanizing others. Lyncoya's story offers another avenue through which we might explore the meanings and contradictions of inequality in Jacksonian America—in particular, how unequal relations in domestic or "private" life shaped "public" politics, and vice versa. In order to reframe Lyncoya's adoption story in this way, however, we must refuse to organize Jackson's life into his public politics and his private feelings, as that framework relegates Jackson's adoption of Indian boys to his personal life. By linking the private and the public, and examining the ways in which Americans *used* these categories rather than obeyed them, historians can make sense of Jackson's apparently contradictory "sympathy." In fact, racism and paternalism at home normalized the hierarchies of American society; inequalities that otherwise threatened to expose its hypocrisy. Just as Jackson could sympathize with Indian orphans as he killed their parents and dispossessed them, so could Americans profit from slavery and Indian Removal in the land of "liberty and equality."

2. See for example the essays by Richard Blackett, Joshua A. Lynn, Harry L. Watson, and Robert Richard collected in the *Tennessee Historical Quarterly* 76 (Fall 2017) for the 250th anniversary of Andrew Jackson's birth.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.44 - Modernizing 'Difference': The Political Meanings of Color in the Free States, 1776-1840

James Brewer Stewart

ARTICLE	Modernizing 'Difference': The Political Meanings of Color in the Free States, 1776-1840
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MODERNIZING "DIFFERENCE": THE POLITICAL MEANINGS OF COLOR IN THE FREE STATES, 1776-1840

James Brewer Stewart

As the decade of the 1830s opened, people living in the states "north of slavery" found themselves facing unprecedented dangers and opportunities that resulted from rapidly accumulating racial tensions. As crises multiplied, headlines of that time (even in generic form) conveyed their enormity and potential for violence—Nullification Spirit Sweeps South Carolina—Jackson Demands Cherokee Removal—Slaves Revolt and Murder in Southampton County Virginia—Walker's *Appeal* Found Among Southern Negroes—Garrison Demands Race Amalgamation— Abolitionists Gather Women and Negroes in Promiscuous Assemblies—Mobs Attack Negro Neighborhoods. At no previous time in the history of the "free states" did so many racially charged events overtake one another in such rapid succession. Never before were assumptions about the proper dynamics of "race relations" so suddenly and so heavily questioned, revisioned, and defended. Only during Reconstruction, or later still, during the post-World War II Civil Rights Movement, would people experience trauma more drastic than that which swept the free states in the late 1820s and early 1830s. And only in these much more recent struggles would the trajectory of history so suddenly open similar possibilities for democratic change, for brutal repression, and for new political understandings of what skin color differences ought to mean.

James Brewer Stewart, James Wallace Professor of History, Macalester College, is the author of biographies of Joshua R. Giddings, Wendell Phillips, and William Lloyd Garrison as well as *Holy Warriors: The Abolitionists and American Slavery* (rev. ed., 1997), and, with George Price, *To Heal the Scourge of Prejudice: The Life and Writings of Hosea Easton* (1999).

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This essay seeks to explain what deeper historical developments led the North to this sudden conjuncture in the late 1820s and early 1830s, what its specific dynamics were, and how its long-term influence reshaped and reinforced the power of "race" to define the modernizing political culture of the free states before the Civil War. Before this watershed moment, from 1790 until around 1830, society in the North, though suffused with prejudice, nevertheless fostered a surprisingly open premodern struggle over claims of "respectability" and citizenship put forward by many social groups, and particularly by free African Americans. This effort to achieve respectability, in turn, stimulated deepening internal and external divisions among people of differing skin colors, and finally promoted the unprecedented interracialism of a nascent immediate abolitionist movement. By the opening of the 1830s, the compounding effect of these volatile contests had frayed the social fabric of free states to the point of disintegration. Then came Walker's *Appeal*, Turner's insurrection, South Carolina's nullification crisis, and, above all, Garrison's *Liberator*. When this publication announced that abolitionists—black and white, male and female—were embarking on a crusade for racial equality, the impact of this extraordinary venture transmuted the North's accumulating racial tensions into a general crisis that exploded into mob violence across the free states.[1]

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[1] I wish to thank the following colleagues and friends for their critical contributions to the development of this essay: Dickson D. Bruce, Peter Hinks, James O. Horton, Lois Horton, Carol Lasser, Joanne Pope Melish, Michael A. Morrison, Gary Nash, Rich Newman, George Price, Patrick Rael, Jean Soderlund, Clay Steinman, Dorothy C. Stewart, Ronald Walters, and Donald Yacovone. It is also important to acknowledge the influence of the burgeoning scholarship on racial "formation," with its emphasis that meanings of skin color difference involve shifting ideological formulations and social relations. In this regard, the title of this article, "Modernizing Difference," registers the idea that the role of race in the political development of the early republic is best understood as a set of rapidly evolving, conflicting ideological expressions by specific social groups over at least three decades that heavily determined the development of the North's two-party system and of the abolitionist movement as well. For discussions of this theme and methodology in current historiography, consult David R. Roediger, *The Wages of Whiteness: Race and the Making of the American Working Class* (London, UK, 1991); Alexander Saxton, *The Rise and Fall of the White Republic: Class, Politics and Mass Culture in Nineteenth Century America* (New York, 1990); Joanne Pope Melish, *Disowning Slavery: Gradual Emancipation and the North, 1780-1860* (Ithaca, 1998); Stuart Hall, ed., *Representation: Cultural Representations and Signifying Practices* (London, UK, 1997), 225-97; Barbara J. Fields, "Ideology and Race in American History," in J. Morton Kousser and James M. McPherson, eds., *Region, Race and Reconstruction: Essays in Honor of C. Vann Woodward* (New York, 1982), 143-78. As regards the present issue, consult the introductory essay by Roediger that addresses the specific pertinence of cultural studies scholarship on race to the history of the early republic: "The Pursuit of Whiteness: Property, Terror, and Expansion, 1790-1860."

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.45 - The Emergence of Racial Modernity and the Rise of the White North, 1790-1840

James Brewer Stewart

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SHA ROUNDTABLE: RACIAL MODERNITY

(The following essay and comments were first presented at a plenary session of the Southern Historical Association conference in Atlanta, November 1997. JLL, MAM)

The Emergence of Racial Modernity and the Rise of the White North, 1790-1840

James Brewer Stewart

In April 1831, a white abolitionist contributor to William Lloyd Garrison's *Liberator*, identifying himself as "T.T.," reported two highly contrasting "dreams" he had experienced. Each foretold the nation's future in the starkest of racial terms. In the first fantasy, set a generation ahead in time, Americans of every pigmentation had dispensed with racial differences as meaningful designations and were living together, placidly intermarried in unprecedented harmony. In the second, played out in the immediate future, racial hatreds had plunged a degraded nation into bloodlust with black insurrectionists enslaving their former masters and tyrannizing the white population.[1]

A brief consideration of "T.T"'s predictions allows us to begin to understand a compounding crisis in racial definitions and race relations that began developing in the North during the 1820s and which then finally exploded during the early 1830s. The unrelenting mob terrorism against immediate abolitionists and African-American communities that swept the North between 1831 and 1838 certainly bespoke the rooted

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The author is much indebted to the following individuals for their criticisms and commentary on various drafts of this essay: David Blaney, Dickson D. Bruce, Bruce Dain, Roy Finkenbine, Robert Forbes, Robert Hall, Stanley Harrold, Peter Hinks, James O. Horton, Lois Horton, John Howe, Kenneth Lockridge, Joanne Melish, Michael A. Morrison, Matt Mulcahey, Gary Nash, Rich Newman, Anthony Pinn, George Price, John Quist, Patrick Rael, Jean Soderlund, Clay Steinman, Dorothy Carlson Stewart, Ronald Walters, Mary Wingerd, and Donald Yacovone.

[1] Pseudonomomous "T.T.", *The Liberator* (Boston) Apr. 2, 30, 1831.

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historical prejudices that white Americans had always harbored against blacks. But this unprecedented plunge into violence also had far more substantial immediate origins in developments underway in the North since the 1820s, which were deeply inflaming northern race relations just as activists like "T.T." launched their crusade. These included heightened aspirations, accomplishments, and ideological disagreements among African-American activists; increasing conflict as well as collaboration within and between various segments of black and white communities; deepening allegiances to a volatile identity of "whiteness" among Euro-Americans generally; rapid colonizationist mobilization; and new forms of democratic politics that set "white" against "black" as never before. Considering the explosive legacies of the 1820s, the abolitionist demand for racial equality could not have been issued in a more hostile environment. Despite the inaccuracy of "T.T."'s predictions, he was certainly correct when insisting that the North in 1831 stood on the cusp of an unprecedented transformation of relations between races.

When the mobs finally subsided by 1838, nearly everyone within the free states, whatever their pigmentation or political outlook, found themselves responding to a world "T.T." had not foreseen. The North was rapidly evolving into a modern white supremacist political culture as people in the free states found themselves insolubly divided by pigmentation, invariably governed by the claims of biological inequality, and almost exclusively informed by racially self-referential approaches to politics and social reform. The abolitionists' initial crusade for racial equality had instead spawned an interclass upheaval among the vast majority of whites in the North that solidified into an immovable consensus of highly organized white supremacy, a polity premised on the uniform assumption that nature had always divided black and white as superior and inferior—and always must. By 1840 this spirit of essentialism pervaded nearly every element of northern society, politics, and cultural life, even affecting those who continued to struggle for racial justice. The white North, in short, had emerged into racial modernity, an age much more resembling the racial tyranny of the late nineteenth century than the racial contestation of the decades between 1776 and 1830. The purpose of this essay is to analyze the conflicts that led to these portentous developments, explain why they concluded as they did, and

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.46 - The Antebellum Money Market and the Economic Impact of the Bank War

Marie Elizabeth Sushka

ARTICLE	The Antebellum Money Market and the Economic Impact of the Bank War
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THE JOURNAL OF ECONOMIC HISTORY

VOLUME XXXVI DECEMBER 1976 NUMBER 4

The Antebellum Money Market and the Economic Impact of the Bank War

THIS paper examines the role of the Bank War in the economic events of the 1830's by developing and testing a structural economic model of the financial sector of the antebellum United States economy. By the Bank War I mean those political and economic events which occurred during the final years of the federal charter of the Second Bank of the United States (hereafter referred to as the Second National Bank). Four years before its charter was to expire, the subject of renewal became a major issue in the presidential campaign of 1832. In early 1832, Congress passed a recharter bill, but Jackson vetoed it, and his veto was sustained. Historians treating this subject have disagreed sharply in their interpretations of the subsequent economic events of the 1830's and of the economic significance of the failure to recharter the Bank. This general subject has been examined at great length by American historians, but basically, the literature can be classified into two groups, the traditional and the revisionist schools.

Briefly, the members of the traditional school share the following general interpretation of the economic events of the 1830's.[1] Jackson's veto of the bill to recharter the Second National Bank removed any effective restraints upon the behavior of the commercial banking sector. As a result, banks engaged in excessive note issue and speculative loan policies without proper specie backing for their liabilities.

Journal of Economic History, Vol. XXXVI, No. 4 (December 1976). Copyright © The Economic History Association. All rights reserved.

I would like to thank Myron B. Slovin for his invaluable insight and technical advice thoughout the development of this paper. I would also like to thank Bruce Davie for his helpful suggestions on an earlier draft of this work.

[1] See, for example, B. Hammond, *Banks and Politics in America from the Revolution to the Civil War* (Princeton, 1957); A. Schlesinger, *The Age of Jackson* (Boston, 1945); and M. Meyers, *The Jacksonian Persuasion* (Stanford, 1960).

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These so-called "wildcat" banking practices intensified the speculation and inflation of the period. The resulting instability was further aggravated by Jackson's other economic policies, particularly the Specie Circular of 1836, which required payment in specie for all public land purchases. In the view of the traditional school, this combination of events culminated in the Panic of 1837.

According to the revisionists, however, Jackson's veto and his subsequent economic policies had no discernible effects on the economic events of the 1830's.[2] The commercial banking system was not affected by the removal of the federal authority vested in the Second National Bank. Furthermore, there is no quantitative evidence of the existence of wildcat banking practices. Thus, the revisionist school rejects the idea that Jackson's veto and subsequent economic policies led the country into the Panic of 1837. Instead, they offer the hypothesis that the Panic of 1837 was precipitated by international events which were beyond domestic control.

In addition to the differences in their interpretations of the economic impact of the Bank War, these two groups use quite different research methodologies. For the most part, the research of the traditional school concentrates on a subjective interpretation of events, personalities, and historical theses. The work of the revisionist school is characterized by the use of descriptive statistical tools in an attempt to analyze developments empirically.

The objective of my study is to synthesize the hypotheses of these schools and to test them empirically by applying modern econometric techniques in an economic framework drawn from contemporary monetary and macroeconomic theory. More specifically, three questions are drawn from the literature: One, did the Bank War have any economic repercussions? Two, were wildcat banking practices characteristic of this period? Three, what were the causes of the Panic of 1837?

In my view the major problem with the previous research on this topic is not the conclusions that have been offered. The difficulty is with the methodology used to obtain these conclusions. The methodology of the traditional school is subjective in character and hence not open to critical scientific examination, even though the

[2] For example, see E. Stevens, "Composition of the Money Stock Prior to the Civil War," *Journal of Money, Credit and Banking*, 3 (Feb. 1971), 84-101; G. Macesich, "Sources of Monetary Disturbances in the United States, 1834-1845," THE JOURNAL OF ECONOMIC HISTORY, 20 (Sept. 1960), 407-34; H. Rockoff, "Money, Prices and Banks in the Jacksonian Era," in R. Fogel and S. Engerman, eds., *The Reinterpretation of American Economic History* (New York, 1971); and especially P. Temin, *The Jacksonian Economy* (New York, 1969).

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.47 - The Economic Consequences of the Bank War

Peter Temin

ARTICLE	The Economic Consequences of the Bank War
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The Economic Consequences of the Bank War

Peter Temin*

Massachusetts Institute of Technology

The 1830's are fascinating and important years in American history. They witnessed both the emergence of the complex phenomenon known as Jacksonian democracy and the rise and collapse of one of the fastest inflationary movements of the nineteenth century. These two events generally are thought to have been causally connected, since one of the defining acts of Jacksonian democracy was the veto and destruction of the Second Bank of the United States: the celebrated Bank War. The demise of this bank is thought to have removed the only effective constraint on the state banks, leading to credit expansion and inflation.

The purpose of this essay is to take issue with this view and also with the views of several recent, unorthodox investigators. I will suggest instead that the inflation of the 1830's was the result of a fortuitous combination of events, none of which could have produced the price rise by itself, and most of which were not connected with the political acts of President Jackson. Together they maintained a tenuous balance for a few years, but the rapid dissipation of this balance placed intolerable strains upon the existing monetary arrangements and led to the well-known panics of the late 1830's.

The paper is divided into four parts. In the first, the events to be explained are outlined and the inadequacies of previous explanations exposed. In the second and third, a new explanation is advanced, and empirical evidence is mustered to document the theory. A concluding section comments on the historiography of the period.

I

The Second Bank of the United States was chartered in 1816. It was the only bank chartered by the federal government, and it had two special

* I would like to thank the National Science Foundation for financial support, and Edward J. Kane for his helpful comments. All responsibility for errors remains mine.

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functions in addition to its normal banking activities. It was the fiscal agent of the federal treasury, acquiring as a result the responsibility for a large volume of interregional transactions, and it was supposed to encourage the establishment of a uniform national currency to replace the chaotic issues of state-chartered banks. The latter task was accomplished in two ways. The Second Bank issued its own notes, and it promptly returned the notes of state banks which it received in payment of government obligations (or any other obligations) to the issuing banks for redemption in specie, that is, in silver or gold. In the eyes of several historians, the Second Bank, by taking responsibility to aid the economy in times of crisis, became a fledgling central bank, and its president, Nicholas Biddle, a pioneer central banker (Catterall, 1902; Redlich, 1951; Smith, 1953; Hammond, 1957).

For reasons that continue to be debated, President Jackson vetoed the bill renewing the Second Bank's twenty-year charter in 1832.[1] This was probably the decisive engagement of the Bank War, but the transfer of the government's deposits in 1833–34 from the Second Bank to state banks had more immediate impact. Biddle's reaction to the loss of these deposits was to restrict credit and accumulate reserves, a policy that lasted from the fall of 1833 into the summer of 1834. This policy led, in turn, to great stringency in the money market and to a recession of unknown magnitude; but to the extent that the Bank's policy was designed to convince the government of the Bank's value, it was a failure (McGrane, 1919, pp. 219–20; Meerman, 1963).

In March, 1834, Biddle wrote to a colleague that "the Executive, by removing the public revenues has relieved the Bank from all responsibility for the currency" (McGrane, 1919, pp. 225–26). Inflation, or so the traditional story goes, was the consequence.

The precise extent and duration of the inflation depends on the measure used. I will use Smith and Cole's price index, which employs weights designed to show "the tone of business in the northeastern section of the country." This index drifted downward through the 1820's (with a small upward deviation from trend in 1825) to a trough in the summer of 1830. It then rose about 20 per cent in the next three years, peaking in the fourth quarter of 1833. As a result of Biddle's contraction, prices fell to a new trough in the second quarter of 1834 at a level only about 5 per cent above the trough in 1830. Prices rose rapidly from this new trough and reached a peak level 50 per cent above it during the first quarter of 1837. The fall from this peak was irregular: prices fell in 1837, rose in 1838, and fell in 1839 and succeeding years to a trough in the first quarter of 1843, about

[1] For the flavor of the debate, see Schlesinger (1945), the refutation of his position by Hammond (1957, esp. p. 364), and the refutation of Hammond's position by Gatell (1966).

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.48 - Cherokee Population Losses during the Trail of Tears: A New Perspective and a New Estimate

Russell Thornton

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ETHNOHISTORY 31(4):289-300 (1984) THORNTON

CHEROKEE POPULATION LOSSES DURING THE TRAIL OF TEARS: A NEW PERSPECTIVE AND A NEW ESTIMATE

Russell Thornton **University of Minnesota**

Abstract

The relocation of the Cherokee Indians from southeastern United States to Indian Territory during the 1830s is examined. A new perspective on what constitutes their population losses during relocation is offered, one covering the whole period and one considering what population size would have been had not the removal occurred. Total Cherokee population losses are then estimated using projections of 19th century Cherokee population trends. Results indicate these losses were very substantial; in fact, the number of deaths may have been twice the generally accepted figure of 4,000.

It is said that as many as 100,000 American Indians were removed from eastern homelands to locations west of the Mississippi River during the first half of the 19th century (Blue 1974, iii; Doran 1975, 496-97). Most of this number were members of five tribes: Cherokee, Chickasaw, Choctaw, Creek, and Seminole, along with remnants of other southeastern Indian groups who had joined with them. Most of the relocations occurred in the decade following passage of the United States Indian Removal Act of 1830 (see Prucha 1975, 52-53), though some occurred earlier and some later. Whenever they may have taken place, few events in the history of any people were as tragic as these journeys were for the Indian tribes involved. In fact, the removal of the Cherokee during the late 1830s was so arduous that they subsequently named it *Nunna daul Tsuny* (Trail Where We Cried); it has become known in English as the "Trail of Tears." The Cherokee suffered from adverse weather, mistreatment by soldiers, inadequate food, disease, bereavement, and the loss of their homes, all of which contributed to large population losses; just how large is the topic of this article.

Cherokee Removal

The land of the Cherokees had once been immense. It had extended from the Ohio River south almost to present-day Atlanta, Georgia, and from Virginia and the Carolinas west across Tennessee, Kentucky and Alabama to the Illinois River. By the close of the Revolutionary War, Cherokee tribal lands had shrunk considerably in the north and east, as populations of whites had settled there; by the mid-1830s, Cherokee territory encompassed only the area where North Carolina, Tennessee, Georgia, and Alabama more or less converge (see Mooney 1975, 10).

During this period, the Cherokees were increasingly subjected to invasions of armed men from Georgia, "forcibly seizing horses and cattle, taking possession of houses from which they had ejected occupants, and assaulting the owners

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who dared make resistance" (Mooney 1975, 112); they were all but helpless to retaliate. The situation grew worse in 1828 when the state of Georgia passed an act annexing Cherokee country, declaring Cherokee laws null and void, and allowing no Indian "as a witness or party in any suit where a white man should be defendant" (Mooney 1975, 111).

Subjected also to pressure from the U.S. Government to cede the remainder of their lands and move west of the Mississippi River, the Cherokee resisted as best they could. They took several cases to the U.S. Supreme Court, winning an important case which involved the missionary, Samuel A. Worcester, who resided on Cherokee land with tribal permission. Arrested by Georgia militia for helping the Cherokees, Worcester and the Cherokee tribe contended that Georgia had no right to interfere as the Cherokees were "a nation with a guaranteed and definite territory" (Mooney 1975, 113). The Supreme Court agreed, but Georgia refused to release Worcester. President Andrew Jackson is reported to have said in response to the decision, "John Marshall had made his decision, now let him enforce it" (Mooney 1975, 114).

After three years of further turmoil, the Treaty of New Echota was signed by some individual Cherokees, but not by the principal officers of the Nation. It called for an exchange of eastern lands for lands west of the Mississippi River in Indian territory, and for the payment of $15,000,000 to the Cherokees. Although the leaders of the Cherokee Nation, including Chief John Ross, protested the treaty, it was eventually consumated.

During these events, some Cherokees had voluntarily moved west into Arkansas and Indian Territories. Most, however, remained in their homelands, still not believing they would be forced to leave. In 1838 the Cherokees were disarmed, and General Winfield Scott was sent to oversee their removal. Mooney summarizes some of the events of the relocation:

> The history of this Cherokee removal of 1838, as gleaned by the author from the lips of actors in the tragedy, may well exceed in weight of grief and pathos any other passage in American history. Even the much-sung exile of the Acadians falls far behind it in its sum of death and misery. Under Scott's orders the troops were disposed at various points throughout the Cherokee country, where stockade forts were erected for gathering in and holding the Indians preparatory to removal. From these, squads of troops were sent to search out with rifle and bayonet every small cabin hidden away in the coves or by the sides of mountain streams, to seize and bring in as prisoners all the occupants, however or wherever they might be found. Families at dinner were startled by the sudden gleam of bayonets in the doorway and rose up to be driven with blows and oaths along the weary miles of trail that led to the stockade. Men were seized in their fields or going along the road, women were taken from their wheels and children from their play. In many cases, on turning for one last look as they crossed the ridge, they saw their homes in flames, fired by the lawless rabble that followed on the heels of the soldiers to loot and pillage. So keen were these outlaws on the scent that in some instances they were driving off the cattle and other stock of the Indians almost before the soldiers had fairly started their owners in the other direction. Systematic hunts were made by the same men for Indian graves, to rob them of the silver pendants and other valuables deposited with the dead. (Mooney 1975, 122)

John G. Burnett, a soldier who participated in the removal, describes other incidents:

> Men working in the fields were arrested and driven to the stockades. Women were dragged from their homes by soldiers whose language they could not understand.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.49 - American Indians on the Cotton Frontier: Changing Economic Relations with Citizens and Slaves in the Mississippi Territory

Daniel H. Usner Jr.

ARTICLE	American Indians on the Cotton Frontier: Changing Economic Relations with Citizens and Slaves in the Mississippi Territory
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American Indians on the Cotton Frontier: Changing Economic Relations with Citizens and Slaves in the Mississippi Territory

Daniel H. Usner, Jr.

The popular view of how the Cotton South began tells us that Eli Whitney's cotton gin overcame the only real barrier to the expansion of commercial agriculture and slavery into "unsettled" parts of the Deep South. With industrialized textile factories demanding larger quantities of cotton, manufacturers and merchants indeed began during the 1790s to encourage cotton agriculture in North America as well as in Asia, West Africa, Brazil, and the Caribbean. Their demand for more cotton supplies coincided with a sharp drop in the prices of tobacco, rice, and indigo due to glutted markets and the removal of bounties by European importers. To avert financial losses from declining prices of those staples, more and more cultivators attempted to grow cotton in upland areas of the South. Influenced by the promotional campaign of English industrialists, governments in the British Caribbean, the American state of Georgia, and the Spanish colony of Louisiana rewarded experimentation on gins that could accelerate the separation of seeds from the tightly clinging fiber of green-seed, short-staple cotton—the variety that grew best in the southern interior.[1]

Little is known, however, about the less benign economic changes wrought within regions undergoing that agricultural expansion, especially those experienced by American Indians. The takeoff of cotton production in the Mississippi Territory coincided with a decline in the deerskin trade still important to most Indian communities during the early nineteenth century. The United States government, with cooperation from merchants familiar with Indian commerce, accelerated both processes by manipulating trade debts of Choctaw, Chickasaw, and Creek leaders into cessions of land from the tribes. Indian peoples coped with their diminishing land base through different

Daniel H. Usner, Jr., is assistant professor of history at Cornell University.

[1] Michael M. Edwards, *The Growth of the British Cotton Trade, 1780–1815* (Manchester, 1967), 75–106; Paul W. Gates, *The Farmer's Age: Agriculture, 1815–1860* (New York, 1960), 1–21. On the shift to cotton cultivation in the Natchez area, see Jack D. L. Holmes, *Gayoso: The Life of a Spanish Governor in the Mississippi Valley, 1789–1799* (Baton Rouge, 1965), 96–101; and D. Clayton James, *Antebellum Natchez* (Baton Rouge, 1968), 48–53.

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economic strategies. Some groups migrated out of the territory, but most remained and tried to diversify trade with the United States, became itinerant laborers and vendors, or intensified their own horticultural production. Concentration on the territorial period of Mississippi history allows us to examine initiatives taken by Indians in face of rapid change and, furthermore, at a time preceding the influence of Protestant missionaries.

Changing economic relations with American settlers and Afro-American slaves also shaped Indian life on the cotton frontier. With noteworthy irony many of these newcomers, who are usually cast by historians in a one-dimensional shove against Indians, relied on economic exchange with Indians or on other economic activities resembling Indian livelihood. Nevertheless, a widening separation between racial groups occurred during the territorial years as laws and patrols tried to restrict economic relations and activities among Indians and blacks. The transformation of the region into the cotton states of Mississippi in 1817 and Alabama in 1819 also involved the use of military force to quell slave rebellion and Indian resistance. Examination of Indians' economic relations with both citizens and slaves in the Mississippi Territory, therefore, reveals significant dimensions of the incipient cotton economy in the early nineteenth-century South.

By 1793, when use of Whitney's patented gin began to spread across the southern hinterland, the region between the Chattahoochee and the Mississippi rivers was still very much Indian country. The Indian population in that area numbered at least 30,000 individuals, most of whom lived in the more than one hundred villages that constituted the Creek, Choctaw, and Chickasaw nations. Within the same territory were only about 2,500 whites and 2,000 blacks, mostly concentrated in settlements along the lower Tombigbee River and around the Natchez banks of the Mississippi.[2] In order to counteract the United States' claims to territory and its demands for navigating the Mississippi River, Spanish officials made serious efforts during the 1790s to attract American settlers to Louisiana. A generous land policy offered immigrants sizable grants of free land in proportion to the size of their families and the number of their laborers. Larger diplomatic considerations, however, compelled Spain in the Treaty of San Lorenzo, 1795, to cede to the United States all lands east of the Mississippi River and above the thirty-first parallel. In 1798 the United States Congress organized that cession into the Mississippi Territory, which was by the turn of the century occupied by nearly 5,000 whites, 3,500 black slaves, and 200 free blacks, in addition still to more than 30,000 Indians.[3]

[2] My estimate of an Indian population of at least 30,000 includes 15,160 Creeks, 11,447 Choctaws, and 2,400 Chickasaws. These tribal counts do not include separate Indian communities such as the Chickamauga Cherokees in the Tennessee Valley. Lawrence Kinnaird, trans. and ed., *Spain in the Mississippi Valley, 1765–1794* (3 vols., Washington, 1946–1949), III, 229–33; Jack D. L. Holmes, "The Choctaws in 1795," *Alabama Historical Quarterly*, 30 (Spring 1968), 33–49; U.S. Congress, *American State Papers: Indian Affairs* (2 vols., Washington, 1832–1848), I, 39; Census of the District of Mobile, Jan. 1, 1787, Works Progress Administration transcript, vol. 3, doc. 226, Favrot Papers (Louisiana Historical Center, New Orleans); Holmes, *Gayoso*, 115.

[3] Holmes, *Gayoso*, 23–24; James, *Antebellum Natchez*, 41–42; "Schedule of the whole Number of Persons in the Mississippi Territory, 1801," manuscript, Mississippi Territorial Census

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.50 - Tippecanoe and the Ladies, Too: White Women and Party Politics in Antebellum Virginia

Elizabeth R. Varon

ARTICLE	Tippecanoe and the Ladies, Too: White Women and Party Politics in Antebellum Virginia
JOURNAL	The Journal of American History 82, no. 2 (1995)
EXCERPT	Original journal pages 494-495
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Tippecanoe and the Ladies, Too: White Women and Party Politics in Antebellum Virginia

Elizabeth R. Varon

The nineteenth-century ideology of "separate spheres," which prescribed that men occupy the public sphere of business and politics and women the domestic sphere of home and family, has exercised a powerful hold over historians of the antebellum United States. As a result, the fields of antebellum political history and women's history have used separate sources and focused on separate issues. Political historians—relying on sources such as voting records, newspapers, and the writings of politicians—have described the emergence in the 1840s of what the historian Joel H. Silbey has called a new "American political nation." Gone was the political world of the early republic, with its widespread antiparty sentiment, deferential behavior by voters, and political dominance by social elites. In the new order, political parties, led by professional politicians, demanded disciplined partisanship from the electorate. The "electoral universe" was in constant motion. Men participated in a frenzied cycle of party rallies, processions, committee meetings, conventions, caucuses, and elections. What about women? Since they were neither voters nor politicians, women have received only brief mention in the new political history.[1]

Women's historians, for their part, have shown little interest in the subject of party politics. Drawing primarily on personal papers, on legal records such as wills, and on the organizational records of female associations, they have illuminated women's domestic lives, their moral reform activities, and the emergence of the woman's rights movement. Those few scholars—Paula C. Baker, Mary P. Ryan, and Michael E. McGerr—who have tried to integrate political history and women's history have not challenged the historiographical impression that the realm of antebel-

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While my scholarly debts are many, I owe special gratitude to Nancy F. Cott, David Brion Davis, Melvin Patrick Ely, and Barbara F. Varon; the referees and editors of the *JAH;* and the staffs of the Virginia Historical Society and the Library of Virginia.

[1] Women's partisanship occupies two footnotes in a recent synthesis of American political history: Joel H. Silbey, *The American Political Nation, 1838–1893* (Stanford, 1991), 270, 308–9. See also *ibid.*, 46–48. For short discussions of women's partisanship, see Ronald P. Formisano, *The Transformation of Political Culture: Massachusetts Parties, 1790s–1840s* (New York, 1983), 262–67; Harry L. Watson, *Liberty and Power: The Politics of Jacksonian America* (New York, 1990), 221–22; and Lawrence Frederick Kohl, *The Politics of Individualism: Parties and the American Character in the Jacksonian Era* (New York, 1989), 72–74.

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lum party politics was a male preserve. While these scholars note that women took part in political campaigns, they stress the theme of female exclusion from male political culture. As McGerr has written, women were let into the political sphere only "to cook, sew, and cheer for men and to symbolize virtue and beauty." They were denied "not only the ballot but also the experience of mass mobilization."[2]

The distance between antebellum political history and women's history is perhaps nowhere so great as in the historiography on the Old South. While northern feminist abolitionists who demanded political enfranchisement have begun to receive their due from historians of northern politics, no such radical vanguard existed in the South to command the attention of political historians. Both the major historians of antebellum southern politics and the major practitioners of southern women's history have neglected the subject of female partisanship. The current historiographical consensus holds that southern women, in keeping with the conservatism of their region, by and large eschewed politics even as northern women were fighting for access to the political sphere.[3]

This essay attempts to close the gap between women's history and political history. Focusing on the Commonwealth of Virginia, it argues that historians have underestimated the extent and significance of women's partisanship in the antebellum period. In the presidential election campaigns of the 1840s, Virginia Whigs made a concerted effort to win the allegiance of the commonwealth's women by inviting them to the party's rallies, speeches, and processions. Though the Whigs never carried the state for their presidential candidates, they repeatedly claimed that the majority of women favored their party over the Democrats. Whig campaign rhetoric, as presented by the party's newspapers, and women's private and public expressions of partisanship articulated a new ideal of feminine civic duty, one that I call Whig womanhood. Whig womanhood embodied the notion that women could—and should—make vital contributions to party politics by serving as both partisans and mediators in the public sphere. According to Whig propaganda, women who turned out at the party's rallies gathered information that allowed them to mold partisan families, reminded men of moral values that transcended partisanship, and conferred moral standing on the party.

The Whigs' claim that there was a "gender gap," to use a modern phrase, between them and the Democrats did not go unanswered. During the 1844 campaign, the

[2] For a synthesis of recent scholarship on domesticity, moral reform, and woman's rights in the antebellum period, see Sara M. Evans, *Born for Liberty: A History of Women in America* (New York, 1989), 67–112. On women and antebellum party politics, see Paula C. Baker, "The Domestication of Politics: Women and American Political Society, 1780–1920," *American Historical Review,* 89 (June 1984), 627–32; Mary P. Ryan, *Women in Public: Between Banners and Ballots, 1825–1880* (Baltimore, 1990), 135–38; and Michael E. McGerr, "Political Style and Women's Power, 1830–1930," *Journal of American History,* 77 (Dec. 1990), 866–67.

[3] On Southern politics, see, for example, William J. Cooper Jr., *Liberty and Slavery: Southern Politics to 1860* (New York, 1983); and John McCardell, *The Idea of a Southern Nation: Southern Nationalists and Southern Nationalism, 1830–1860* (New York, 1979). On southern women, see Catherine Clinton, *The Plantation Mistress: Woman's World in the Old South* (New York, 1982), 181–82; Elizabeth Fox-Genovese, *Within the Plantation Household: Black and White Women of the Old South* (Chapel Hill, 1988), 195; and Suzanne Lebsock, *The Free Women of Petersburg: Status and Culture in a Southern Town, 1784–1860* (New York, 1984), 224. The party designations "Whig" and "Democrat" do not even appear in the indexes of these three works.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.51 - Andrew Jackson: Chivalric Slave Master

Matthew Warshauer

ARTICLE	Andrew Jackson: Chivalric Slave Master
JOURNAL	Tennessee Historical Quarterly 65, no. 3 (2006)
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Andrew Jackson: Chivalric Slave Master

by Matthew Warshauer

In 1839 Andrew Jackson engaged in a surprising legal battle. During a Christmas party, several of his slaves were involved in a brawl that resulted in the death of a bondsman from another plantation. When the man's owner pressed for an indictment, four of Jackson's slaves were arrested and jailed in Nashville. On trial for a capital offense, the men would have suffered hanging if found guilty. Tennessee law stipulated free legal counsel for slaves, yet Jackson hired three top defense attorneys, placing himself in debt to raise the legal expenses. In going to such lengths, Jackson saved the lives of his bondsmen.[1] Why would a slaveholder, let alone the iron-willed general, engage in such actions? Jackson certainly never questioned the morality of slavery. He firmly believed in the peculiar institution, he supported the institution's constitutionality, and he had harsh words for those who attempted to incite revolt through abolitionist publications.[2] The seventh president viewed slavery as a means of economic enrichment and a way to establish himself in the aristocratic planter class. Surprisingly, historians have engaged in little systematic investigation of Jackson as slaveholder,[3] even though he owned upwards of one hundred and fifty slaves, making him one of the state's largest slave owners. Archeologists have plumbed the depths of Jackson's plantation, the Hermitage, to unearth the story of material conditions among the slaves. More than a dozen years of digs have revealed over a million artifacts, giving scholars an amazing albeit still limited understanding of plantation slave life.[4]

The question of Jackson as slave master, however, remains unanswered. What kind of master was the indomitable Jackson? His notions of loyalty and duty, his legendary temper, and his willingness to punish those who crossed him make one wonder how slaves at the Hermitage faired. The question of Jackson as slave master is of particular interest considering a renewed study of American presidents and slavery, beginning with the founding fathers George Washington and Thomas Jefferson.[5] A recent work on James K. Polk as slave master found that Young Hickory focused more on the economic self-interest of slavery than on questions of morality. Slavery on his plantation was often brutal and deadly. Polk's will noted that he "hoped" for his slaves' freedom, though this never occurred.[6]

This recent research makes the question of Andrew Jackson as slaveholder all the more intriguing. He never achieved the degree of introspection that Jefferson and Washington entertained, nor did he consider emancipation. Jackson did join earlier slaveholding presidents in attracting the rumor that he fathered a mulatto child, though it does not appear that the charge surfaced during his lifetime. It remained a feature of oral history among Hermitage slave descendents and has yet to be confirmed.[7]

The available evidence indicates that Jackson as slave master epitomizes the story of southern paternalism.[8] Indeed, Elizabeth Fox-Genovese and Eugene Genovese, in their latest work, *The Mind of the Master Class*, recently included Jackson within a chapter entitled "Chivalric Slave

Historians have engaged in little systematic investigation of Andrew Jackson as slaveholder. What kind of master was the indomitable Jackson? Part of the answer lies in the accounts of his slaves such as Hannah and Aaron Jackson. (The Hermitage: Home of President Andrew Jackson, Nashville, TN)

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Masters," describing him as a "model," and explaining the traits of such a master: "While managing the work of his slaves, supervising their lives, paying bills, and getting the crop out, he was simultaneously to be gentle, forbearing, and kind – but stern, even severe, when duty, dignity, and preservation of authority required."[9] Jackson epitomized such a master. Viewing Hermitage slaves as his black "family," he expressed a degree of concern, made sure slaves had adequate medical attention, counseled overseers on good treatment, and exacted punishment only when "necessary." Some of this can be explained in terms of economics and social control. As an asset, healthy slaves who were treated humanely worked harder, posed fewer problems, and were less apt to revolt. Within this framework all interactions between slaves and masters were about good business. The only reason a slaveholder might reveal feeling for a slave was to maximize profit and control. Yet the issue of good treatment also orbits the larger complexity of human bondage. The fact that owners possessed legal title over slaves necessarily reduced any relationship to one of sheer power, yet does such a fact dissolve the possibility of the full range of human emotions, including affection, between master and slave? Can the actions of some slaveholders be seen in the light of caring that is either beyond or in conjunction with pecuniary motives?

Andrew Jackson as slave master helps to address some of these questions, for there are numerous instances—especially two judicial proceedings—when he paid particularly close attention to the welfare of his bondsmen and apparently defended the rights of slaves. The first of these instances may have been a turning point in his concern for Hermitage slaves.

Andrew Jackson purchased his first slave, "a Negro Woman named Nancy," on November 17, 1788, shortly after his arrival in Tennessee. The acquisition was as much, if not more about establishing himself as a man of standing as it was an actual need for a slave. The youthful Jackson traveled the court circuit with other lawyers, many of whom were accompanied by their slaves. Jackson desired the same mark of status.[10] Within just four years Jackson purchased six more slaves, and by 1798 tax records indicate that he owned fifteen, five of whom were most likely under the age of twelve. Part of the rapid increase in slave numbers was due to an inheritance from the father of his wife, Rachel Donelson Jackson.[11] This number of slaves placed Jackson in the upper percentile of owners in Tennessee. Even by the 1850s the largest group of slave masters in the state held four or less slaves, and just under 70 percent owned less than ten. Jackson had not yet achieved the status of "planter," which, according to one Tennessee historian, required thirty or more slaves.[12]

Records also indicate that during these early frontier years Jackson acquired and at times delivered slaves as commodities to settle debts and purchased slaves on behalf of friends.[13] Slave owners separated this common practice from the occupation of "slave trader," a position that was, with no irony, held in abhorrence. Even Jackson showed disgust for such men, denouncing Charles Dickinson, who Jackson killed in a duel, as one who made "a fortune off speculating on human flesh." In later years Jackson too was charged by a political opponent with slave trading. The charge was true to the extent that on one occasion he acted as a silent partner in a transaction involving the sale of slaves, but untrue in the sense that he would not have fit the definition of the time as one who made his living from slave trading.[14]

By 1804, Jackson experienced the same problem encountered by many slave owners: runaways. The remedy was posting an advertisement in local papers offering a reward and payment of costs for capture. Jackson, however, went a step further, promising additional money for punishment:

Stop the Runaway
50 Dollars Reward

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.52 - The 'Country' versus the 'Court': A Republican Consensus and Party Debate in the Bank War

Major L. Wilson

ARTICLE	The 'Country' versus the 'Court': A Republican Consensus and Party Debate in the Bank War
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THE "COUNTRY" VERSUS THE "COURT": A REPUBLICAN CONSENSUS AND PARTY DEBATE IN THE BANK WAR

Major L. Wilson

Born and nurtured in the Country, Americans in the Jacksonian period harbored a deep distrust of the Court. They shared the belief that a self-serving few were always conspiring to gain control of the government; in formal language, that power was ever encroaching on liberty. Spokesmen in the Bank War accordingly formulated the issues at stake in terms of what one historian has called a "conspiracy paradigm." Each side claimed to be the true Country party, standing in defense of the Constitution and the liberties of the people against a conspiracy at Court. President Andrew Jackson warned that "the hydra of corruption," the Bank of the United States, was moving by stealth to gain recharter and thenceforth become the governing power of the nation. It was "an attack upon the supremacy of the popular will," Vice President Martin Van Buren agreed, "and by consequence, upon the liberties of the people."[1]

Political foes of Jackson likewise defended liberty against the aggressions of power. Henry Clay told the Senate that the usurpations of Jackson were rapidly transforming "the pure republican character" of the government, defined by "the predominance of laws," into one based on "the uncontrolled will of one man." The Whig organ in

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Major Wilson is professor of history at the University of Memphis. An earlier version of this paper was presented at the 1990 SHEAR Meeting in Toronto.

[1] Daniel Walker Howe, *The Political Culture of the American Whigs* (Chicago, 1979), 79-80; Jackson to Hardy M. Cryer, Apr. 7, 1833, *Correspondence of Andrew Jackson*, ed. John Spencer Bassett (7 vols., Washington, DC, 1926-1935), V, 53; Van Buren quoted in Washington (DC) *Globe*, May 24, 1834.

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Washington, the *National Intelligencer*, carried the analysis one step further: behind the throne of ''King Andrew'' lurked a ministerial conspiracy, a ''cabal'' of profligate political adventures, supported by an army of mercenary office holders and dependents. ''The success of the Kitchen Cabinet, we repeat, will be the downfall of the republic.''[2] The salvation of the republic in either case called for patriots to rout the conspirators in the political arena and restore the government to its pristine origins.

This language of the Country versus the Court—more broadly of republicanism—constituted a basic element in the political culture of Jacksonian America. It came from the Revolutionary Fathers who, in turn, had been greatly influenced by the thought of the Country opposition in eighteenth-century England. Led by High Tory Lord Bolingbroke and supported by Radical Whigs, the Country party warned that the ministry of Sir Robert Walpole proceeded by corrupt means to suborn members of Parliament and undermine the liberties of the nation. In like fashion the Fathers opposed what they took to be a ministerial conspiracy around George III; in the selfsame act of declaring independence they embraced the task of regenerating republican freedom. Thomas Jefferson likewise saw the election of 1800 as a ''revolution'' to foil the conspiracy of the Federalist court party and restore the government to its old republican tack. In all cases it was assumed that republican government reposed on two related tenets: belief in the existence of a ''common good'' to be promoted by the government, and dependence on the virtue of the people and their leaders to rise above self-interest and identify with this common good—with *res publica*. Because dependent on virtue, unhappily, a republic was frail and ever liable to degeneration through the force of avarice and ambition.[3]

In these terms the present essay seeks to do two related things. First, it documents the pervasive way in which Country-Court lan-

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[2] *Congressional Globe*, 23d Cong., 1st sess., 85, 549; *Daily National Intelligencer* (Washington, DC), Dec. 2, 1833.

[3] Bernard Bailyn, *The Ideological Origins of the American Revolution* (Cambridge, MA, 1967); Gordon S. Wood, *The Creation of the American Republic, 1776-1787* (Chapel Hill, 1969); Lance Banning, *The Jeffersonian Persuasion: The Evolution of a Party Ideology* (Ithaca, 1978); Joseph A. Shumpeter, *Capitalism, Socialism, and Democracy*, (1950; 3d ed., New York, 1976), 250.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.53 - Evidence of Surplus Production in the Cherokee Nation Prior to Removal

David M. Wishart

ARTICLE	Evidence of Surplus Production in the Cherokee Nation Prior to Removal
JOURNAL	The Journal of Economic History 55, no. 1 (1995)
EXCERPT	Original journal pages 120-121
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Evidence of Surplus Production in the Cherokee Nation Prior to Removal

DAVID M. WISHART

Debate over the level of economic development for the Eastern Cherokees was heated during the 1830s. Removal opponents argued that the Cherokees had adopted white agricultural methods, whereas advocates of removal maintained that little evidence of progress existed. Removal advocates believed that Cherokee economic progress required that they be removed from contact with whites. This article examines the statistical record to show that a majority of Cherokee households produced surplus food before removal. The large number of Cherokee households producing surpluses before removal suggests the existence of significant rents to be transmitted to white farmers via the removal policy.

The question of the continued economic viability of the Eastern Cherokees in the southeastern United States was an important issue in the heated political debate during the 1830s over their removal to Oklahoma. For example, President Andrew Jackson, probably the most famous proponent of removal, bemoaned the lack of economic progress among the southeastern Indians. Jackson argued in his first annual message to Congress that the Indians had no right to "tracts of country on which they have neither dwelt nor made improvements, merely because they have seen them from the mountain or passed them in the chase," and felt that their inability to adopt white agricultural methods quickly would doom them to "weakness and decay" with "the fate of the Mohegan, the Narragansett, and the Delaware . . . fast overtaking the Choctaw, the Cherokee, and the Creek."[1] Jackson elaborated on these views in a talk given to a Cherokee delegation visiting Washington in 1835 to protest the provisions of an early draft of the Treaty of New Echota, which ultimately set the terms for Cherokee removal. Jackson maintained that

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[1] Satz, *American Indian Policy*, p. 19.

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> The game has disappeared among you, and you must depend upon agriculture, and the mechanic arts for support. And, yet, a large portion of your people have acquired little or no property which can be useful to them. How, under these circumstances, can you live in the country you now occupy?[2]

Jackson promoted the view that removal to the trans-Mississippi west was a humanitarian policy essential for Cherokee survival. His remarks reflected a tone set by Lewis Cass, the Secretary of War during Jackson's second administration, who authored an anonymous piece titled "Removal of the Indians" for the 1830 volume of *The North American Review*. Cass, at that time the governor of Michigan, wrote at length about economic progress among the Cherokees. He admitted "that individuals among the Cherokees have acquired property, and with it more enlarged views and juster notions of the value of our institutions, and the unprofitableness of their own." But, he argued,

> the great body of the people are in a state of helpless and hopeless poverty. With the same improvidence and habitual indolence which mark the northern Indians, they have less game for subsistence, and less peltry for sale. We doubt whether there is, upon the face of the globe, a more wretched race than the Cherokees as well as the other southern tribes, present.[3]

In stark contrast, opponents of removal pointed to the significant progress that had been made by the Cherokees in adopting white agricultural practices. For example, the Reverend Samuel Worcester, a missionary who had lived with the Cherokees since 1826, asserted in a letter to removal advocate Reverend E. S. Ely that "the mass of the Cherokee people have built them houses and cultivated lands with their own hands. . . . There may be a few families among the mountains, who depend mostly on the chase for support, but I know not of one."[4] Worcester proclaimed the success of the Cherokees' adaptation to agriculture in another letter to William Shorey Coodey, a member of a Cherokee delegation to Washington in 1830: "the land is cultivated with very different degrees of industry; but I believe that few fail of an adequate supply of food. The ground is uniformly cultivated by means of the plough, and not, as formerly, by the hoe only."[5]

Disagreement about Cherokee economic progress prior to their removal west continues among contemporary scholars. The Jacksonian case that the Cherokees, along with the rest of the American Indians, were doomed to technologically inevitable destruction because of the high per capita land requirement associated with a hunter-gatherer existence has recently been advanced by Stanley Lebergott, who

[2] Remini, *Andrew Jackson*, p. 298.
[3] Cass, "Removal," p. 71.
[4] Letter from the Rev. Samuel A. Worcester to the Rev. E. S. Ely, editor of *The Philadelphian*, March 10, 1830. See Kilpatrick and Kilpatrick, eds., *New Echota Letters*, p. 75.
[5] Letter from the Rev. Samuel A. Worcester to William Shorey Coodey, March 15, 1830, ibid., p. 79.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.54 - 'A Sacrifice on the Altar of Slavery': Doughface Politics and Black Disenfranchisement in Pennsylvania, 1837-1838

Nicholas Wood

ARTICLE	'A Sacrifice on the Altar of Slavery': Doughface Politics and Black Disenfranchisement in Pennsylvania, 1837-1838
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"A Sacrifice on the Altar of Slavery"

Doughface Politics and Black Disenfranchisement in Pennsylvania, 1837–1838

NICHOLAS WOOD

In November 1838, the white citizens of Pennsylvania ratified a new state constitution that, among other things, stripped the franchise from the state's black population. Following on the heels of black disfranchisement in Tennessee and North Carolina, Pennsylvania completed the process of black disfranchisement in all states south of New England. Although the decision was made at the state level, contemporaries recognized the national implications of black disfranchisement within a federal union that was half slave and half free. Occurring during a time of rising antislavery agitation and sectional tension in Congress, the issues of black suffrage and abolitionism became inseparable. Many delegates at Pennsylvania's Reform Convention believed that southerners would view black suffrage as "a sanction given to the anti-American doctrines of the abolitionists," and realized their vote on black suffrage would be "carried to Congress to show how nearly this state was divided on the subject of abolition." Meanwhile, southern newspapers declared: "Negro suffrage

Nicholas Wood has a master's degree from Rutgers University, Camden, and is a PhD student at the University of Virginia. He would like to thank the many people who helped improve this essay, especially Andrew Shankman and Peter Onuf. The author also benefited from the criticism and suggestions of Lorrin Thomas, Richard Newman, Margot Minardi and the other participants of the 2009 SHEAR annual meeting, Gary Gallagher, Jon Grinspan, Matthew Mason and the *JER*'s other outside readers, and Alison Wood, who has read more drafts and offered more encouragement than anyone. He would also like to thank the staff at the Historical Society of Pennsylvania and the Library Company of Philadelphia.

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is a *black spot* upon the escutcheon of Pennsylvania . . . which we would be pleased to see speedily eradicated."[1]

The connection between northern disfranchisement and southern slavery was also obvious to Pennsylvania's black leaders like Robert Purvis, who helped pen the *Appeal of Forty Thousand Citizens Threatened with Disfranchisement.* Purvis and his coauthors charged that the Reform Convention delegates had "laid our rights a sacrifice on the altar of slavery" and were motivated by "the desire which is felt by political aspirants to gain the favor of the slave-holding States." Black suffrage was a "dangerous example" to southern slaves, and disfranchisement helped reconcile the juxtaposition of black slavery and black freedom within the Union.[2]

Although both whites and blacks, in the North and South, highlighted the connection between black disfranchisement and the sectional controversy over slavery and abolitionism, historians have given less attention to this context. Instead historians often lump Pennsylvania into the standard interpretive model for racial disfranchisement in the North, presenting it as a tragic outcome of the clash between democratization and racism. Popular prejudice was undoubtedly an essential ingredient in Pennsylvania, but the scholarly focus on race obscures other issues more salient to the historical actors we study, such as fear of disunion and the need to preserve intersectional political parties. The second half of the

1. John Agg, ed., *Proceedings and Debates of the Convention of the Commonwealth of Pennsylvania to Propose Amendments to the Constitution, Commenced at Harrisburg, May 2, 1837* (14 vols., Harrisburg, PA, 1837–39), 9: 328 (Sturdevant), 10: 109 (Shellito); A postscript in the *Virginia Free Press* explained that it had just learned that Pennsylvania had voted in favor of black disfranchisement, and applauded the decision; *Virginia Free Press* (Charlestown), Jan. 25, 1838. On black disenfranchisement in Tennessee and North Carolina, see Lacy K. Ford, *Deliver Us from Evil: The Slavery Question in the Old South* (New York, 2009), 390–448.

2. Robert Purvis et al., "The Appeal of Forty Thousand Citizens, Threatened with Disfranchisement, to the People of Pennsylvania," *The Liberator* (Boston), Apr. 13, 1838. Purvis's *Appeal* was also printed as a pamphlet and has been reprinted in Richard Newman, Patrick Rael, and Phillip Lapsansky, eds., *Pamphlets of Protest: An Anthology of Early African American Protest Literature, 1790–1860* (New York, 2001), 132–43. For Purvis's career as a black leader and abolitionist, see Margaret Hope Bacon, *But One Race: The Life of Robert Purvis* (Albany, NY, 2007).

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.55 - 'One Woman so Dangerous to Public Morals': Gender and Power in the Eaton Affair

Kirsten E. Wood

ARTICLE	'One Woman so Dangerous to Public Morals': Gender and Power in the Eaton Affair
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"ONE WOMAN SO DANGEROUS TO PUBLIC MORALS": GENDER AND POWER IN THE EATON AFFAIR

Kirsten E. Wood

After the election of 1828, speculation about Andrew Jackson's plans for the nation simmered inside Washington, D.C., and across the country. During the campaign, Jackson had said little about his policy goals, and his supporters tailored their representations of his views to suit local audiences. As a result, neither his friends nor his foes knew quite what to expect when Jackson arrived in the capital city. Politically involved Washingtonians closely watched Jackson's cabinet nominations to deduce his leanings. Predicting Jackson's intentions proved quite difficult, however, as the cabinet brought together men of very different opinions on tariffs, banking, and internal improvements. Most observers agreed that Jackson's choices, with the possible exception of Martin Van Buren, were a singularly undistinguished bunch.[1]

Kirsten E. Wood is a Ph.D. candidate at the University of Pennsylvania. She would like to thank Drew Gilpin Faust, Richard S. Dunn, and the members of his research seminar, especially Ed Baptist, Sean Wilentz, Christine Stansell, Janet Coryell, Robert Gregg, and Karin Wood for their criticism and encouragement. Kirsten Wood is writing her dissertation on widowed slaveholders in the antebellum Southeast.

[1] See Richard Latner, "The Eaton Affair Reconsidered," *Tennessee Historical Quarterly,* 36 (Fall 1977), 332, 335-38, 345-51; Marshall DeLancey Haywood, *John Branch, 1782-1863* (1915; rep., Raleigh, 1915); and Thomas P. Govan, "John M. Berrien and the Administration of Andrew Jackson," *Journal of Southern History,* 5 (Feb. 1939), 447-67. For contemporary reactions to the cabinet, see George Mifflin Dallas to Samuel D. Ingham, Mar. 7, Nov. 24, 1829, George Mifflin Dallas Collection (Historical Society of Pennsylvania, Philadelphia); *The Private Correspondence of*

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Many politicians and their families were particularly critical of Jackson's choice for secretary of war, John H. Eaton, largely because of his "late unfortunate connection" by marriage to the notorious Margaret (O'Neil) Timberlake. On the basis of a decade's worth of local gossip, Washington's political wives had decided that Margaret Timberlake was an immoral woman to be avoided at all costs. In their opinion, her new husband's elevation to the cabinet brought Margaret dangerously close to the center of political power, where her "malign influence" would surely corrupt the country's leaders. As far as Jackson was concerned, however, these wagging tongues represented nothing more than snobbery and female meddling: "I did not come here to make a cabinet for the Ladies of this place."[2] For the next two and a half years, the ladies shunned Margaret Eaton, Jackson sought to prove her purity and bring her into society, and his political allies and subordinates tried to justify taking sides. Eventually, conflicting interpretations of Margaret Eaton's character and relationship to politics divided not only Jackson and the local ladies, but politically concerned Americans all across the country. In addition to spawning hot debate over the dangers that women posed to politics, this "Eaton Affair" also engendered controversy over the privileges and responsibilities of men in public life, issues that grew out of the rising tension between the president and his cabinet. Having provoked over two years of debate about female influence and male authority in politics, the Eaton Affair provides historians with an exceptional lens for viewing the workings of gender and power at the

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Henry Clay, ed. Calvin Colton (New York, 1855), 222-23; Margaret Bayard Smith, *The First Forty Years of Washington Society*, ed. Gaillard Hunt (New York, 1932), 282, 287; *The Private Correspondence of Daniel Webster*, ed. Fletcher Webster (Boston, 1857), 469; Robert V. Remini, *The Life of Andrew Jackson* (New York, 1988), 174; and Charles Sellers, *The Market Revolution: Jacksonian America, 1815-1846* (New York, 1991), 297, 303.

[2] Smith, *Forty Years*, 282. Most historians have called Margaret (O'Neil) Timberlake Eaton "Peggy," but in her (ironically titled) autobiography she insisted that she was always called Margaret or Madge. See Margaret L. Eaton, *The Autobiography of Peggy Eaton* (New York, 1932), 32. See also Nashville (TN) *Republican*, June 3, 1831; Jackson to John C. McLemore, Apr., 1829, in *Correspondence of Andrew Jackson*, ed. John Spencer Bassett (7 vols., Washington, DC, 1926-39), IV, 21. The phrase 'malign influence' described both Margaret Eaton and Martin Van Buren. William S. Hoffman, "John Branch and the Origins of the Whig Party in North Carolina," *North Carolina Historical Review*, 30 (July 1958), 299-315.

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CHAPTER 10 | SCHOLARLY ARTICLE

A10.56 - The Exercise of Sovereignty in Cherokee Georgia

Mary Young

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THE EXERCISE OF SOVEREIGNTY IN CHEROKEE GEORGIA

Mary Young

The removal of the Cherokees from Georgia has had a long and deservedly successful run as a morality play in which the good guys lose. Despite their success in learning the lessons of civilization and the substantial assistance they received from missionary allies and opposition politicians, despite winning one of the most important decisions the Supreme Court ever made and establishing that their residence in Georgia as a self-governing nation was beyond dispute legal, the Cherokees were forced to submit to Georgia laws, to abide by a treaty that no officer of their nation ever signed, and under that treaty to depart on their Trail of Tears. Pressure from the state of Georgia constituted an important element in their defeat, and Georgia won uncontested control of what had been the Georgia section of the Cherokee nation.

After 150 years, I think it is time for a close look at the winners. Ulrich B. Phillips, whose doctoral dissertation on *Georgia and State Rights* was published by the American Historical Association early in this century, examined Georgia's case from the point of view of political theory and frontier politics. Others have written of the role of Indian removal issues in state politics, but no one has examined closely the assumptions that conditioned Georgia's approach to the Cherokees, the legislative strategies by which the state hoped to achieve hegemony over Cherokee territory, and the internal conflicts over ideology and strategy the conflict engendered.[1]

Mary Young is a member of the Department of History at the University of Rochester, Rochester, New York. Widely recognized for her work on Indian affairs in the nineteenth century, she is the author of *Redskins, Ruffleshirts, and Rednecks: Indian Land Allotments in Alabama and Mississippi, 1830-1860* (1961) and *Friends of the Indian* (1980).

[1] Ulrich Bonnell Phillips, *Georgia and State Rights* (Washington, D.C. 1902). An excellent analysis of interrelations between Creek and Georgia politics in the 1820s is

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The Georgians' desire to acquire Cherokee lands and expel the Cherokee people was not simply the product of an omnivorous land hunger. Completion of the state's program of internal improvements, establishing the critical connection between Georgia's Atlantic ports and the Tennessee River, was impossible without a route passing through Cherokee Georgia. Though the Cherokee elite were themselves slaveholders, the Indians were free people of color and, as such, unacceptable neighbors to race-proud Georgians. If the national government could intervene to protect the rights of the Indian minority to land, it could equally well intervene to protect the personal liberty of Georgia's substantial and growing slave population. All politically active Georgians favored Indian removal.

Yet not all Georgians agreed as to the tactics appropriate to achieve that desirable object. Georgians had little respect for people of color but considerable respect for people of property. At their most circumscribed, the Cherokees owned seven million acres inside Georgia's chartered limits. They and their slaves had brought many hundreds of farms and plantations in that territory into a high state

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Michael D. Green, *The Politics of Indian Removal: Creek Government and Society in Crisis* (Lincoln, Neb. 1982). See also Carl J. Vipperman, "The 'Particular Mission' of Wilson Lumpkin," *Georgia Historical Quarterly*, 66 (Fall 1982), 295-316; and Paul Murray, *The Whig Party in Georgia, 1825-1852* (Chapel Hill, N.C. 1948), esp. 16-20, 27-29. The best study of the relevant legislation is Carl Jackson Vipperman, "Wilson Lumpkin and Cherokee Removal" (M. A. thesis, Univ. of Georgia 1961). Occasionally Vipperman's characterization of the laws is erroneous. It is not, of course, my intention to dismiss the point of view of the losers. Two particularly fine examples of the genre are Marion L. Starkey, *The Cherokee Nation* (New York 1946); and Thurman Wilkins, *Cherokee Tragedy: The Ridge Family and the Decimation of a People* (2nd ed., Norman, Okla. 1986). Other contributions to that point of view include Mary Young, "Indian Removal and the Attack on Tribal Autonomy: The Cherokee Case," in John K. Mahon, ed., *Indians of the Lower South: Past and Present* (Gainesville, Fla. 1975), 125-142; and Mary Young, *Friends of the Indian* (Staunton, Va. 1980). Since the removal experience was central to Cherokee history, three fine recent social histories of the Cherokee offer important insights: Theda Perdue, *Slavery and the Evolution of Cherokee Society, 1540-1866* (Knoxville, Tenn. 1979); William G. McLoughlin, *Cherokees and Missionaries, 1789-1839* (New Haven, Conn. 1984); and McLoughlin, *Cherokee Renascence in the New Republic* (Princeton, N.J. 1986). See also Mary Young, "The Cherokee Nation: Mirror of the Republic," *American Quarterly*, 33 (Winter 1981), 502-524. Francis Paul Prucha, *American Indian Policy in the Formative Years: The Indian Trade and Intercourse Acts, 1790-1834* (Cambridge, Mass. 1962), offers an excellent scholarly reconstruction of the Jackson administration's point of view on removal. For further insight into the politics of removal, see Ronald N. Satz, *American Indian Policy in the Jacksonian Era* (Lincoln, Neb. 1975).

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